

THE MAN
BEHIND THE BARS

WINIFRED LOUISE TAYLOR

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Title: The Man Behind the Bars

Author: Winifred Louise Taylor

Release date: December 3, 2017 [eBook #56112]

Most recently updated: October 23, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/56112

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Transcriber's Note:

A Table of Contents has been added.

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BY

WINIFRED LOUISE TAYLOR

**NEW YORK
CHARLES SCRIBNER'S SONS
1914**

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Published October, 1914



TO
MY PRISON FRIENDS

PREFACE

Lest any one may charge me with extravagant optimism in regard to convicts, or may think that to me every goose is a swan, I wish to say that I have written only of the men—among hundreds of convicts—who have most interested me; men whom I have known thoroughly and who never attempted to deceive me. Every writer's vision of life and of humanity is inevitably colored by his own personality, and I have pictured these men as I saw them; but I have also endeavored, in using so much from their letters, to leave the reader free to form his own opinion. Doubtless the key to my own position is the fact that I always studied these prisoners as men; and I tried not to obscure my vision by looking at them through their crimes. In recalling conversations I have not depended upon memory alone, as much of what was said in our interviews was written out while still fresh in my mind.

I have no wish to see our prisons abolished; but thousands of individuals and millions of dollars have been sacrificed to wrong methods of punishment; and if we aim to reform our criminals we must first reform our methods of dealing with them, from the police court to the penitentiary.

WINIFRED LOUISE TAYLOR.

August 6, 1914.

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CHAPTER I

I have often been asked: "How did you come to be interested in prisoners in the first place?"

It all came about simply and naturally. I think it was W. F. Robertson who first made clear to me the truth that what we put into life is of far more importance than what we get out of it. Later I learned that life is very generous in its returns for what we put into it.

In a quiet hour one day it happened that I realized that my life was out of balance; that more than my share of things worth having were coming to me, and that I was not passing them on; nor did I see any channel for the passing on just at hand.

The one thing that occurred to me was to offer my services as teacher in a Sunday-school. Now, I chanced to be a member of an Episcopal church and their Sunday-school was held at an hour inconvenient for my attendance; however, in our neighborhood was a Methodist church, and as I had little regard for dividing lines among Christians I offered my services the next Sunday to this Methodist Sunday-school. My preference was for a class of young girls, but I was assigned as teacher to a class of ten young men, of ages ranging between eighteen and twenty years, and having the reputation of decided inclination toward the pomps and the vanities so alluring to youth.

It was the season of revival meetings, and within a month every member of my class was vibrating under the wave of religious excitement, and each one in turn announced his "conversion." I hardly knew how to handle the situation, for I was still in my twenties, and as an Episcopalian I had never experienced these storm periods of religious enthusiasm. So while the recent converts were rejoicing in the newly found grace, I was considering six months later when a reaction might set in.

Toward the close of the revival one of the class said to me: "I don't know what we're going to do with our evenings when the prayer-meetings are

over, for there's no place open every evening to the men in this town except the saloons."

"We must make a place where you boys can go," was my reply.

What the class proceeded to do, then and there, was to form a club and attractively furnish a large, cheerful room, to which each member had a pass-key; and to start a small circulating library, at one stroke meeting their own need and beginning to work outward for the good of the community.

The first contribution toward this movement was from a Unitarian friend. Later, Doctor Robert Collyer—then preaching in Chicago—and Doctor E. E. Hale, of Boston, each gave a lecture for the benefit of our infant library. Thus from the start we were untrammelled by sectarianism, and in three months a library was founded destined to become the nucleus of a flourishing public library, now established in a beautiful Carnegie building, and extending its beneficent influence throughout the homes, the schools, and the workshops of the city.

Of course I was immensely interested in the class, and in the success of their library venture, and as we had no money to pay for the services of a regular librarian the boys volunteered their services for two evenings in the week, while I took charge on Saturday afternoons. This library was the doorway through which I entered the prison life.

One Saturday a little boy came into the library and handed me the charming Quaker love story, "Dorothy Fox," saying: "This book was taken out by a man who is in jail, and he wants you to send him another book."

Now, I had passed that county jail almost every day for years; its rough stone walls and narrow barred windows were so familiar that they no longer made any impression upon me; but it had not occurred to me that inside those walls were human beings whose thoughts were as my thoughts, and who might like a good story, even a refined story, as much as I did, and that a man should pay money that he had stolen for three months' subscription to a library seemed to me most incongruous.

It transpired that the prisoner was a Scotch boy of nineteen, who, being out of work, had stolen thirty-five dollars; taking small amounts as he needed them. According to the law of the State the penalty for stealing any amount

under the value of fifteen dollars was a sentence to the county jail, for a period usually of sixty days; while the theft of fifteen dollars or more was a penitentiary offence, and the sentence never for less than one year. I quote the statement of the case of this Scotch boy as it was given me by a man who happened to be in the library and who knew all the circumstances.

"The boy was arrested on the charge of having taken ten dollars—all they could prove against him; and he would have got off with a jail sentence, but the fool made a clean breast of the matter, and now he has to lie in jail for six months till court is in session, and then he will be sent to the penitentiary on his own confession."

Two questions arose in my mind: Was it only "the fool" who had made a clean breast of the case? And if the boy was to go to prison on his own confession, was it not an outrage that he should be kept in jail for six months awaiting the formalities of the next session of the circuit court? I did not then think of the taxpayers, forced to support this boy in idleness for six months.

That night I did not sleep very well; the Scotch boy was on my mind, all the more vividly because my only brother was of the same age, and then, too, the words, "I was in prison and ye visited me not," repeated themselves with insistent persistence until I was forced to meet the question, "Did these words really mean anything for to-day and now?"

Next morning I asked my father if any one would be allowed to talk with a prisoner in our jail. My father said: "Yes, but what would you have to say to a prisoner?" "I could at least ask him what books he would like from the library," I replied. But I could not bring my courage to the point of going to the jail; it seemed a most formidable venture. Sunday, Monday, and Tuesday passed, and still I held back; on Wednesday I was driving with my brother, and when very near the jail the spring of the carriage broke, and my brother told me that I would have to fill in time somewhere until the break was repaired. I realized that the moment for decision had come; and with a wildly beating heart I took the decisive step, little dreaming when I entered the door of that jail that I was committing myself to prison for life.

But we all take life one day, one hour, at a time; and five minutes later when my hand was clasped through the grated door, and two big gray eyes were

looking straight into mine, I had forgotten everything else in my interest in the boy. I asked him why he told that he had taken thirty-five dollars when accused only of having taken ten, and he simply said: "Because when I realized that I had become a thief I wanted to become an honest man and I thought that was the place to begin."

Had I known anything of the law and its processes I should doubtless have said: "Well, there's nothing for you to do now but to brace up and meet your fate. There's nothing I can do to help you out of this trouble." But in my fortunate ignorance of obstacles I said: "I'll see what I can do to help you." I had only one thought—to save that young man from the penitentiary and give him a fresh start in life.

I began with the person nearest at hand, the sheriff's wife, and she secured the sheriff as my first adviser; then I went to the wife of the prosecuting attorney for the State, and she won her husband over to my cause. One after another the legal difficulties were overcome, and this was the way the matter was settled: I secured a good situation for Willy in case of his release; Willy gave the man from whom he had taken the money a note for the full amount payable in ninety days—the note signed by my father and another responsible citizen; the case was given a rehearing on the original charge of ten dollars, and Willy's sentence was ten days in the county jail; and this fortunate settlement of the affair was celebrated with a treat of oranges and peanuts for Willy and his fellow prisoners. A good part of that ten days Willy spent in reading aloud to the other men. Immediately after release he went to work and before the expiration of the ninety days the note for thirty-five dollars was paid in full. Now, this was the sensible, fair, and human way of righting a wrong. Nevertheless, we had all joined hands in "compounding a felony."

With Willy's release I supposed my acquaintance with the jail was at an end, but the boy had become interested in his companions in misery and on his first visit to me he said: "If you could know what your visits were to me you would never give up going to the jail as long as you live." And then I gave him my promise. "Be to others what you have been to me," has been the message given to me by more than one of these men.

While a prisoner Willy had made no complaint of the condition of things in the jail, but after paying the note of his indebtedness, he proceeded to buy straw and ticking for mattresses, which were made and sent up to the jail for the other prisoners, while I furthered his efforts to make the existence of those men more endurable by contributing various "exterminators" calculated to reduce the number of superfluous inhabitants in the cells.

At the time I supposed that Willy was an exception, morally, to the usual material from which criminals are made. I do not think so now, after twenty-five years of friendships with criminals; of study of the men themselves and of the conditions and circumstances which led to their being imprisoned.

Willy's was a kindly nature, responsive, yielding readily to surrounding influences, not so much lacking in honesty as in the power of resistance. Had he been subjected to the disgrace, the humiliation, and the associations of a term in the penitentiary, where the first requirement of the discipline is non-resistance, he might easily have slipped into the ranks of the "habitual" criminal, from which it is so difficult to find an exit. I am not sure that Willy was never dishonest again; but I am sure of his purpose to be honest; and the last that I knew of him, after several years of correspondence, he was doing well, running a cigar-stand and small circulating library in a Western town.

From that beginning I continued my visits to the jail, usually going on Sunday mornings when other visitors were not admitted. And on Sunday mornings when the church-bells were calling, the prisoners seemed to be—doubtless were—in a mood different from that of the week-days. There's no doubt of the mission of the church-bells, ringing clear above the tumult of the world, greeting us on Sunday mornings from the cradle to the grave.

I did not hold any religious services. I did not venture to prescribe until I had found out what was the matter. It was almost always books that opened the new acquaintances, for through the library I was able to supply the prisoners with entertaining reading. They made their own selections from our printed lists, and I was surprised to find these selections averaging favorably with the choice of books among good citizens of the same grade of education. There certainly was some incongruity between the broken

head, all bandages, the ragged apparel, and the literary taste of the man who asked me for "something by George Eliot or Thackeray."

A short story read aloud was always a pleasure to the men behind the bars; more than once I have been able to form correct conclusions as to the guilt or the innocence of a prisoner by the expression of his face when I was reading something that touched the deeper springs of human nature. And my sense of humor stood me in good stead with these men; for there's no freemasonry like that of the spontaneous smile that springs from the heart; and after we had once smiled together we were no longer strangers.

One early incident among my jail experiences left a vivid impression with me. A boy of some thirteen summers, accused of stealing, was detained in jail several weeks awaiting trial, with the prospect of the reform school later. In appearance he was attractive, and his youth appealed to one's sympathy. Believing that he ought to be given a better chance for the future than our reform schools then offered, I tried to induce the sheriff to ask some farmer to take him in hand. The sheriff demurred, saying that no farmer would want the boy in his family, as he was a liar and very profane, and consequently I dropped the subject.

In the jail at the same time was a man of forty or over who frankly told me that he had been a criminal and a tramp since boyhood, that he had thrown away all chances in life and lost all self-respect forever. I took him at his own valuation and he really seemed about as hopeless a case as I have ever encountered. One lovely June evening when I went into the corridor of the jail to leave a book, this old criminal called me beside his cell for a few words.

"Don't let that boy go to the reform school," he began earnestly. "The reform school is the very hotbed of crime for a boy like that. Save him if you can. Save him from a life like mine. Put him on a farm. Get him into the country, away from temptation."

"But the sheriff tells me he is such a liar and swears so that no decent people would keep him," I replied.

"I'll break him of swearing," said the man impetuously, "and I'll try to break him of lying. Can't he see what *I* am? Can't he *see* what he'll come to if he

doesn't brace up? I'm a living argument—a living example of the folly and degradation of stealing and lying. I can't ever be anything but what I am now, but there's hope for that boy if some one will only give him a chance, and I want you to help him."

The force of his appeal was not to be resisted, and I agreed to follow his lead in an effort to save his fellow prisoner from destruction. As I stood there in the twilight beside this man reaching out from the wreck and ruin of his own life to lend a hand in the rescue of this boy, if only the "good people" would do their part, I hoped that Saint Peter and the Recording Angel were looking down. And as I said good night—with a hand-clasp—I felt that I had touched a human soul.

The man kept his word, the boy gave up swearing and braced up generally, and I kept my part of the agreement; but I do not know if our combined efforts had a lasting effect on the young culprit.

As time passed many of these men were sent from the jail to the State penitentiary, and often a wife or family was left in destitution; and the destitution of a prisoner's wife means not only poverty but heart-break, disgrace, and despair. Never shall I forget the first time I saw the parting of a wife from her husband the morning he was taken to prison. A sensitive, high-strung, fragile creature she was; and going out in the bitter cold of December, carrying a heavy boy of eighteen months and followed by an older girl, she seemed the very embodiment of desolation. I have been told by those who do not know the poor that they do not feel as we do, that their sensibilities are blunted, their imagination torpid. Could we but know! Could we but know, we should not be so insensate to their sufferings. It is we who are dull. To that prisoner's wife that morning life was one quivering torture, with absolutely no escape from agonizing thoughts. Her "home" to which I went that afternoon was a cabin in which there was one fire, but scant food, and no stock of clothing; the woman was ignorant of charitable societies and shrinking from the shame of exposing her needs as a convict's wife.

It is not difficult to make things happen in small towns when people know each other and live within easy distances. In less time, really less actual time than it would have taken to write a paper for the Woman's Club on

"The Problems of Poverty," this prisoner's wife was relieved from immediate want. To tell her story to half a dozen acquaintances who had children and superfluous clothing, to secure a certain monthly help from the city, was a simple matter; and in a few months the woman was taking in sewing—and doing good work—for a reliable class of patrons.

I have not found the poor ungrateful; twenty years afterward this woman came to me in prosperity from another town, where she had been a successful dressmaker, to express once more her gratitude for the friendship given in her time of need. Almost without exception with my prisoners and with their families I have found gratitude and loyalty unbounded.

When the men sent from the jail to the penitentiary had no family they naturally wrote to me. Sometimes they learned to write while in jail or after they reached the prison just for the pleasure of interchanging letters with some one. All prison correspondence is censored by some official; and as my letters soon revealed my disinterested relation to the prisoners, the warden, R. W. McClaughrey, now of national fame, sent me an invitation to spend several days as his guest, and thus to become acquainted with the institution.

It was a great experience, an overwhelming experience when first I realized the meaning of prison life. I seemed to be taken right into the heart of it at once. The monstrous unnaturalness of it all appalled me. The great gangs of creatures in stripes moving in the lock-step like huge serpents were all so unhuman. Their dumb silence—for even the eyes of a prisoner must be dumb—was oppressive as a nightmare. The hopeless misery of the men there for life; already entombed, however long the years might stretch out before them, and the wild entreaty in the eyes of those dying in the hospital—for the eyes of the dying break all bonds—these things haunted my dreams long afterward. Later I learned that even in prison there are lights among the shadows, and that sunny hearts may still have their gleams of sunshine breaking through the darkness of their fate; but my first impression was one of unmitigated gloom. When I expressed something of this to the warden his response was: "Yes, every life here represents a tragedy—a tragedy if the man is guilty, and scarcely less a tragedy if he is innocent."

As the guest of the warden I remained at the penitentiary for several days and received a most cordial standing invitation to the institution, with the privilege of talking with any prisoner without the presence of an officer. The unspeakable luxury to those men of a visit without the presence of a guard! Some of the men with whom I talked had been in prison for ten years or more with never a visitor from the living world and only an occasional letter.

My visits to the penitentiary were never oftener than twice a year, and I usually limited the list of my interviews to twenty-five. With whatever store of cheerfulness and vitality I began these interviews, by the time I had entered into the lives of that number of convicts I was so submerged in the prison atmosphere, and the demand upon my sympathy had been so exhausting, that I could give no more for the time. I found that the shortest and the surest way for me to release myself from the prison influence was to hear fine stirring music after a visit to the penitentiary. But for years I kept my list up to twenty-five, making new acquaintances as the men whom I knew were released. Prisoners whom I did not know would write me requesting interviews, and the men whom I knew often asked me to see their cell-mates, and I had a touch-and-go acquaintance with a number of prisoners not on my lists.

Thus my circle gradually widened to include hundreds of convicts and ex-convicts of all grades, from university men to men who could not read; however, it was the men who had no friends who always held the first claim on my sympathy; and as the years went on I came more and more in contact with the "habitual criminals," the hopeless cases, the left-over and forgotten men; some of them beyond the pale of interest even of the ordinary chaplain—for there are chaplains and chaplains, as well as convicts and convicts.

I suppose it was the very desolation of these men that caused their quick response to any evidence of human interest. In their eagerness to grasp the friendship of any one who remembered that they were still men—not convicts only—these prisoners would often frankly tell the stories of their lives; admitting guilt without attempt at extenuation. No doubt it was an immense relief to them to make a clean breast of their past to one who could understand and make allowance.

This was not always so; some men lied to me and simply passed out of my remembrance; but I early learned to suspend judgment, and when I saw that a man was lying through the instinct of self-defence, because he did not trust me, I gave him a chance to "size me up," and reassure himself as to my trustworthiness. "Why, I just couldn't go on lying to you after I saw that you were ready to believe in me," was the candid admission of one who never lied to me again.

Among these convicts I encountered some unmistakable degenerates. The most optimistic humanitarian cannot deny that in all classes of life we find instances of moral degeneracy. This fact has been clearly demonstrated by sons of some of our multimillionaires. And human nature does not seem to be able to stand the strain of extreme poverty any better than it stands the plethora caused by excessive riches. The true degenerate, however, is usually the result of causes too complicated or remote to be clearly traced. But throughout my long experience with convicts I have known not more than a dozen who seemed to me black-hearted, deliberate criminals; and among these, as it happened, but one was of criminal parentage. Crime is not a disease; but there's no doubt that disease often leads to crime. Of the defective, the feeble-minded, the half-insane, and the epileptic there are too many in every prison; one is too many; but they can be counted by the hundreds in our aggregate of prisons. Often warm-hearted, often with strong religious tendencies, they are deficient in judgment or in moral backbone. The screw loose somewhere in the mental or physical make-up of these men makes the tragedies, the practically hopeless tragedies of their lives; though there may never have been one hour when they were criminal through deliberate intention. Then there are those whose crimes are simply the result of circumstances, and of circumstances not of their own making. Others are prisoners unjustly convicted, innocent of any crime; but every convict is classed as a criminal, as is inevitable; and under the Bertillon method of identification his very person is indissolubly connected with the criminal records. Even in this twentieth century, in so many directions an age of marvellous progress, there is a menacing tendency among legislators to enlarge the borders of life sentences—*not* according to the number of crimes a man may have committed, but according to the number of times a man has been convicted in courts notoriously indifferent to justice; too

often according to the number of times the man has been "the victim of our penal machinery."

I well remember a man three times sent from my own county to the penitentiary for thefts committed during the brain disturbance preceding epileptic convulsions. On one occasion, between arrest and conviction, I saw the man in an unconscious state and in such violent convulsions that it was necessary to bind him to the iron bedstead on which he lay. I knew but little of physiological psychology then; and no one connected the outbreaks of theft with the outbreaks of epilepsy. And the man, industrious and honest when well, was in consequence of epileptic mental disturbance convicted of crime and sent to the penitentiary, and owing to previous convictions from the same cause was classed as an "habitual criminal."

Like instances of injustice resulting from ignorance are constantly occurring. In our large cities where "railroading" men to prison is purely a matter of business, no consideration is given to the individual accused, he is no longer a human being, he is simply "a case." A very able and successful prosecuting attorney—success estimated by the number of "cases" convicted—once said to me: "I have nothing to do with the innocence of the man: *I'm here to convict.*"

By far the most brutal man whom I have ever personally encountered was a modern prototype of the English judge, Lord George Jeffreys—a judge in one of our large cities, who had held in his unholy hands the fate of many an accused person. However, with this one exception, in my experience with judges I have found them courteous, fair-minded, and glad to assist me when convinced that a convict had not been accorded justice.

We find in the prisons the same human nature as in the churches; far differently developed and manifested; but not so different after all, as we should expect, remembering the contrast between the home influence, the education, environment, and opportunity of the inmates of our prisons with that of the representatives of our churches. In our prisons we find cowardice, brutality, dishonesty, and selfishness. Are our church memberships altogether free from these defects? Surely, unquestionably, in our churches we do find the highest virtues: love, courage, fortitude, tenderness, faithfulness, unselfishness. And in every prison in this land

these same virtues—love, tenderness, courage, fortitude, faithfulness, unselfishness—are to be found; often hidden in the silence of the heart, but living sparks of the divine life which is our birthright. And yet between these prisons and the churches there has long existed an almost impassable barrier of distrust, equally strong on both sides.

I once called with a friend upon the wife of a convict who, relating an incident in which she had received great kindness from a certain lady very prominent in church circles, said: "I was so surprised: I could not understand her being so kind—for *she was a Christian*." "Why, there's nothing strange in the kindness of a Christian," said my friend. "Miss Taylor and I are both Christians." The prisoner's wife paused a moment, then said, with slow emphasis: "*That is impossible*."

We all have our standards and ideals, not by which we live but by which we judge one another. This woman knew the sweat-shops and she knew that Christian as well as Jew lived in luxury from the profits derived from the labor of the sweat-shops, and of the underpaid shop-girls. To her the great city churches meant oppression and selfishness, power and wealth, arrayed against poverty and weakness, against fair pay and fair play. Her own actual personal experience with some persons classed as Christians had been bitter and cruel; thus her vision was warped and her judgment misled. Much of the same feeling had prevailed through the prisons; and I know that one reason why so many of "the incorrigibles" gave me their confidence was owing to the word passed round among them: "You can trust her; *she is no Christian*."

This has a strange sound to us. But it does not sound strange at all when we hear from the other side: "You can't trust that man—he's been a convict."

Through the genius, the energy, the spiritual enthusiasm of that remarkable woman known among prisoners as "The Little Mother," the barrier between the churches and the prisons is recently and for the time giving way on the one side. The chaplains are taken for granted as part of the prison equipment, and their preaching on Sunday as the work for which they are paid. But "The Little Mother" comes from the outside, literally giving her life to secure a chance for ex-convicts in this world. She brings to the prisons a fresh interpretation of the Christian religion, as help for the

helpless, as a friend to the friendless. In her they find at once their ideal of human goodness and a lovely womanhood, and through her they are beginning to understand what the Christian churches intend to stand for. But to undermine the barrier on the side of society—to bring about a better understanding of the individuals confined behind the walls which society still believes necessary in self-protection—is, in the very nature of the case, a far more difficult undertaking. Almost inaccessible to the outsider is the heart of a convict, or the criminal's point of view of life. In fact their hearts and their points of view differ according to their natures and experiences. But to think of our prisoners in the mass—the thousand or two thousand men cut off from the world and immured in each of our great penitentiaries—is to think of them as the Inarticulate. The repression of their lives has been fearful. All that was required of them was to be part of the machinery of the prison system; to work, to obey, to maintain discipline. Absolutely nothing was done to develop the individual. The mental and psychic influence of the prison has been indescribably stifling and deadening. Every instinctive impulse of movement, the glance of the eye, the smile of understanding, the stretch of weary muscles, the turning of the head, all must be guarded or repressed. The whole tendency of prison discipline has been to detach the individual from his fellow man; at all costs to prevent communication between convicts; and to stifle all expression of individuality except between cell-mates when the day's work was over. And companionship of cell-mates is likely to pall when the same two men are confined in a seven-by-four cell for three hundred and sixty-five evenings in a year. Gradually but inevitably the mind dulls; mental impressions lose their clear outlines and the faculties become atrophied. I have seen this happen over and over again.

When first the drama of prison life began to unfold before me I looked for some prisoner to tell the story; he only could know what it really meant. But the desire to forget, to shake off all association, even the very thought of having been connected with convict life, has been the instinctive aim of the average man seeking reinstatement in society. Occasionally a human document from the pen of an ex-convict appeared in print, but few of them were convincing. The writer's own consciousness of having been a convict may have prevented him from striking out from the shoulder, from speaking as man to man, or something in the mind of the reader may have discounted

the value of the statement coming from an ex-convict; more likely than either the spirit was so gone out of the man before his release that he had no heart or courage to grapple with the subject; and he, too, shared the popular belief that prisons are necessary—for others.

It was the poet and the artist in Oscar Wilde that made it possible—perhaps inevitable—for him to rend the veil that hides the convict prison execution, and to etch the horror in all its blackness—a scaffold silhouetted against the sky—in "The Ballad of Reading Gaol." The picture is a masterpiece, and it is the naked truth; more effective with the general reader than his "De Profundis," which is no less remarkable as literature but is more exclusively an analysis of Oscar Wilde's own spiritual development during his prison experience. The Russian writer Dostoyevski, also with pen dipped in the tears and blood of actual experience, has given scenes of Russian convict life so terrible and intense that the mind of the reader recoils with horror, scoring one more black mark against Russia and thanking God that in our dealings with convicts we are not as these other men. But not long ago a cry from the inside penetrated the walls of a Western prison in "Con Sordini," a poem of remarkable power, written by a young poet-musician who, held by the clutches of the law, was suffering an injustice which a Russian would be slow to indorse. No doubt other gifted spirits will have their messages. But in the mind of the public, genius seemed to lift these men out of the convict into the literary class, and their most human documents were too likely to be regarded only as literature.[\[1\]](#)

Genius is rare in all classes of life and my prison friends were of the common clay. The rank and file of our convicts are almost as inarticulate as dumb, driven cattle, many of them incapable of tracing the steps by which they fell into crime or of analyzing the effects of imprisonment. Some of them have not learned how to handle words and find difficulty in expressing thoughts or feelings; especially is this true of the ignorant foreigners.

One of the men whom I knew, not a foreigner, but absolutely illiterate, early fell into criminal life, and before he was twenty years old was serving a sentence of life imprisonment. After a period of unspeakable loneliness and mental misery he was allowed attendance at the prison evening school. He told me that he could not sleep for joy and excitement when first he realized that through printed and written words he could come into communication

with other minds, find companionship, gain information, and come in touch with the great free world on the outside.^[2]

As I look back through my twenty-five years of prison friendship it is like looking through a long portrait-gallery, only the faces are living faces and the lips unite in the one message: "We, too, are human beings of like nature with yourselves." To me, however, each face brings its own special message, for each one in turn has been my teacher in the book of life. And now for their sakes I am going to break the seal of my prison friendships, and to let some of these convicts open their hearts to the world as they have been opened to me, and to give their vision of human life; to draw the picture as they have seen it. Some of them bear the brand of murderer, others belong to the class which the law denominated as "incurable." I believe I had the reputation of knowing the very worst men in the prison, "the old-timers." It could not have been true that my friends were among the worst men there, for my prison friendships, like all friendships, were founded upon mutual confidence; and never once did one of these men betray my trust.

FOOTNOTES:

^[1] Recent periodicals have given many disclosures convincing to the public from men who know only too well the cruel and barbarous conditions of convict life. I have long held that no judge should be authorized to sentence a man to prison until the judge knew by experience what prison life really was. And now we are having authentic reports from those in authority who have taken a voluntary experience of convict life.

^[2] In 1913 an *Intra-Mural School* was started in the Maryland penitentiary, and the story of its effect on the minds and the conduct of the thirty per cent of illiterate individuals in that prison is most interesting. It unquestionably confirms my statement that the rank and file of our convicts are inarticulate.

CHAPTER II

Not only did the prisoners whom I knew never betray my confidence, but ex-convicts who knew of me through others sometimes came to me for advice or assistance in getting work; and many an odd job about our place was well done by these men, who never gave us cause to regret our confidence in them. A stranger fresh out of jail applied to me one cold December day just before the holidays. I was in the high tide of preparations for Christmas, and to this young man I gladly intrusted the all-day work of trimming the house with holly and evergreen under my direction, and never was it done more effectively or with more of the Christmas spirit. The man had a beautiful time and confided to my mother his longing to have a home of his own. He left us at evening with a heart warmed by the vision of a real home, and his pay supplemented by a good warm overcoat. These men used to make all sorts of frank admissions to me in discussing their difficulties. I remember one man saying:

"I want to be an honest man; I don't like this kind of a life with all its risks; I want to settle down, but I never can get a start. Now, if I could just make a clean steal of one hundred dollars I could get some decent clothes, pay in advance at a respectable boarding-house; then I could get a job and I could keep it; but no one will give me work as I am, and no one will trust me for board." And that was the hard fact. As the man was leaving he asked:

"Could you give me one or two newspapers?" As I handed him the papers he explained: "You see, if a fellow sleeps on the bottom of a freight-car these cold nights—as I am likely to do—it's not quite so cold and hard with a newspaper under you, and if I button them under my coat it isn't quite so cold out-of-doors." It was no wonder that the man wanted to settle down.

Several incidents of honor among thieves are recorded in the annals of our household. One evening as we were starting for our usual drive my mother exclaimed: "Stop a minute! There is Katy's sweetheart, and I want to speak to him."

Katy was our cook and her sweetheart was a stout, blond working man closely resembling the one walking up our front driveway. My mother stopped the man and gave him this bit of information:

"The house is all open and any one could go in and help himself. I wish you would ask Katy to lock the front door." The man bowed, and we drove on.

When we returned Katy reported that a strange man had come to the kitchen door and told her that the mistress wished her to lock the front door. She left the man while she did this and found him waiting when she came back. Then he asked her for something to eat, stating that he was just out of prison, and wished to see Miss —— (mentioning my name). The cook gave him a lunch and made an appointment for me to see him next day.

Katy did not resent the man's being taken for her Joe, for she noticed the resemblance, but there was reproach in her tone as she added: "But you know Joe always dresses up when he comes to see me."

At the appointed hour the man came again, bringing me a message from an acquaintance, a fellow convict who had been his cell-mate in prison. He did not refer to the fact that had he chosen he might have taken advantage of the information received from my mother, but no better plan for a robbery could have been devised than the circumstance that fell ready to his hand.

But of all the ex-convicts employed at various times on our place the one in whom the family took the greatest interest was George—his other name does not matter because it was changed so often.

One Sunday morning I found George the only prisoner in our county jail. He was a thief awaiting trial at the next term of court several weeks ahead. He had "shifty" eyes and a sceptical smile, was thin, unkempt, and altogether unprepossessing; but I did not think so much of that as of his loneliness. He was reserved concerning himself but seemed to have some education and a taste for reading, so I supplied him with books from the library and called on him once or twice a week; but I made slow progress with acquaintance, and one day George said to me:

"I understand perfectly why it is that you come to see me and bring me things to read; *you think that you will gain a higher place in heaven when*

you die." In other words, George thought that I was using him as a stepping-stone for my own advantage—his sceptical smile was not for nothing.

How I disarmed his suspicions I do not know; but in the weeks that followed before he was taken to prison we came to know each other very well. The prison life was hard on George, so hard that when I first saw him in the convict stripes I did not know him, so emaciated had he become; and I was startled when his smile disclosed his identity. Clearly he would be fit for no honest work when released from prison. He made no complaint—he did not need to, for his appearance told the story only too well. George was an insignificant-looking man, only one of the hundreds consigned to that place of punishment, and by mere chance had been given work far beyond his strength. When I called the warden's attention to George he was immediately transferred to lighter work, and was in better condition when I saw him next time.

And then we had some long and serious talks about his way of life, which he invariably defended on the score that he would rather be "a downright honest thief" than to get possession of other people's property under cover of the law, or to grind the poor in order to pile up more money than any one could honestly possess. George *thought* that he really believed all business men ready to take any unfair advantage of others so long as their own safety was not endangered.

With the expiration of this term in prison George's letters to me ceased for a while, to be resumed later from a prison in another State where he was working in the greenhouses and had become interested in the flowers. That gave me my chance.

In a fortunate hour I had encountered a little story by Edward Everett Hale, "How Mr. Frye Would Have Preached It," and that story had formed my ideal of loyalty to my prisoners when once they trusted me, and by this time I had won the confidence of George. Accordingly, I wrote George a Christmas letter making a direct appeal to his better nature—for I knew it was there—and I asked him to come to me on his release the following July, which he was glad to do.

Now, my mother had always been sympathetic with my interest in prisoners, and she dearly loved her flower garden, and had difficulty in

finding intelligent help in the care of her flowers. She knew that George was just out of prison, and after introducing him as a man who might help her with her roses I left them together.

A few minutes later my mother came to me and reported:

"I don't like the looks of your George: he looks like a thief."

"Yes," I answered, "you know he has been a thief, and if you don't want him I'll try and get another place for him."

But the flowers were pulling at my mother's heart and she decided to give George a trial. And what a good time they both had that summer! It was beautiful to see the two together morning after morning, caring for those precious flowers as if they were babies. My mother had great charm, and George was devoted to her and proved an altogether satisfactory gardener. Unquestionably the two months that George spent with us were the happiest of his life. My mother at once forgot all her misgivings as to his honesty and came to regard him as her special ally; she well knew that he would do anything in his power to serve her.

One afternoon my mother informed me that she was going driving with the family that evening—she was always nervous about "leaving the house alone"—and that the maids were going to be out, too; "but George is going to stay in charge of the house, so everything will be all right and I shall not worry," she said with all confidence.

I smiled; but I had no misgiving, and sure enough we all went off, not even locking up the silver; while George, provided with newspapers and cigars, was left in charge.

On our return, some two hours later, I noticed that George was unusually serious and silent, and apparently didn't see any joke in the situation, as he had on a former occasion when I sent him for something in a closet where the family silver was in full view. He told me afterward that the time of our absence covered the longest two hours of his life, and the hardest to bear.

My home is on the edge of the town in the midst of twelve acres with many trees. "You had not more than gone," said George, "when I began to think

'what if some one should come to rob the house and I could not defend it. And they could *never know* that I had not betrayed their trust.'

George spent his Sundays under our trees, sometimes on guard in the orchard, which rather amused him; and I generally gave him an hour of my time, suggesting lines of work by which he could honestly earn his living, and trying my best to raise his moral standards. But he reserved his right to plan the general course of his life, or, as he would have said, to follow his own line of business. He knew that his work with us was but for the time, and he would never commit himself as to his future. This was the way he stated his position:

"I have no health; I like a comfortable place to sleep and good things to eat; I like a good class of entertainments and good books, and to buy magazines and send them to my friends in prison, and I like to help a man when he is just out of prison. Now, you ask me to forego all this; to work hard just to earn the barest living—for I could never earn big wages; you ask me to deny myself everything I care for just for the sake of a moral idea, when nobody in the world but you cares whether I go to the devil or not, and I don't really believe in either God or devil. Now, how many churchgoing men do you know who would give up a money-making business and accept the barest poverty and loneliness just for the sake of a moral idea?" And I wondered how many, indeed.

However, for all his arguments in defence of his way of life, when the time came to leave us better desires had taken root. My mother's taking his honesty for granted had its effect, and seemed to commit him to an effort in the right direction. We had fitted him out with respectable clothing and he had earned money to last several weeks. My mother gave him a letter of recommendation as gardener and he left us to seek employment in the parks of a large city.

But his appearance was against him and he had no luck in the first city where he applied; the time of the year, too, was unfavorable; and before his money had quite melted away he invested the remainder in a peddler's outfit of needles and other domestic requisites. These he sold among the wives of farmers, and in that way managed to keep body and soul together for a time.

Frequent letters kept me informed of his whereabouts, though little was said of his hardships.

One morning George appeared at our door seeming more dulled and depressed than I had ever seen him. He stayed for an hour or more but was not very communicative. It was evident, however, that he had found the paths of honesty quite as hard as the way of the transgressor. As he was leaving he said:

"You may not believe me, but I walked all night in order to have this visit with you. I was off the railroad and couldn't otherwise make connections with this place in time to keep an appointment with a friend this evening; and I wanted to see you."

He hurried away then without giving me time for the inevitable surmise that the "friend" whom he was to meet was an "old pal," and leaving me to question whether I had another friend on earth who would walk all night in order to see me.

Only once again did I see George; he was looking more prosperous then, and handed me a ten-dollar bill, saying: "At last I can return the money you lent me; I wanted to long ago but couldn't."

I did not remember having lent him the money, and so I told him. "But I want you to take it anyway," he said.

And then, brought face to face with the thief in the man, I replied:

"I cannot take from you money that is not honestly yours."

Flushing deeply he slowly placed the bill among some others, saying: "All right, but I wanted you to take it because I knew that you would make better use of it than I shall." Never had the actual dividing line between honesty and dishonesty been brought home to George as at that moment; I think for once he realized that right and wrong are white and black, not gray.

For some years after I had occasional notes from George; I answered them if an address was given, but his was then a roving life. Always at Christmas came a letter from him with the season's greetings to each member of the family, and usually containing a line to the effect that he was "still in the old

business." When my sister was married, on my mother's golden wedding-day, among the notes of congratulation to the bride of fifty years before and the bride of the day was one from George; and through good or ill report George never lost his place in the regard of my mother.

His last letter was written from an Eastern Catholic hospital where he had been ill. Convalescent he then was "helping the sisters," and he hoped that they might give him employment when he was well. Helpful I knew he would be, and loyal to those who trusted him. I wrote him at once but received no reply; and the chances are, as I always like to think, that the last days of George were apart from criminal associations, and that the better elements in his nature were in the ascendant when the end came.

I believe George was the only one of my prisoners who even made a bluff in defence of the kind of life he had followed; and in his heart he knew that it was all wrong. I do not defend him, but I do not forget that the demoralization of the man, his lack of moral grip, was the logical product of the schools of crime, the jails, and prisons in which so much of his youth was passed. Yes, the life of George stands as a moral failure; and yet as long as flowers bloom in that garden where he and my mother spent so many pleasant hours helping the roses to blossom more generously, so long will friendly memories cluster around the name of George, and he certainly did his part well in the one opportunity that life seems to have offered him.

CHAPTER III

During the last twenty-five years there has been a general tendency to draw sharp hard-and-fast dividing lines between the "corrigible" and the "incorrigible" criminal. It has been assumed that a man only once convicted of a crime may yet be amenable to reform, but that a second or third conviction—convictions, not necessarily crimes—is proof that a man is "incorrigible," that the criminal dye is set and the man should therefore be permanently removed from society. This really does appear a most sensible arrangement as we look down upon the upper side of the proposition; to those who look up to it from below the appearance is altogether different.

A distinguished professor in a law school has said: "If any person shall be a third time convicted of *any crime, no matter of what nature*, he should be imprisoned at hard labor for life." At a National Prison Congress in 1886 another eminent professor thus indorsed this sentiment: "I believe there is but one cure for this great and growing evil, and this is the imprisonment for life of the criminal once pronounced 'incorrigible.'" Later the governor of my own State told me that he would consider no petition for shortening the sentence of an "habitual criminal." Any leniency of attitude was stigmatized as "rose-water sentiment." And the heart of the community hardened itself against any plea for the twice-convicted man. What fate he was consigned to was not their affair so long as he was safely locked up.

In our eagerness for self-protection at any cost we lose sight of the fact that the criminal problem is one of conditions quite as much as of "cases." In our large cities, the great reservoirs of crime, we are but reaping the harvest of centuries of evil in older civilizations, and in our own civilization as well.

So far we have been dealing with effects more than with causes. Indeed, our dealings with lawbreakers, from the hour of arrest to the hour of discharge from prison have served to increase rather than to diminish the causes of crime. True enough it is that thousands of our fellow men have found life

one great quicksand of criminal and prison experience in which cause and effect became in time inextricably tangled.

And it sometimes happens that the twice-convicted man is in no way responsible for his first conviction, as happened to James Hopkins, a good boy reared in a New England family to a belief in God and respect for our courts. He was earning his living honestly when he was arrested on suspicion in Chicago and convicted of a burglary of which he knew nothing. He knew nothing either of the wiles of the courts and depended on his innocence as his defence. But the burglary was a daring one; some one must be punished, no other culprit was captured, so Hopkins was sent to one of our schools of crime supported by public taxation under the name of penitentiaries. Pure homesickness simply overpowered the boy at first. "Night after night I cried myself to sleep," he told me. His cell happened to be on the top row where there was a window across the corridor, and summer evenings he could look across out into a field so like the field at home where he had played as a child. But the darkness of the winter evening shut out every glimpse of anything associated with home. He had not written his mother; he could not disgrace her with a letter from a convict son. She had warned him of the dangers of the city, but she had never dreamed of what those dangers really were. She firmly believed that the courts were for the protection of the innocent, and would she believe that a court of justice had sent an innocent man to prison? He lost all faith in God and his heart hardened. Branded as a criminal, a criminal he resolved to be; and when I met him twenty years later he had a genuine criminal record as a scientific safe-blower.

In spite of his criminal career some of the roots of the good New England stock from which he was descended cropped out. With me he was the gentleman pure and simple, discussing courts and prisons in a manner as impersonal as my own; and he was a man of intelligence and an interesting talker. I had come in touch with Hopkins because I was at the time planning the future of his young cell-mate and I wanted the advice of the older man, as well as his assistance in preparing the younger to meet the responsibilities and temptations of freedom; and a better assistant I could not have had. Concerning his own future Hopkins maintained discreet reserve and unbroken silence as to his inner life. He had deliberately stifled a Puritan conscience; but I doubt if it was completely silenced, for while the

lines in his face indicated nothing criminal nor dissipated it was the face of a man in whom hope and ambition were forever dead, a face of unutterable sadness.[\[3\]](#)

I am free to admit that when I glance over the newspaper reports of brutal outrages and horrible crimes my sympathy swings over wholly to the injured party; I, too, feel as if no measure could be too severe for the perpetrator of the crime. That there are human beings whose confinement is demanded by public safety I do not question, but modern scientific study is leading us to the conclusion that back of abnormal crimes are abnormal physiological conditions or abnormal race tendencies. And the "habitual criminal" is *not* so designated because of the nature of his crimes but because of the number of his infractions of the law.

I might have concurred with the opinions of the learned professors were it not that just when legislation in my own State was giving no quarter to second and third offenders I was being led into the midst of this submerged tenth of our prison population, and my loyalty to their cause has been unswerving ever since.

"Have any of your 'habituals' permanently reformed?" I am asked.

They certainly have, more of them than even my optimism expected and under circumstances when I have been amazed that their moral determination did not break. In my preconceived opinion, the most hopeless case I ever assisted surprised me by settling down, under favorable environment, into an honest, self-supporting citizen; and we may rest assured that he is guarding his boys from all knowledge of criminal life.

After I came to understand how all the odds were against the penniless one, scarred and crippled by repeated crimes and punishments, it was not his past nor his future that interested me so deeply as *what was left of the man*. I suppose I was always in search of that something which we call the soul. And I sometimes found it where I least looked for it—among the very dregs of convict life.

John Bryan stands out in clear relief in this connection. How well I remember my first meeting with this man, who was then more than forty years old, in broken health, serving a twenty-year sentence which he could

not possibly survive. He had no family, received no letters, was utterly an outcast. Crime had been his "profession."^[4] His face was not brutal, but it was hard, guarded in expression and seamed with lines. The facts of his existence he accepted apparently without remorse, certainly without hope. This was life as he had made it, yes—but also as he had found it. His friends had been men of his own kind, and, judged by a standard of his own, he had respected them, trusted them, and been loyal to them. I knew this well for I sought his acquaintance hoping to obtain information supposed to be the missing link in a chain of evidence upon which the fate of another man depended. I assured Bryan that I would absolutely guard the safety of the man whose address I wanted, but Bryan was uncompromising in his refusal to give it to me, saying only: "Jenkins is a friend of mine. You can't induce me to give him away. You may be sincere enough in your promises, but it's too risky. I don't know you; but if I did you couldn't get this information out of me." Knowing that "honor among thieves" is no fiction I respected his attitude.

However, something in the man interested me, and moved to break in upon the loneliness and desolation of his life I offered to send him magazines and to answer any letters he might write me. Doubtless he suspected some ulterior motive on my part, for in the few letters that we exchanged I made little headway in acquaintance nor was a second interview more satisfactory. Bryan was courteous—my prisoners were always courteous to me—but it was evident that I stood for nothing in his world. One day he wrote me that he did not care to continue our correspondence, and did not desire another interview. Regretting only that I had failed to touch a responsive chord in his nature I did not pursue the acquaintance further.

Some time afterward, when in the prison hospital, I noticed the name "John Bryan" over the door of one of the cells. Before I had time to think John Bryan stood in the door with outstretched hand and a smile of warmest welcome, saying:

"I am so glad to see you. Do come in and have a visit with me."

"But I thought you wanted never to see me again," I answered.

"It wasn't *you* I wanted to shut out. It was the thought of the whole dreadful outside world that lets us suffer so in here, and you were a part of that

world."

In a flash I understood the world of meaning in his words and during the next hour, in this our last meeting, the seed of our friendship grew and blossomed like the plants of the Orient under the hand of the magician. It evidently had not dawned on him before that I, too, knew his world, that I could understand his feeling about it.

For two years he had been an invalid and his world had now narrowed to the "idle room," the hospital yard, and the hospital; his associates incapacitated, sick or dying convicts; his only occupation waiting for death. But he was given ample opportunity to study the character and the fate of these sick and dying comrades. He made no allusion to his own fate but told me how day after day his heart had been wrung with pity, with "the agony of compassion" for these others.

He knew of instances where innocent men were imprisoned on outrageously severe and unjust sentences, of men whose health was ruined and whose lives were blighted at the hands of the State for some trifling violation of the law; of cases where the sin of the culprit was white in comparison with the sin of the State in evils inflicted in the name of justice. He counted it a lighter sin to rob a man of a watch than to rob a man of his manhood or his health. It was, indeed, in bitterness of spirit that he regarded the courts and the churches which stood for justice and religion, yet allowed these wrongs to multiply. His point of View of the prison problem was quite the opposite of theirs.

Now, as I could have matched his score with cases of injustice, as my heart, too, had been wrung with pity, when he realized that I believed him and felt with him the last barrier between us was melted.

There were at that time few persons in my world who felt as I did on the prison question, but in this heart suddenly opened to me I found many of my own thoughts and feelings reflected, and we stood as friends on the common ground of sympathy for suffering humanity.

Another surprise was awaiting me when I changed the subject by asking Bryan what he was reading. It seemed that his starving heart had been seeking sympathy and companionship in books. He had turned first to the

Greek philosophers, and in their philosophy and stoicism he seemed to have found some strength for endurance; but it was in the great religious teachers, those lovers of the poor, those pitiers of the oppressed, Jesus Christ and Buddha, that he had found what he was really seeking. He had been reading Renan's "Jesus," also Farrar's "Life of Christ," as well as the New Testament.

"Buddha was great and good and so were some of the other religious teachers," he said, "but Jesus Christ is better than all the rest." And with that Friend of the friendless I left him.

Strange indeed it seemed how the criminal life appeared to have fallen from him as a garment, and yet in our prison administration this man stood as the very type of the "incurable." What his course of action would have been had Bryan been given his freedom I should not care to predict. Physically he was absolutely incapable of supporting himself honestly, and he might have agreed with another who said to me: "Any man of self-respect would rather steal than beg." There are those to whom no bread is quite so bitter as the bread of charity. But I am certain that the John Bryan who revealed himself to me in that last interview was the *real* man, the man who was going forward, apparently without fear, to meet the judgment of his Maker.

A noted preacher once said to me: "Oh, give up this prison business. It's too hard on you, too wearing and depressing." And I replied: "Not all the preachers in the land could teach me spiritually what these convicts are teaching me, or give me such faith in the ultimate destiny of the human soul." Perhaps my experience has been exceptional, but it was the older criminals, the men who had sowed their wild oats and come to their senses, who most deepened my faith in human nature.

I am glad to quote in this connection the words of an experienced warden of a large Eastern penitentiary, who says: "I have yet to find a case where I believe that crime has been taught by older criminals to younger ones. I believe, on the contrary, that the usual advice of the old criminal to the boys is: 'See what crime has brought me to, and when you get out of here behave yourselves.'"

My whole study of "old-timers" verifies this statement; moreover, I am inclined to believe that in very many instances the criminal impulses

exhaust themselves shortly after the period of adolescence, when the fever of antagonism to all restraint has run its course, so to say; and I believe the time is coming when this branch of the subject will be scientifically studied.

It is greatly to be regretted that the juvenile courts, now so efficient in rescuing the young offender from the criminal ranks, had not begun their work before the second or third offence had blotted hope from the future of so many of the younger men in our penitentiaries; for the indeterminate sentence under the board of pardons has done little to mitigate the fate of those whose criminal records show previous convictions.

Hitherto we have been dealing with crimes. But the time is at hand when we shall deal with men.^[5]

FOOTNOTES:

^[3] We instinctively visualize "confirmed criminals" with faces corresponding to their crimes. But our prejudices are often misleading. I once handed to a group of prison commissioners the newspaper picture of a crew of a leading Eastern university. The crew were in striped suits and were assumed to be convicts, with the aid of a little suggestion. It was interesting to see the confidence of the commissioners as they pronounced one face after another "the regular criminal type." The fact is that with one or two exceptions my "habituals," properly clothed, might have passed as church members, some of them even as theological students.

^[4] I seldom heard the terms "habitual" or "incorrigible" used by men of his class, but the "professionals" seemed to have a certain standing with each other.

^[5] For full discussion of this matter the reader is referred to "Individualism in Punishment," by M. Salielles, one of the most valuable contributions yet made to the study of penology. Also Sir James Barr's "The Aim and Scope of Eugenics" demands the recognition of the *individual* in the criminal.

CHAPTER IV

Alfred Allen was one of my early acquaintances among prisoners, having had the good fortune to receive his sentence on a second conviction before the habitual-criminal act was in force in Illinois. Our introduction happened in this way: in one of my interviews with a young confidence man, who did not hesitate to state that he had always been studying how to sell the imitation for the genuine, to get something for nothing, my attention was diverted by his suddenly branching off into a description of his cell-mate.

"Alfred is the queerest sort of a chap," the man began. "He's a professional burglar, and the most innocent fellow I ever knew; always reading history and political economy, and just wild to get into the library to work. He hasn't a relative that he knows and never has a visit nor a letter, and I wish you'd ask to see him."

On this introduction I promised to interview Alfred Allen the next evening. The warden allowed me the privilege of evening interviews with prisoners, the time limited only by the hour when every man must be in his cell for the night.

It was an unprecedented event for Alfred to be called out to see a visitor, and he greeted me with a broad smile and two outstretched hands. With that first hand-clasp we were friends, for the door of that starved and eager heart was thrown generously open and all his soul was in his big dark eyes. I understood instantly what the other man meant by calling Alfred "innocent," for a more direct and guileless nature I have never known. The boy, for he was not yet twenty-one, had so many things to say. The flood-gates were open at last. I remember his suddenly pausing, then exclaiming: "Why, how strange this is! Ten minutes ago I'd never seen you, and now I feel as if I'd known you all my life."

In reply to my inquiries he rapidly sketched the main events in his history. Of Welsh parentage he had learned to read before he was five years old, when his mother died. While yet a child he lost his father, and when ten years old, a homeless waif, morally and physically starving, in the struggle

for existence he was a bootblack, newsboy, and sometimes thief. "To get something to eat, clothes to cover me, and a place to sleep was my only thought; these things I must have. Often in the day I looked for a place where the sun had warmed the sidewalk beside barrels, and I'd go there to sleep at night."

At last, when about thirteen years old, he found a friendly, helping hand. A man whose boots he had blacked several times, who doubtless sized up Alfred as to ability, took the boy to his house, fed him well, and clothed him comfortably. Very anxiously did the older man, who must have *felt* Alfred's intrinsic honesty, unfold to the boy the secret of his calling and the source from which he garnered the money spent for the comfort of the street waif. And Alfred had small scruple in consenting to aid his protector by wriggling his supple young body through small apertures into buildings which he had no right to enter. And so he was drifted into the lucrative business of store burglary.^[6] After the strain and stress and desperate scramble for existence of the lonely child, one can imagine how easily he embraced this new vocation. It was a kind of life, too, which had its fascination for his adventurous spirit; it even enabled him to indulge in what was to him the greatest of luxuries, the luxury of giving. His own hardships had made him keenly sensitive to the suffering of others. But Alfred was not of the stuff from which successful criminals are made, for at eighteen he was in prison for the second time and was classed with the incorrigible.

It was during this last imprisonment that thought and study had developed his dominant trait of generosity into a broader altruism. He now realized that he could serve humanity better than by stealing money to give away. He was studying the conditions of the working and of the criminal classes, the needs of the side of society from which he was an outgrowth. The starting-point of this change was an Englishman's report of a visit to this country as "A place where each lived for the good of all." (?) "When I read that," said Alfred, "I stopped and asked myself: 'Have I been living for the good of all?' And I saw how I had been an enemy to society, and that I must start again in the opposite direction." It was not the cruelty of social conditions which he accused for his past. His good Welsh conscience came bravely forward and convicted him of his own share in social wrong-doing. "Now that I'm going to be a good man," Alfred continued, "I suppose I must

be a Christian"—reversing the usual order of "conversion"—"and so I've been studying religion also lately. I've been hard at work trying to understand the Trinity." Alfred did not undertake things by halves.

I advised him not to bother with theology, but to content himself with the clear and simple working principles of Christianity, which would really count for something in his future battle with life.

When we touched upon books I was surprised to find this boy perfectly at home with his Thackeray and his Scott, and far more deeply read in history and political economy than I. He said that he had always read, as a newsboy at news-stands, at mission reading-rooms, wherever he could lay his hands on a book. He talked fluently, picturesquely, with absolute freedom from self-consciousness.

In Alfred's physiognomy—his photograph lies before me—there was no trace of the so-called criminal type; his face was distinctively that of the student, the thinker, the enthusiast. His fate seemed such a cruel waste of a piece of humanity of fine fibre, with a brain that would have made a brilliant record in any university. But the moral and physical deprivations from which his boyhood suffered had wrought havoc with his health and undermined his constitution.

This November interview resulted immediately in a correspondence, limited on Alfred's side to the rule allowing convicts to write but one letter a month. On my part, the letters were more frequent, and magazines for the Sundays were regularly sent. Alfred was a novice in correspondence, probably not having written fifty letters in his life. I was surprised at the high average of his spelling and the uniform excellency of his handwriting. In order to make the most of the allotted one leaf of foolscap paper he left no margins and soon evolved a small, upright writing, clear and almost as fine as magazine type.

In using Alfred's letters I wish I might impart to others the power to read between the lines that was given me through my acquaintance with the writer. I could hear the ring in his voice and often divine the thought greater than the word. But in letting him speak for himself he will at least have the advantage of coming directly in contact with the mind of the reader. The first extracts are taken from one of his earliest letters.

"MY DEAR FRIEND:

"On coming back to my cell the day after Christmas, I saw a letter, a magazine and a book lying on my bed. I knew from the handwriting that they came from you. After looking at my present and reading the sunshiny letter I tried to eat my dinner. But there was a lump in my throat that would not let me eat, and before I knew what was up I was crying over my dear friend's remembrance. I was once at a Mission Christmas tree where I received a box of candy. But yours was my first individual gift. It is said that the three most beautiful words in the English language are Mother, Home and Heaven. I have never known any of them. My first remembrance is of being in a room with the dead body of my mother. All my life it seems as if everybody I knew belonged to some one; they had mother, brother, sister, some one. But I belonged to no one, and I never could repress the longing in my heart to belong to somebody. I have my God, but a human heart cannot help longing for human as well as divine sympathy."

In a similar vein in another letter he writes:

"I've sometimes wondered if I should have been a different boy if circumstances in my childhood had been better. I have seen little but misery in life. In prison and out it has been my fate to belong to the class that gets pushed to the wall. I have walked the streets of Chicago to keep myself from freezing to death. I have slept on the ground with the rain pouring down upon me. For two years I did not know what bed was, while more than once I have only broken the fast of two or three days through the kindness of a gambler or a thief. This was before I had taken to criminal life as a business.... Still when I think it over I don't see how I could have kept in that criminal life. I remember the man who taught me burglary as a fine art told me I would never make a good burglar because I was too quick to feel for others."

Only once again did Alfred refer to the bitter experiences of his childhood and that was in a conversation. He had many other things to write about, and his mind was filled with the present and the future. Four years of evenings in a cell in a prison with a good library give one a chance to read and think, although an ill-lighted, non-ventilated four-by-seven cell, after a

day of exhausting work, is not conducive to intellectual activity. The godsend this prison library was to Alfred is evident through his letters.

"All my life," he writes, "I have had a burning desire to study and educate myself, and I do not believe that a day has passed when I have not gone a little higher. Some time ago I determined to read a chapter in the new testament every night, though I expected it would be tedious. But behold! The first thing I knew I was so interested that I was reading four or five chapters every night. The Chaplain gave me a splendid speller and I'm going to study hard until I know every word in it."

Proof that Alfred was a genuine book-lover runs through many of his letters. He tells me:

"Much as I hate this place if I could be transferred to the library from the shop I should be the happiest boy in the State. I'd be willing to stay an additional year in the prison. Twice when they needed an extra man in the library they sent me. It was a joy just to handle the books and to read their titles and I felt as if they knew that I loved them.... Thank you for the *Scribner Magazine*. But the leaves were uncut. I want all the help and friendship you can spare me. I am glad to have any magazine you are through with. But you must not buy new ones just for me. The *Eclectic* and *Harpers* were most welcome. *Man versus the State* was a splendid article, also, *Education as a Factor in Prison Reform*, and Prof. Ely on the Railroad Problem. The magazines you send will do yoeman service they are passed on to every man my cell-mate or I know."[\[7\]](#)

Alfred was devoted to the writings of John Draper and devoured everything within his reach on sociology, especially everything relating to the labor problems. He had theories of his own on many lines of public welfare, but no taint of anarchy or class hatred distorts his ideals of justice for all. He always advocates constructive rather than destructive measures.

Occasionally Alfred refers to the poets. He enjoys Oliver Wendell Holmes, and Lowell is an especial favorite; while delighting in the "Biglow Papers," he quotes with appreciation from Lowell's more serious poetry. The companionship of Thackeray, Dickens, and Scott brightened and mellowed many dark, hard hours for Alfred. "Sir Walter Scott's novels broke my taste for trashy stuff," he writes. Naturally, Victor Hugo's "Les Miserables"

absorbed and thrilled him. "Shall I ever forget Jean Valjean, the galley slave; or Cosette? While reading the story I thought such a character as the Bishop impossible. I was mistaken." Of Charles Reade he says: "One cannot help loving Reade. He has such a dashing, rollicking style. And then he hardly ever wrote except to denounce some wrong or sham." Even in fiction his preference follows the trend of his burning love and pity for the desolate and oppressed. How he would have worshipped Tolstoi!

Complaint or criticism of the hardships of convict life forms small part of the thirty letters written me by Alfred while in prison. He takes this stand: "I ought not to complain because I brought this punishment upon myself." "I am almost glad if anyone does wrong to me because I feel that it helps balance my account for the wrongs I have done others." Shall we never escape from that terrible idea of the moral necessity of expiation, even at the cost of another?

Nevertheless, Alfred feels the hardships he endures and knows how to present them. And he is not "speaking for the gallery" but to his one friend when he writes:

"Try to imagine yourself working all day on a stool, not allowed to stand even when your work can be better done that way. If you hear a noise you must not look up. You are within two feet of a companion but you must not speak. You sit on your stool all day long and work. Nothing but work. Outside my mind was a pleasure to me, in here it is a torture. It seems as if the minutes were hours, the hours days, the days centuries. A man in prison is supposed to be a machine. So long as he does ten hours' work a day—don't smile, don't talk, don't look up from his work, does work enough to suit the contractors and does it well and obeys the long number of unwritten rules he is all right. The trouble with the convicts is that they can't get it out of their heads that they are human beings and not machines. The present system may be good statesmanship. It is bad Christianity. But I doubt if it is good statesmanship to maintain a system that makes so many men kill themselves, go crazy, or if they do get out of the Shadow alive go out hating the State and their fellowmen. As a convict said to me, 'It's funny that in this age of enlightenment they have not found out that to brutalize a man will never reform him. I have not been led to reform by prison life. It has made

me more bitter at times than I thought I ever could be. One cannot live in a prison without seeing and hearing things to make one's blood boil....'

"Times come to me here when it seems as if I could not stand the strain any longer. Then again, even in this horrid old shop I have some very happy times, thinking of your friendship and building castles in the air. My favorite air castle is built on the hope that when my time is out I can get into a printing office and in time work up to be an editor. And perhaps do a little something to help the poor and to aid the cause of progress. Shall I succeed in my dream? Do we ever realize our ideals?"

"I wonder if ever a sculptor wrought
Till the cold stone warmed to his ardent heart;
Or if ever a painter with light and shade
The dream of his inmost heart portrayed."

"I did have doubts as to whether Spring was really here till the violets came in your letter. Now I am no longer an unbeliever. I am afraid that I love all beautiful things too much for my own comfort. If a convict cares for beauty that sensitiveness can only give him pain while in prison. I love music and at times I have feelings that it seems to me can only be expressed through music; and I hope I shall be able to take piano lessons some time."

I discovered later that there was a strain of the old Welsh minstrel in Alfred's blood, but small prospect there was at that time of his ever realizing the hope of studying music. For all this while the boy was steadily breaking down under the strain of convict life, the "nothing but work" on a stool for ten hours a day on the shoe contract. Physical exhaustion was evident in the handwriting of the shorter letters in which he tells me of nature's revolt against the prison diet, and how night after night he "dreams of things to eat." "I sometimes believe I am really starving to death," he writes. But the trouble was not so much the prison food as that the boy was ill.

I went to see him at about this time and was startled by the gaunt and famished face, the appeal of the hungry eyes that looked into mine. I felt as if starvation had thrust its fangs into my own body, and all through the

night, whether dreaming or awake, that horror held me. Fortunately: for well I knew there would be no rest for me until forces were set in motion to bring about a change for the better in Alfred.

In the general routine of prison life, if the prison doctor pronounces a convict able to work the convict must either work or be punished until he consents to work; or——? In the case of Alfred or in any case I should not presume to assign individual responsibility, but as soon as the case was laid before the warden Alfred was given change of work and put on special diet with most favorable results as to health.

Alfred's imprisonment lasted about two years after I first met him, this break in health occurring in the second year. As the day of release drew near his hopes flamed high, breaking into words in his last letter.

"Next month I shall be a free man! Think of it! A free man. Free to do everything that is right, free to walk where I please on God's green earth, free to breathe the pure air, and *to help the cause of social progress* instead of retarding it as I have done."

Now, I had in Chicago a Heaven-sent friend whose heart and hand were always open to the needs of my prisoners, indeed to the needs of all humanity. This friend was a Welsh preacher. He called upon me in Chicago one November afternoon when I had just returned from a visit to the penitentiary. I was tingling with interest in the Welsh prisoner whom I had met for the first time the evening before. Sure of my listener's sympathy I gave myself free rein in relating the impression that Alfred made upon me. I felt as if I had clasped the hand of Providence itself—and had I not?—when my friend said:

"Your Welsh boy is a fellow countryman of mine. If you will send him to me when released I think I can open a way for him." This prospect of a good start in freedom was invaluable to Alfred, giving courage for endurance and a moral incentive for the rest of his prison term.

Every man when released from prison in my State is given a return ticket to the place from which he was sent, ten dollars in cash, and a suit of clothing. These suits are convict-made, and while not distinctive to the ordinary observer, they are instantly recognizable to the police all over the State.

Half-worn suits I had no difficulty in obtaining through my own circle of friends. So when Alfred's day of freedom came a good outfit of business clothing was awaiting him and before evening no outward trace of his convict experience remained.

According to previous arrangement Alfred went directly to the Welsh preacher. This minister was more than true to his promise, for he entertained the boy at his own home over night, then sent him up to a small school settlement in an adjoining State where employment and a home for the winter had been secured, the employer knowing Alfred's story.

And there for the first time in his life Alfred had some of the right good times that seem the natural birthright of youth in America. Here is his own account:

"I had a splendid time Thanksgiving. All the valley assembled in the little chapel, every one bringing baskets of things to eat. There were chickens, geese and the never-forgotten turkey, pies of every variety of good things known to mortal man. In the evening we boys and girls filled two sleighs full of ourselves and went for a sleigh-ride. You could have heard our laughing and singing two miles off. We came back to the school house where apples, nuts, and candy were passed round, and bed time that night was twelve o'clock."

It was not the good times that counted so much to Alfred as the chance for education. He began school at once, and outside of school hours he worked hard, not only for his board but picking up odd jobs in the neighborhood by which he could earn money for personal expenses. He carried in his vest pocket lists of words to be memorized while working, and still wished "that one did not have to sleep but could study all night." The moral influences were all healthful as could be. The people among whom he lived were industrious, intelligent, and high-minded. Among his studies that winter was a course in Shakespeare, and the whole mental atmosphere was most stimulating. Within a few months a chance to work in a printing-office was eagerly accepted and it really seemed as if some of his dreams might come true. But while the waves on the surface of life were sparkling, beneath was the perilous undertow of disease. Symptoms of tuberculosis appeared, work in the printing-office had to be abandoned after a few weeks, and Alfred's

doctor advised him to work his way toward the South before cold weather set in; as another severe Northern winter would probably be fatal. After consultation with his friends this course was decided upon; and, confident in the faith that he could surely find transient work with farmers along the line, he fared forth toward the South, little dreaming of the test of moral fibre and good resolutions that lay before him. The child had sought refuge from destitution in criminal life from which his soul had early revolted; but the man was now to encounter the desperate struggle of manhood for a foothold in honest living.

For the first month all went fairly well, then began hard luck both in small towns and the farming country.

"The farmers have suffered two bad seasons; there seems to be no money, and there's hardly a farm unmortgaged," he wrote me, and then: "When I had used the last penny of my earnings I went without food for one day, when hunger getting the best of me, I sold some of my things. After that I got a weeks work and was two dollars ahead. I aimed for St. Louis, one hundred miles away and walked the whole distance. What a walk it was! I never passed a town without trying for work. The poverty through there is amazing. I stuck to my determination not to beg. I must confess that I never had greater temptation to go back to my old life; and I think if I can conquer temptation as I did that day when I was so hungry I need have no fears for the future.

"I reached St. Louis with five cents in my pocket. For three days I walked the streets of the City trying to get work but without success. I scanned the papers for advertisements of men wanted, but for every place there were countless applicants. My heart hurt me as I walked the streets to see men and women suffering for the bare necessities of existence. The third night I slept on the stone steps of a Baptist Church. Then I answered an advertisement for an extra gang of men to be shipped out to work on railroad construction somewhere in Arkansas. A curious crew it was all through; half the men were tramps who had no intention of working, several were well-dressed men who could find nothing else to do, some were railroad men who had worked at nothing else. When one of the brakemen found where we were bound for he said, 'That place! You'll all be in the hospital or dead, in two months.'

"The second evening we stopped at the little town where we now are. The work is terrible, owing to the swamps and heat. Out of the twenty five who started only eight are left. Yesterday I fainted overcome by the heat, but if it kills me I shall stick to the work until I find something better."

The work did not kill Alfred, but malarial fever soon turned the workmen's quarters into a sort of camp hospital where Alfred, while unable to work, developed a talent for nursing those who were helpless. His letters at this time were filled with accounts of sickness and the needs of the sick. He had never asked me for money; it seemed to be almost a point of honor among my prison friends *not* to ask me for money; but "if you could send me something to get lemons for some of the boys who haven't a cent" was his one appeal; to which I gladly responded.

Better days were on the way, however. Cooler weather was at hand, and during the winter Alfred found in a lumber mill regular employment, interrupted occasionally by brief illnesses. On the whole, the next year was one of prosperity. Life had resolved itself into the simple problem of personal independence, and with a right good will Alfred took hold of the proposition, determined to make himself valuable to his employer. That he accomplished this I have evidence in a note of unqualified recommendation from his employer.

When the family with whom he had boarded for a year were about to leave town he was offered the chance to buy their small cottage for two hundred and fifty dollars, on monthly payments; and by securing a man and his wife as tenants he was able to do this.

"At last, I am in my own house," he writes me. "I went out on the piazza to-day and looked over the valley with a feeling of pride that I was under my own roof. I have reserved the pleasant front room for myself, and I have spent three evenings putting up shelves and ornamenting them and trying to make the room look pretty. I shall get some nice mouldings down at the mill to make frames for the pictures you sent me. And I'm going to have a little garden and raise some vegetables."

But the agreeable sense of ownership of a home and pleasure in the formation of social relations were invaded by haunting memories of the past. The brighter possibilities opened to his fancy seemed but to emphasize

his sense of isolation. Outward conditions could not alter his own personality or obliterate his experiences. It was a dark hour in which he wrote:

"How wretched it all is, this tangled web of my life with its suffering, its sin and its retribution. It is with me still. I can see myself now standing inside the door of my prison cell, looking up to the little loop-hole of a window across the corridor, trying to catch a glimpse of the blue heavens or of a star, longing for pure air and sunshine, longing for freedom....

"Strong as is my love for woman, much as I long for someone to share my life, I don't see how I can ever ask any woman to take into her life half of that blackened and crime-stained page of my past. I must try to find happiness in helping others."

But nature was too much for Alfred. Not many months later he tells me that he is going to be married and that his sweetheart, a young widow, "is kind and motherly. When I told her all of my past she said, 'And so you were afraid I would think the less of you? Not a bit. It only hurts me to think of all you have been through.'"

The happy letters following this marriage give evidence that the tie of affection was strong between the two. Here we have a glimpse of the early married days:

"I have been making new steps to our house, putting fancy wood work on the porch and preparing to paint both the inside and the outside of the house next month."—Alfred was night-watch at the lumber mill.—"It is four o'clock in the afternoon; I am writing by an open window where I can look out and see my wife's flowers in the garden. I can look across the valley to the ridge of trees beyond, while the breeze comes in bringing the scent of the pines. Out in the kitchen I can hear my wife singing as she makes some cake for our supper. But my old ambition to own a printing office has not left me. I am still looking forward to that."

Just here I should like to say: "And they lived happy ever after." But life is not a fairy-story; to many it seems but a crucible through which the soul is passed. But the vicissitudes that followed in Alfred's few remaining years were those of the common lot. In almost every letter there were indications

of failing health, causing frequent loss of time in work. Three years after his marriage, in the joy of fatherhood, Alfred writes me of the baby, of his cunning ways and general dearness; and of what he did when arrayed in some little things I had sent him. Then, when the child was a year old came an anxious letter telling of Baby Alfred's illness, and then:

"MY DEAR FRIEND:

"My baby is dead. He died last night.

"ALFRED."

This tearing of the heart-strings was a new kind of suffering, more acute than any caused by personal hardship. Wrapped in grief he writes me: "To think of those words, 'My baby's grave.' I knew I loved him dearly, but how dearly I did not know until he was taken away. It isn't the same world since he died. Poor little dear! The day after he was taken sick he looked up in my face and crowed to me and clapped his little hands and called me 'da-da,' for the last time. Oh! my God! how it hurts me. It seems at times as though my heart must break....

"Since the baby died night watching at the lumber mill has become torture to me. In the long hours of the night my baby's face comes before me with such vividness that it is anguish to think of it."

The end of it all was not far off; from the long illness that followed Alfred did not recover, though working when able to stand; the wife, too, had an illness, and the need of earnings was imperative. Alfred writes despairingly of his unfulfilled dreams, and adds: "I seem to have succeeded only in reforming myself," but even in the last pencilled scrawl he still clings to the hope of being able to work again.

I can think of Alfred only as a good soldier through the battle of life. As a child, fighting desperately for mere existence, defeated morally for a brief period by defective social conditions; later depleted physically through the inhumanity of the prison-contract system; then drawing one long breath of happiness and freedom through the kindness of the Welsh preacher; but only to plunge into battle with adverse economic conditions; and all this

time striving constantly against the most relentless of foes, the disease which finally overcame him. His was, indeed, a valiant spirit.

Of those who may study this picture of Alfred's life will it be the "habitual criminals" who will claim the likeness as their own, or will the home-making, tender-hearted men and women feel the thrill of kinship?

Truly Alfred was one with all loving hearts who are striving upward, whether in prison or in palace.

FOOTNOTES:

[6] Alfred never entered private houses.

[7] Mrs. Burnett's charming little story, "Editha's Burglar," went the rounds among the burglars in the prison till it was worn to shreds.

CHAPTER V

An habitual criminal of the pronounced type was my friend Dick Mallory. I have no remembrance of our first meeting, but he must have been thirty years old at the time, was in the penitentiary for the third time, and serving a fourteen-year sentence. Early in our acquaintance I asked him to write for me a detailed account of his childhood and boyhood, the environment and influences which had made him what he was, and also his impression of the various reformatories and minor penal institutions of which he had been an inmate. This he was allowed to do by special permission, and the warden of the penitentiary gave his indorsement as to the general reliability of his statements. The following brief sketch of his youth is summarized from his own accounts.

One cannot hold Dick Mallory as a victim of social conditions, neither was he of criminal parentage. One of his grandfathers was a farmer, the other a mechanic. His father was a working-man, his mother a big-hearted woman, thoroughly kindly and to the last devoted to her son. There must have been some constitutional lack of moral fibre in Dick, who was the same wayward, unmanageable boy known to heart-broken mothers in all classes of life. Impulsive, generous, with an overflowing sociability of disposition, he won his way with convicts and guards in the different penal institutions included in his varied experience. I hate to put it into words, but Dick was undeniably a thief; and his career as a thief began very early. When seven years of age he was sent to a parish school, and there, he tells me, "A tough set of boys they were, including myself. There I received my first lessons in stealing. We would go through all the alley ways on our way to and from school, and break into sheds and steal anything we could sell for a few cents, using the money to get into cheap theatres."

This early lawlessness led to more serious misdemeanors until the boy at thirteen was sent to the reform school. This reform-school experience—in the late seventies—afforded the best possible culture for all the evil in his nature. This reform school was openly designated a "hotbed of crime" for the State. Inevitably Dick left it a worse boy than at his entrance. Another

delinquency soon followed, for which he was sent to jail for a month, the mother hoping that this would "teach him a lesson." "It did. *But oh, what a lesson.* Oh! but it was a hard place for a boy! There were from three to seven in each cell, some of them boys younger than I, some hardened criminals. We were herded together in idleness, learning only lessons in crime. In less than six months I was there a second time. Then mother moved into another neighborhood, but alas, for the change. That same locality has turned out more thieves than any other portion of Chicago, that sin-begrimed city. From the time I became acquainted in that neighborhood I was a confirmed thief, and a constant object of suspicion to the police.

"One evening I was arrested on general principles, taken into the police station and paraded before the whole squad of the police, the captain saying, 'This is the notorious Dick Mallory, take a good look at him, and bring him in night or day, wherever you may find him.'" This completed his enmity to law and order.

Soon after followed an experience in the house of correction of which he says: "This was my first time there and a miserable time it was. Sodom and Gomorrah in their palmiest days could not hold a candle to it. You know that by this time I was no spring chicken, but the place actually made me sick; it was literally swarming with vermin, the men half starved and half clad." This workhouse experience was repeated several times and was regarded afterward as the lowest depth of moral degradation of his whole career. "I did not try to obtain work in these intervals of liberty, because I was arrested every time I was met by a policeman who had seen me before."

Thoroughly demoralized Dick Mallory sought the saloons, at first for the sake of sociability, then for the stimulant which gave temporary zest to life, until the habit of drinking was confirmed and led to more serious crimes.

Perhaps neither our modern juvenile courts nor our improved methods in reform school and house of correction would have materially altered the course of Dick Mallory's life, although a thorough course of manual training might have turned his destructive tendencies into constructive forces and the right teaching might have instilled into him some principles of good citizenship. Be that as it may, the fact remained that before this boy

had reached his majority his imprisonment had become a social necessity; he had become the very type against whom our most severe legislation has been directed.

But this was not the Dick Mallory whom I came to know so well ten years later, and who was for two years or more my guide and director in some of the best work I ever accomplished for prisoners. Strange to say, this man, utterly irresponsible and lawless as he had heretofore been, was a model prisoner. He fell into line at once, learned his trade on the shoe contract rapidly, became an expert workman, earning something like sixty dollars a year by extra work. He was cheerful, sensible, level-headed; and settled down to convict life with the determination to make the best of it, and the most of the opportunity to read and study evenings. The normal man within him came into expression. His comparison between the house of correction and the penitentiary was wholly in favor of the latter. He recognized the necessity of a strict discipline for men like himself; he appreciated the difficulties of the warden's position and his criticisms of the institutions were confined mostly to the abuses inherent in the contract system. Never coming into contact with the sick or disabled, himself blessed with the irrepressible buoyancy of the sons of Erin, physically capable of doing more than all the work required of him, his point of view of convict life and prison administration was at that time altogether different from that of John Bryan. He plunged into correspondence with me with an ardor that never flagged, covering every inch of the writing-paper allotted him, treasuring every line of my letters, and re-reading them on the long Sunday afternoons in his cell. For years he had made the most of the prison libraries. His reading was mainly along scientific lines; Galton, Draper, and Herbert Spencer he treasured especially. His favorite novel was M. Linton's "Joshua Davidson," a striking modern paraphrase of the life of Jesus. His good nature won him many small favors and privileges from the prison guards, and the time that I knew him as a prisoner was unquestionably the happiest period of his life.

We always had some young prisoner on hand, whom we were trying to rescue from criminal life. It was usually a cell-mate of Dick's with whom he had become thoroughly acquainted. And on the outside was Dick's mother always ready to help her boy set some other mother's boy on his feet. Our first mutual experiment along this line was in the beginning somewhat

discouraging. The following extract from one of Dick's letters speaks for itself, not only of our *protégé*, Harry, but of Dick's attitude in this and similar cases.

"My brother wrote me that Harry had burnt his foot and was unable to work for a month, during which time a friend of mine paid his board. On recovering he went back to work for a few days, drew his pay and left the city, leaving my friend out of pocket. Now I would like to make this loss good because I feel responsible for Harry. I have never lost confidence in him; and what makes me feel worst of all is that I am unable to let him know that I am not angry with him. I would give twenty dollars this minute if I knew where a letter would reach him.

"I have never directly tried to bring any man down to my own level, and if I never succeed in elevating myself much above my present level I would like to be the means of elevating others." However, Harry did not prove altogether a lost venture and Dick was delighted to receive better news of him later.

We had better luck next time when Ned Triscom, a young cell-mate of Dick's, was released. Dick had planned for this boy's future for weeks, asking my assistance in securing a situation and arranging for an evening school, the bills guaranteed by Dick. Our plans carried even better than we hoped. Ned proved really the right sort, and when I afterward met him in Chicago my impressions more than confirmed Dick's favorable report. But Ned was Dick's *find*, and Dick must give his own report.

"I want to thank you for what you have done for my friend Ned. He has written me every week since he left, and it does me good to know that he is on the high road to success. As soon as you begin to receive news from your friends who have met him you will hear things that will make your heart glad. He is enthusiastic in his praise of Miss Jane Addams, has spent some evenings at the Hull House, and goes often to see my mother. He is doing remarkably well with his work and earned twenty-four dollars last week. He has no relative nearer than an aunt, whom he will visit in his vacation. I never asked him *anything about his past*, and he never told me anything. I simply judged of him by what I saw of him. I always thought him out of place here and now I wonder how he ever happened to get here."

I liked Dick for never having asked Ned anything about his past. Now through Dick's interest in the boy Ned was placed at once in healthy moral environment in Chicago, and he was really a very interesting and promising young man with exceedingly good manners. He called on me one evening in Chicago and seemed as good as anybody, with the right sort of interests, and he kept in correspondence with me as long as I answered his letters.

Mrs. Mallory was as much interested in Dick's philanthropic experiments as I was, and several men fresh from the penitentiary spent their first days of freedom in the sunshine of her warm welcome and under the shelter of her hospitable roof. Thus Dick Mallory, his mother, and I formed a sort of first aid to the ex-convict society.

Another of Mallory's protégés was Sam Ellis, whose criminal sowing of wild oats appeared to be the expression of a nature with an insatiable appetite for adventure. The adventure of lawlessness appealed to him as a game, the very hazards involved luring him on, as "the red game of war" has lured many a young man and the game of high finance has ensnared many an older one.

But Sam Ellis indulged in mental adventures also—in the game of making fiction so convincing as to be accepted as fact, for Sam was born a teller of stories. Perhaps I ought to have regarded Sam as a plain liar, but I never could so regard him, for he frankly discussed this faculty as he might have discussed any other talent; and he told me that he found endless fascination in making others believe the pure fabrications of his imagination. I always felt that as a writer of fiction he would have found his true vocation and made a success. He had a feeling for literature, too, and I think he has happily expressed what companions books may be to a prisoner in the following extract from one of his letters:

"I have been fairly devouring Seneca, Montaigne, Saadi, Marcus Aurelius, Rochefoucauld, Bacon, Sir Thomas More, Shelley, Schopenhauer, Clodd, Clifford, Huxley, Spencer, Fiske, Emerson, Ignatius Donnelly, Bryan, B. O. Flower, J. K. Hosmer, and a host of lesser lights." Of Emerson he says: "We are friends. It was a great rise for me and a terrible come-down for him. I've done nothing but read, think, talk, and dream Emerson for two weeks, and familiarity only cements our friendship the stronger. It must have taken

some extraordinary high thinking to create such pure and delightful things. He uplifts one into a higher atmosphere and carries the thought along on broad and liberal lines. Instead of making one look down into the gutter to see the reflection of the sky, he has us look up into the sky itself." In hours of depression this man sought the companionship of Marjorie Fleming. Truly he understood the value of the old advice: "To divert thyself from a troublesome fancy 'tis but to run to thy bookes." And to think of that dear Pet Marjorie winging her way through the century and across the sea to cheer and brighten the very abode of gloom and despair! No desire had this man to read detective stories—he lived them—his life out of prison was full of excitement and escapade. When seasons of reflection came he turned to something entirely different; and were not the forces working upward within him as vital and active as the downward tendencies?

However that may be, neither Dick Mallory nor I succeeded in getting any firm grip on that mercurial being; but he never tried to impose on either of us, was always responsive to my interest in him, and found a chance to do me a good turn before he disappeared from my horizon in a far western mining district where doubtless other adventures awaited him. Dick Mallory always regarded Sam with warm affection, and his clear-cut personality has left a vivid picture in my memory.

I find that Dick Mallory was the centre from which radiated more of my acquaintances in the prison than from any one other source. His mind was always on the alert regarding the men around him, and he was always on the lookout for means of helping them. In one of our interviews his greeting to me was:

"There are two Polish boys here that you must see; and you must do something for them."

"Not another prisoner will I get acquainted with, Dick," was my reply. "I've more men on my list now than I can do justice to. I've not time for another one."

"It makes no difference whether you have time or not, these boys ought to be out of here and there's nobody to get them out but you," said Dick in a tone of finality.

I saw instantly that not only was the fate of the Polish boys involved, but my standing in the opinion of Mallory; for between us two was the unspoken understanding that we could count on each other, and Dick knew perfectly well that I could not fail him. Nothing in all my prison experience so warms my heart as the thought of our Polish boys. Neither of them was twenty years of age; they were working boys of good general character, and yet they were serving a fifteen-year sentence imposed because of some technicality in an ill-framed law.

My interview with the younger of the boys was wholly satisfactory. I found him frank and intelligent and ready to give me every point in his case. But with the older one it was different; he listened in silence to all my questions, refusing any reply. At last I said: "You must answer my questions or I shall not be able to do anything for you." Then he turned his great black velvet eyes upon me and said only: "You mean to do me some harm?" What a comment on the boy's experience in Chicago courts! He simply could not conceive of a stranger seeking him with any but a harmful motive. And we made no further progress that time, but when I came again there was welcome in the black velvet eyes, and with the greeting, "I know now that you are my friend," he gave me his statement and answered all my questions.

Now it seemed impossible that such a severe sentence could have been passed on those boys without some just cause. But I had faith in Dick Mallory's judgment of them, and my own impressions were altogether favorable; furthermore, my good friend the warden was convinced that grave injustice had been done.

It was two years before I had disentangled all the threads and marshalled all my evidence and laid the case before the governor. The governor looked the papers over carefully, and then said:

"If I did all my work as thoroughly as this has been done I should not be criticised as I am now. What would you like me to do for these boys?"

Making one bold dash for what I wanted I answered: "I should like you to give me two pardons that I can take to the boys to-morrow."

The governor rang for his secretary, to whom he said: "Make out two pardons for these Polish boys." And ten minutes later, with the two pardons in my hand, I left the governor's office. And so it came to pass that I was indebted to Dick Mallory for one of the very happiest hours of my life.

When I reached the prison next day the good news had preceded me. One of the officers met me at the door and clasped both my hands in welcome, saying:

"There isn't an officer or a convict in this prison who will not rejoice in the freedom of those boys, and every convict will know of it."

As for the Polish boys themselves, the blond, a dear boy, was expecting good news; but the black velvet eyes of the dark one were bewildered by the unbelievable good fortune. I stood at the door and shook hands with them as they entered into freedom, and afterward received letters from both giving the details of their homecoming. And so the purpose of Mallory was accomplished.

These are but few of the many who owed a debt of gratitude to this man. Only last year a man now dying in England, in one of his letters to me, referred gratefully to assistance given him by Mallory on his release from prison many years ago. Mallory's letters are all the record of a helping hand. Through them all runs the silver thread of human kindness, the traces of benefits conferred and efforts made on behalf of others.

And what of Dick Mallory's own life after his release from prison? He had always lacked faith in himself and in his future, and now the current of existence seemed set against him. He was thirty-two years old and more than half his life had been spent in confinement, under restraint. In his ambition to earn money for himself while working on prison contracts, he had drawn too heavily on both physical and nervous resources. In his own words: "I did not realize at all the physical condition I was in. If I could only have gone to some place where I could have recuperated under medical attention! But no! I only wanted to get to work. *All I knew was work.*"

The hard times of '93 came on, a man had to take what work he could get, and Mallory could not do the work that came in his way. His mother died

and the home was broken up. He again resorted to the sociability of the saloon, and with the renewal of old associations and under the influences of stimulants the reckless lawlessness of his boyhood again broke out into some action that resulted in a term in another prison.

The man was utterly crushed. His old criminal record was brought to light and he found himself ensnared in the toils of his past. He was bitterly humiliated—he was in no position to earn a penny, and no channel for the generous impulses still strong within him was now open. The old buoyancy of his nature still flickered occasionally from the dying embers, but gradually darkened into a dull despair as far as his own life was concerned. But his interest in others survived, and the only favors he ever asked of me were on behalf of "the boys" whom he could no longer help. He still wrote me freely and his letters tell their own story:

"At one time in our friendship I really believed that everything was possible in my future. I never meant to deceive you— And when I realized my broken promises my heart broke too. I have never been the same man since and can never be again. I cannot help looking on the dark side for life has been so hard for me. Ah! it is a hard place when you reach the stage where the future seems so hopeless as it does to me."

And hopeless it truly was; imprisonment and dissipation had done their work and his death came shortly after his release from this prison. Since his life had proved a losing game it was far better that it should end. But was not Robert Louis Stevenson right in his belief that all our moral failures do not lessen the value of our good qualities and our good deeds? The good that Mallory did was positive and enduring; and surely his name should be written among those who loved their fellow men.

To me the very most cruel stroke in the fate of Dick Mallory was this: that in the minds of many his history may seem to justify the severity of legislation against habitual criminals. With all his efforts to save others, himself he could not save—and well as he knew the injustice resulting from life sentences for "habituals," the sum of his life counted against clemency for this class.

CHAPTER VI

Dick Mallory himself was given the maximum sentence of fourteen years for larceny under the habitual-criminal act; and he did not resent the sentence in his own case because he found life in the penitentiary on the whole as satisfactory as it had been on the outside; and when I met him he had become deeply interested in the other prisoners. But he resented the fact that the "habitual act" was applied without discrimination to any one convicted of a second offence. He was doing some study on his own account of the individual men called "habituals." I never understood how Dick Mallory contrived to know as much about individual convicts as he did know; but he was a keen observer and quick-witted, and the guards and foremen often gave him bits of information. He admitted, however, that his real knowledge of the men under the "habitual act" was meagre, and asked me to make some personal observations. To this end he gave me a list of some half-dozen men whom I promised to interview, and in this way began my acquaintance with Peter Belden, an acquaintance destined to continue many years after Dick Mallory had passed beyond the reach of earthly courts.

Peter Belden was then a man something over thirty years of age, stunted in growth, somewhat deaf, with his right arm paralyzed through some accident in the prison shop. His hair, eyes, and complexion were much of a color, but his good, strong features expressed intelligence. He wore the convict stripes, which had the effect of blotting individuality throughout the prison.

Notwithstanding these physical disadvantages, a criminal record and a lifetime of unfavorable environment, some inherent force and manliness in his nature made itself felt. He took it for granted that I would not question his sincerity, neither did I. He said nothing of his own hardships, made no appeal to my sympathy, but discussed the habitual-criminal act quite impersonally and intelligently; assuming at once the attitude of one ready to assist me in any effort for the benefit of the criminal class to which he belonged.

But while he was talking about others I was thinking about him, and when I inquired what I could do for him personally he asked me to obtain the warden's permission to have a pencil and a writing-tablet in his cell, as he liked to work at mathematical problems in his cell. This was the only favor the man asked of me while he was in prison, and to this day I do not know if he thought his fourteen-year sentence was unjust. As he was quite friendless, and neither received nor wrote letters, he was only too glad to correspond with me. I was surprised on receiving his first letter to find his left-handed writing regular and clear, with only an occasional slip in spelling or in correct English.

Always interested in the origin and in the formative influences which had resulted in the criminal life of these men, I asked Belden to write for me the story of his youth; and I give it from his own letters, now before me, in his own words as far as possible:

"I have often thought that the opportunities of life have been pretty hard with me, still I have tried always to make the best of it. I know there are many who have fared worse than I, and in my pity towards them I have managed to find the hard side of life easier than otherwise.

"I was born on an island off the coast of England. My father and mother were of Irish descent, but we all spoke both English and French, and I was in school for four years before I was twelve. My studies were French and English, history, grammar and spelling; but I put everything aside for arithmetic and other branches of mathematics: as long as I can remember I had a greedy taste for figures; I earned my school expenses by doing odd jobs for a farmer, for we were very poor. My father was a hard drinker and there were fourteen of us in the family. There were days when we did not have but a meal or two, and some days when we had nothing at all to eat."

The boy's mother was ambitious for his education; she had relatives in one of our western States, and when Peter was twelve years old he was sent to this country with the understanding that he was to be kept in school.

"But instead of going to school as I had expected I was knocked and kicked about here and everywhere. My cousin would say, 'It's schoolin' ye want is it? I'll give ye schoolin',' and her schoolin' was always given with a club or

a kick. 'Learnin' and educatin'? It's too much of thim ye have already; go out and mind the cow."

The boy endured this life for several months, "dreading this cousin so much that sometimes I'd stay out all night, sleeping in the near-by woods." Then, in an hour of desperation, he decided to run away, and after two or three temporary places where he worked for his board he drifted into the lumber regions of Michigan. There his ambition for an education was gratified in an unlooked-for and most curious fashion.

During the seventies various rumors of immoral houses in connection with these lumber regions were afloat, and later measures were taken which effectually dispersed the inmates. One of these houses was kept by a college graduate from the East, who had been educated for the ministry but had deflected from the straight and narrow path into the business of counterfeiting; in consequence he spent five years in prison and afterward sought refuge from his past in the wilds of Michigan.

Chance or fate led Peter Belden, a boy of thirteen, into the circle of this man's dominion, where, strangely enough, the higher side of the boy's nature found some chance of development. Peter was given employment at this "Rossman's" as caretaker to the dogs and as general-errand boy. The man, Rossman, studied the boy, and discovering his passion for learning cemented a bond between them by the promise of an equivalent to a course in college.

It seemed, indeed, like falling into the lap of good fortune for Peter to be clothed and fed and given a room of his own "with college books on the shelves" open to his use at any time; "and there was, besides, a trunk full of books—all kinds of scientific books."

And here, to his heart's content, the boy revelled in the use of books. Study was his recreation: and true to his word Rossman gave him daily instruction, taking him through algebra, trigonometry, and the various branches of higher mathematics, not omitting geography and history and—*Bible Study* every Sunday. Who can fathom the heights and depths, the mysterious complexities of Rossman's nature? This is Peter's tribute to the man:

"I was with him for three years; I always thought he was very kind, not only to me but to all the girls in the house and to every one."

In this morally outlawed community Peter grew to be sixteen years old, attracting to him by some magnetism in his own nature the best elements in his unfavorable environment. And here the one romance in his life occurred; on his part at least it seems to have been as idyllic as was Paul's feeling for Virginia. The girl, young and pretty, was a voluntary member of "Rossman's." She, too, had a history. Somewhat strictly reared by her family, she had been placed in a convent school, where she found the repression and restraint unbearable. In her reckless desire for freedom, taking advantage of a chance to escape from the convent school, she found refuge in the nearest city, and while there was induced to join the Rossman group with no knowledge of the abyss into which she was plunging. She was still a novice in this venture when she became interested in Peter Belden, the young student. Together they worked at problems in figures, their talk often wandering from the problems in books to the problems of life, especially their own lives, until the day came when Peter told her that he could not live without her.

Then the two young things laid their plans to leave that community, be honestly married, and to work out the problem of life together. However, this was not to be—for death claimed the wayward girl and closed the brief chapter of romance in Belden's life. And the man, near sixty years old now, still keeps this bit of springtime in his heart, and "May"—so aptly named—through the distillation of time and the alchemy of memory appears to him now an angel of light, the one love of his life.

Other changes were now on the wing. "Rossman's" was no longer to be tolerated, and the proprietor was obliged to disband his group and leave that part of the country. It was then that the truly baleful influence of Rossman asserted itself, blighting fatally the young life now bound to him by ties of gratitude and habit, and even turning the development of his mathematical gift into a curse. Forced to abandon the disreputable business in which he had been engaged, Rossman opened a gambling-house in Chicago, initiating Belden into all the ways that are dark and all the artful dodges practised in these gambling-hells. Here Belden's natural gift for calculation and combination of numbers, reinforced by mathematical training, came

into play. The fascination of the game for its own sake has even crept into one of Belden's letters to me, where several pages are devoted to proving how certain results can be obtained by scientific manipulation of the cards. But again Rossman's business fell under the ban of the law, and soon after, for some overt act of dishonesty, Belden was sent to the penitentiary.

A year later an ex-convict with power of resistance weakened by the rigidity of prison discipline, with no trade, the ten dollars given by the State invested in cheap outer clothing to replace the suit, recognizable at a glance by the police, which the State then bestowed upon the ex-convict, Belden returned to Chicago. Friendless, penniless, accustomed to live by his wits, Belden was soon "in trouble" again, was speedily convicted under the habitual-criminal act and given the maximum sentence of fourteen years. Three years of this sentence Belden served after the beginning of our acquaintance. He had met with the accident resulting in the paralysis of his arm, and his outlook was hopeless and dreary. However, after the loss of the use of his right hand he immediately set to work learning to write with his left hand, and this he speedily accomplished. The tablet granted by the warden at my request was soon covered with abstruse mathematical problems; differential calculus was of course meaningless to the guards, but a continuous supply of tablets was allowed as a safe outlet for a mind considered "cracked" on the subject of figures. Owing to his infirmities Belden's prison tasks were light; his devotion to Warden McClaughrey, who treated him with kindness, kept him obedient to prison rules, while his obliging disposition won the friendly regard of fellow prisoners. And so the time drifted by until his final release. This time he left the prison clad in a well-fitting second-hand suit sent by a friend. Dick Mallory, who was then a free man, welcomed him in Chicago, saw him on board the train for another city in which I had arranged for his entrance into a "home," and with hearty good will speeded his departure from criminal ranks. This was in the year 1893; from that day forward Peter Belden has lived an honest life.

The inmates of the home, or the members of that family, as the sainted woman who established and superintended the place considered these men, were expected to contribute toward the expense of the home what it actually cost to keep them. During the hard winters of 1894 and 1895 able-bodied men by thousands were vainly seeking work and awaiting their turn in the breadline at the end of a fruitless day, while Peter Belden, with his right arm

useless, by seizing every chance to earn small amounts, and by strictest self-denial, contrived to meet the bare needs of his life. Once or twice for a few days he could not do this, but the superintendent of the home tided him over these breaks; and I knew from her that Belden was unflagging in his effort to make his expenses. That this was far from easy is shown by the following extract from a letter written in the winter of 1895:

"I am in pretty good health, thank you, but I have had a hard, hard time. Do the very best I can I can't get ahead; yesterday I had to borrow a dollar from the home. Still I am pegging away, day in and day out, selling note paper. I have felt like giving up in despair many times these last few months. A *something*, however, tells me to keep on. You have kindly asked me if I needed clothing. Yes, thank you, I need shoes and stockings and I haven't money to buy them. Now, dear friend, don't spend any money in getting these things for me; I shall be glad and thankful for anything that has been used before."

As financial prosperity gradually returned, making the ends meet became easier to Belden. Among his round of note-paper customers he established friendly relations and was able to enlarge his stock of salable articles, and he won the confidence of two large concerns that gave him goods on the instalment plan. At this time the superintendent of the home wrote me:

"I am deeply interested in Peter Belden, for he has been a good, honest, industrious man ever since he came to us. I want to tell you that your kindly efforts are fully appreciated by him. He is earnestly working up in a business way, and all who have anything to do with him as a man have confidence in him."

Belden's interests, too, began to widen and his frequent letters to me at this time are like moving pictures, giving glimpses of interiors of various homes and of contact with all sorts of people—a sympathetic Jewish woman, a brilliant Catholic bishop, a fake magnetic healer and spiritualistic fraud. He even approached the celebrated Dean Hole at the conclusion of a lecture in order to secure the dean's autograph, which he sent me; and he had interesting experiences with various other characters. He was frequently drawn into religious discussions, but firmly held his ground that creeds or lack of creeds were nothing to him so long as one was good and helpful to

others. This simple belief was consistent with his course of action. Pity dwelt ever in his heart, and I do not believe that he ever slighted a chance to give the helping hand. He did not forget the prisoners left behind in the penitentiary where he had been confined, sending them magazines and letters, and messages through me. In one of his letters I find this brief incident, so characteristic of the man as I have known him:

"While I was canvassing to-day I saw a poor blind dog— It was a very pitiful sight. He would go here a little and there a little, moving backward and forward. The poor thing did not know where he was, for he was blind as could be, and not only blind but lame also. Something struck me when I saw him; I said to myself, 'I am crippled but I might be like this poor dog some day; who can tell? I certainly shall do what I can for him.'

"I could not take him home with me but I did the next best thing, for I took him from the pack of boys who began chasing him and gave him to a woman who was looking out of a window evidently interested and sympathetic; she promised to care for him."

In the hundreds of letters written me by Belden I do not find a line of condemnation or even of harsh criticism of any one, although he shares the prejudice common to men of his class against wealthy church-members. Not that he was envious of their possessions, but, knowing too well the cruelty and the moral danger of extreme poverty and ready to spend his last dollar to relieve suffering, he simply could not conceive how it was possible for a follower of Christ to accumulate wealth while sweat-shops and child labor existed.

At this period of Belden's life his knowledge of mathematics afforded him great pleasure, and it brought him into prominence in the newspaper columns given to mathematical puzzles, where "Mr. Belden" was quoted as final authority. Numerous were the newspaper clippings enclosed in his letters to me, and I have before me an autograph note to Belden from the query editor of a prominent paper, in which he says:

"Your solution of the problem is a most ingenious and mathematically learned analysis of the question presented, and highly creditable to your talent."

This recognition of superiority in the realm of his natural gift and passion was precious indeed to Belden, but he was extremely sensitive in regard to his past and avoided contact and acquaintance with those who might be curious about it. And to be known as an inmate of the home was to be known as an ex-convict.

This maimed, ex-convict life he must bear to the end: only outside of that could he meet men as their equal; and so he guarded his incognito, but not altogether successfully.

Once he made the experiment of going to a neighboring city and trying to make some commercial use of his mathematics, but he could not gain his starting-point. He had no credentials as teacher, and while he might have been valuable as an expert accountant his disadvantages were too great to be overcome.

More and more frequently as the years passed came allusions to loss of time through illness. His faithful friend, the superintendent of the home, had passed to her reward, and the home as Belden had known it was a thing of the past.

Life was becoming a losing game, a problem too hard to be solved, when tubercular tendencies of long standing developed and Belden became a charge on some branch of the anti-tuberculosis movement, where he spent a summer out of doors. Here he frankly faced the fact of the disease that was developing, and characteristically read all the medical works on the subject that the camp afforded, determined to make a good fight against the enemy. He seemed to find a sort of comfort in bringing himself into companionship with certain men of genius who had fought the same foe; he mentions Robert Louis Stevenson, Chopin, and Keats, and, more hopefully, others who were finally victorious over the disease.

With the approach of cold weather it was thought best to send Belden to a warmer climate; arrangements were made accordingly, and he was given a ticket to a far distant place where it was supposed he would have a better chance of recovery. There for a time he rallied and grew stronger, but only to face fresh hardships. He was physically incapable of earning a living, and it was not long before he became a public charge and was placed in an infirmary for old men; for more than fifty years of poverty and struggle

with fate had left the traces of a lifetime on the worn-out body. But the "something" which he felt told him to keep on through many hardships does not desert him now, and the old spirit of determination to make the best of things holds out still. His letters show much the same habit of observation as formerly; bits of landscape gleam like pictures through some of his pages, and historical associations in which I might be interested are gathered and reported. His one most vital interest at present seems to be the production of this book, as he firmly believes that no one else can "speak for the prisoners" as the writer.

It seems that even Death itself, "who breaks all chains and sets all captives free," cannot be kind to Peter Belden, and delays coming, through wearisome days and more wearisome nights. But at last, when the dark curtain of life is lifted, we can but trust that a happier fortune awaits him in a happier country.

CHAPTER VII

At the time of my first visit to the penitentiary of my own State the warden surprised me by saying: "Among the very best men in the prison are the 'life' men, the men here for murder."

How true this was I could not then realize, but as in time I came to know well so many of these men the words of the warden were fully confirmed.

The law classes the killing of one person by another under three heads: murder in the first degree; murder in the second degree; and manslaughter. The murder deliberately planned and executed constitutes murder in the first degree; and for this, in many of our States, the penalty is still capital punishment; otherwise, legal murder deliberately planned and officially executed, the penalty duplicating the offence in general outline. This is the popular conception of fitting the punishment to the crime; and its continuance ignores the obvious truth that, so long as the law justifies and sets the example of taking life under given circumstances, so long will the individual justify himself in taking life under circumstances which seem to him to warrant doing so; the individual simply takes the law into his own hands. War and the death penalty are the two most potent sources of mental suggestion in the direction of murder.

In every execution within the walls of a penitentiary the suggestion of murder is sown broadcast among the other convicts, and is of especial danger to those mentally unsound. As long as capital punishment is upheld as necessary to the protection of society each State should have its State executioner; and executions should take place at the State capital in the presence of the governor and as many legislators as may be in the city. In relegating to the penitentiary the ugly office of Jack Ketch we escape the realization of what it all is—how revolting, how barbarous—and we throw one more horror into the psychic atmosphere of prison life.

Several factors have combined to hold the death penalty so long on the throne of justice. Evolution has not yet eliminated from the human being the elementary savage instinct of bloodthirstiness, so frightfully disclosed in

the revolting rush of the populace eager to witness the public executions perpetrated in France in the present century; public executions in defiance of the established fact that men hitherto harmless have gone from the sight of an execution impelled to kill some equally harmless individual.

Many good men and women, ignoring the practical effect of anything so obscure as "suggestion," honestly believe that fear of the death penalty has a restraining influence upon the criminal class. In those States and countries which have had the courage to abolish the death penalty the soundness of the "deterrent effect" theory is being tested; statistics vary in different localities but the aggregate of general statistics shows a decrease in murders following the abolition of the death penalty.

A silent partner in the support of capital punishment is the general assumption that the murderer is a normal and a morally responsible human being. Science is now leading us to a clearer understanding of the relation between the moral and the physical in human nature, and we are beginning to perceive that complex and far-reaching are the causes, the undercurrents, the abnormal impulses which come to the surface in the act of murder. Some years ago in England, upon the examination of the brains of a successive number of men executed for murder, it was ascertained that eighty-five per cent of those brains were organically diseased. Granting that these men were criminally murderers, we must grant also that they were mentally unsound, themselves victims of disease before others became their victims. Where the moral responsibility lies, the Creator alone can know; perhaps in a crowded room of a foul tenement an overworked mother or a brutal father struck a little boy on the head, and the little brain *went wrong*, some of those infinitesimal brain-cells related to moral conduct were crushed, and years afterward the effect of the cruel blow on the head of the defenceless child culminated in the murderous blow from the hand of this child grown to manhood. And back of the blow given the child stand the saloon and the sweat-shop and the bitter poverty and want which can change a human being into a brute. Saloons and sweat-shops flourish in our midst, and cruel is the pressure of poverty, and terrible in their results are the blows inflicted upon helpless children. When the State vigorously sets to work to remove or ameliorate the social conditions which cause crime there will be fewer lawless murderers to be legally murdered.

Time and again men innocent of the crime have been executed for murder. Everything is against a man accused of murder. The simple accusation antagonizes the public against the accused man. The press, which loves to be sensational, joins in the prosecution, sometimes also the pulpit. The tortures of the sweat-box are resorted to, that the accused may be driven to convict himself before being tried; and one who has no money may find himself convicted simply because he cannot prove his innocence—although the law professes to hold a man innocent until his guilt is proven.

For years I was an advocate of the death penalty as a merciful alternative to life imprisonment. Knowing that the certainty of approaching death may effect spiritual awakening and bring to the surface all that is best in a man; believing that death is the great liberator and the gateway to higher things; knowing that a man imprisoned for life may become mentally and spiritually deadened by the hopelessness of his fate, or may become so intent on palliating, excusing, or justifying his crime as to lose all sense of guilt, perhaps eventually to believe himself a victim rather than a criminal; knowing the unspeakable suffering of the man who abandons himself to remorse, and knowing how often the "life man" becomes a prey to insanity, in sheer pity for the prisoner I came to regard the death penalty as a merciful means of escape from an incomparably worse fate.

So far my point of view was taken only in relation to the prisoner for life. Later, when I had studied the subject more broadly, in considering the effect of the death penalty upon the community at large and as a measure for the protection of society, I could not escape the conviction that in the civilized world of to-day capital punishment is indefensible. Christianity, humanity, sociology, medical science, psychology, and statistics stand solid against the injustice and the unwisdom of capital punishment. Public sentiment, the last bulwark of the death penalty, is slowly but surely becoming enlightened, and the final victory of humanitarianism is already assured.

Throughout the United States the legal penalty for murder in the second degree is imprisonment for life; then follows the crime called manslaughter, when the act is committed in self-defence or under other extenuating circumstances; the penalty for which is imprisonment for a varying but limited term of years. Practically there is no definite line dividing murder in the second degree from manslaughter. A clever expert lawyer, whether on

the side of prosecution or the defence, has little difficulty in carrying his case over the border in the one direction or the other. Money, and the social position of the accused, are important factors in adjusting the delicate balance between murder in the second degree and manslaughter.

Various are the pathways that lead to the illegal taking of life; terrible often the pressure brought to bear upon the man before the deed is done. Deadly fear, the fear common to humanity, has been the force that drove the hand of many a man to strike, stab, or shoot with fatal effect; while anger, righteous or unrighteous, the momentary impulse of intense emotional excitement to which we are all more or less liable, has gathered its host of victims and caused the tragic ruin of unnumbered men now wearing life away in our penitentiaries.

And terribly true it is that some of the "life" men are among the best in our prisons, the "life" men who are all indiscriminately called murderers. That some of them were murderers at heart and a menace to the community we cannot doubt; doubtless, also, some are innocent of any crime; and there are others for whom it would be better for all concerned if they were given liberty to-day.

It seems to be assumed that a man unjustly imprisoned suffers more than the one who knows that he has only himself to blame. Much depends upon the nature of the man. Given two men of equally sound moral nature, while the one with a clear conscience may suffer intensely, from the sense of outrage and injustice, from the tearing of the heart-strings and the injury to business relations, his mental agony can hardly equal that of the man whose heart is eaten out with remorse. The best company any prisoner can have is his own self-respect, the best asset of a bankrupt life. I have been amazed to see for how much that counts in the peace and hope, and the great power of patience which makes for health and gives strength for endurance.

I was deeply impressed with this fact in the case of one man. His name was Gay Bowers, a name curiously inconsistent with his fate, and, "life man" though he was, no one in that big prison ever associated him with murder; no one who really looked into his face could have thought him a criminal. It was the only face I ever saw, outside of a book, that seemed chastened through sorrow; his gentle smile was like the faint sunshine of an April day

breaking through the mists; and there was about the man an atmosphere of youth and springtime though he was near forty when we first met; but it was the arrested youth of a man to whom life seemed to have ended when he was but twenty-two.

Gay was country born and bred, loved and early married a country girl, and was known throughout the neighborhood as a hard-working, steady young fellow. He lived in a village near the Mississippi River, and one summer he went down to St. Louis on some business and returned by boat. On the steamboat a stranger, a young man of near his age, made advances toward acquaintance, and hearing his name exclaimed:

"Gay Bowers! why my name is Ray Bowers, and I'm looking for work. I guess I'll go to your town and we'll call each other cousins; perhaps we are related."

The stranger seemed very friendly and kept with Bowers when they reached the home town; there Ray found work and seemed all right for a while.

And here I must let Gay Bowers tell the rest of the story as he told it to me, in his own words as nearly as I can remember them. I listened intently to his low, quiet voice, but I seemed reading the story in his eyes at the same time, for the absolutely convincing element was the way in which Bowers was living it all over again as he unfolded the scene with a certain thrill in his tones. I felt as if I was actually witnessing the occurrence, so vividly was the picture in his mind transferred to mine.

"My wife and I had just moved into a new home that very day, we and our little year-old girl, and Ray had helped us in the moving and stayed to supper with us. After supper Ray said he must go, and asked me to go a piece with him as he had something to say to me.

"So I went along with him. Back of the house the road ran quite a way through deep woods. We were in the middle of the woods when Ray stopped and told me what he wanted of me. He told me that he had been a horse-thief over in Missouri, that his picture was in 'the rogues' gallery' in St. Louis over his own name, Jones; that it wasn't safe for him to be in Missouri, where he was 'wanted' and that he had got on the boat without any plans; but as soon as he saw me, a working, country man, he thought he

might as well hitch on to me and go to my place. But he said he was tired of working; and farmer Smith had a fine pair of horses which he could dispose of if I would take them out of the barn into the next county. Ray wanted me to do this because of my good reputation. Everybody knew me and I was safe from suspicion; and he said we could make a lot of money for us both if I went into the business with him.

"All of a sudden I knew then that for some time I'd been *feeling* that Ray wasn't quite square. There had been some little things—of course I said I wouldn't go in with him; and I don't know what else I said for I was pretty mad to find out what kind of a man he was and how he had fooled me. Perhaps I threatened to tell the police; anyway Ray said he would kill me before I had a chance to give him away if I didn't go into the deal with him, for then I wouldn't dare 'peach.' Still I refused.

"And then"—here a look of absolute terror came into Bowers's eyes—"then he suddenly struck me a terrible blow and I knew I was in a fight for my life. He fought like the desperate man that he was. I managed to reach down and pick up a stick and struck out: I never thought of killing the man; it was just a blind fight to defend myself.

"But he let go and fell. When he did not move I bent over him and felt for his heart. I could not find it beating; but I could not believe he was dead. I waited for some sign of life but there was none. I was horror-struck and dazed; but I knew I could not leave him in the road where he had fallen, so I dragged him a little way into the woods. There I left him.

"I hurried back home to tell my wife what had happened; but when I opened the door my wife was sitting beside the cradle where the baby was. Cynthia was tired and sleepy with her day's work, and everything seemed so natural and peaceful I just couldn't tell her, and I couldn't think, or anything. So I told her she'd better go to bed while I went across the road to speak to her father.

"It wasn't more than nine o'clock then, and I found her father sitting alone smoking his pipe. He began to talk about his farm work. He didn't notice anything queer about me and I was so dazed-like that it all began to seem unreal to me. I tried once or twice to break into his talk and tell him, but I couldn't put the horror into words—I *couldn't*.

"Perhaps it wouldn't have made any difference if I had told him; anyway I didn't. When the body was found next morning of course they came right to our house with the story, for Ray had told folks that he was a relation of mine. I told just what had happened but it didn't count for anything—I was tried for murder and not given a chance to make any statement. Because I was well thought of by my neighbors they didn't give me the rope, but sent me here for life."

Bowers had been sixteen years in prison when I first met him. He had accepted his fate as an overwhelming misfortune, like blindness or paralysis, but never for a moment had he lost his self-respect, and he clung to his religion as the isle of refuge in his wrecked existence.

"Mailed in the armor of a pure intent" which the degradations of convict life could not penetrate, as the years passed he had achieved true serenity of spirit, and that no doubt contributed to his apparently unbroken health. His work was not on contract but in a shop where prison supplies were made, canes for the officers, etc. One day Bowers sent me a beautifully made cane, which I may be glad to use if I ever live to have rheumatism.

Bowers, like all life men, early laid his plans for a pardon and had a lawyer draw up a petition; but the difficulty in the case was that there wasn't a particle of evidence against the dead man excepting Bowers's own word. But Bowers's mind was set on establishing the truth of his statement regarding the character of the other man, and he saw only one way of doing this. Ray had said that his real name was Jones, and his photograph was in the rogues' gallery in St. Louis under the name of Jones. Now, if there was such a photograph in St. Louis Bowers determined to get it, and at last, after ten years, he obtained possession of the photograph, with the help of a lawyer, and again he looked upon the face of Ray, named Jones, with the record "horse-thief." The proven character of Jones did not alter the fact that he had been killed by Bowers; nor in that part of the country did it serve as a reason for release of Bowers; and the years went on the same as before.

Bowers's wife had not learned to write, but the baby, Carrie, grew into a little girl and went to school, and she wrote regularly to her father, who was very proud of her letters. When still a little girl she was taken into a neighbor's family. After a time the neighbor's wife died and Carrie not being

equal to the work of the house her mother came to help out—so said Carrie's letters. And Bowers, who still cherished the home ties, was thankful that his wife and child were taken care of. Every night he prayed for them and always he hoped for the day when he could take them in his arms.

His letters to me were few as he wrote regularly to his daughter; but after he had been in prison eighteen years he wrote me the joyful news that he would be released in a few weeks, for his lawyer had proven a faithful friend. The letter was a very happy one written in December, and the warden had allowed Bowers to tinker up some little gifts to be sent to the wife and daughter. "They stand in a row before me as I am writing, *and I think they are as beautiful as butterflies*," his letter said.

On his release Bowers, now a man past forty, had to begin life over again. He had lost his place in his community, he had no money, but he had hope and ambition, and as a good chance was offered him in the penitentiary city he decided to take it and go right to work. He wrote his daughter that he would arrange for her and her mother to come to him, and there they would start a new home together.

Little did he dream of the shock awaiting him when the answer to that letter came, telling him that for several years his wife had been married to the man who had given Carrie a home. Both the man and the woman had supposed that when Bowers was sent to prison for life the wife was divorced and free to marry. She was hopeless as to her husband's release, and tired and discouraged with her struggle with poverty. Her brief married life had come to seem only a memory of her youth, and she was glad of the chance to be taken care of like other women, but a feeling of tenderness and pity for the prisoner had caused her to protect him from the knowledge of her inconstancy.

The second husband felt that to Bowers must be left the decision as to the adjustment of the tangled relationships, and Bowers wrote me that he had decided that the second husband had the stronger claim, as he had married the woman in good faith and made her happy; one thing he insisted upon, however—that if the present arrangement were to continue, his former wife must take her divorce from him and be legally married to the other man. And this was done.

To find himself another Enoch Arden was a hard blow to Bowers, but the years of work and poverty must have wrought such changes in the girl wife of long ago that she was lost to him forever; while the man who came out of that prison after eighteen years of patient endurance and the spiritual development that long acquaintance with grief sometimes brings was a different being from the light-hearted young farmer's boy that the girl had married. They must inevitably have become as strangers to each other.

With the daughter the situation was different. From childhood she had faithfully written to an imaginary father whom she could not remember, but with whom a real tie must have been formed through their letters; and Carrie had now come to be near the age of the wife he had left. The daughter was to come to him, and she must have found in the real father something even finer than her imagination could have pictured.

Gay Bowers had been a prisoner for those eighteen years, with never a criminal thought or intention. As human courts go he was not the victim of injustice nor could "society" be held in any way responsible. There was no apparent relation between his environment or his character and his tragic experience. It was like a Greek drama where Fate rules inexorable, but this fate was borne with the spirit of a Christian saint. What the future years held for him I do not know, since through carelessness on my part our correspondence was not kept up.

CHAPTER VIII

In another instance, with quite different threads, the hand of fate seemed to have woven the destiny of the man, but I was slow in perceiving that it was not merely the tragedy of the prison that was unfolding before me but the wider drama of life itself.

Generally speaking, among my prison acquaintance there was some correspondence between the personality of the man and his history. The prisoner who said frankly to me, "I always cheat a man when I can, because I know he would cheat me if he had the chance: 'tis diamond cut diamond," this man curiously but logically resembled a fox. And any one could see at a glance that Gay Bowers was a man in whom was no guile.

But no clew to the complex nature of Harry Hastings was to be found in his appearance. We had exchanged a number of letters before we met. He wrote intelligently with but an occasional slip in spelling, and seemed to be a man of fair education. He was in prison for life on the charge of having shot in the street a woman of the streets; the man claimed innocence, but I never tried to unravel the case, as the principal witness for the defence had left the city where the shooting occurred, and there seemed to be no starting-point for an appeal for pardon. What the boy wanted of me—he was but little past twenty—was a channel through which he could reach the higher things of life. Passionate aspiration ran through all his letters, aspiration toward the true, the beautiful, and the good. He quoted Emerson and studied George Eliot—Romola, the woman, he criticised for being blinded to Tito's moral qualities by his superficial charms. He had a way of piercing to the heart of things and finding beauty where many others would have missed it. Music he loved above all else; and in music his memory was haunted by "The Coulin"—a wild, despairing cry of downtrodden Ireland, an air in which, some one has said, "Ireland gathered up her centuries of oppression and flung it to the world in those heart-breaking strains." It happened that I had never heard "The Coulin" except under my own fingers, and it struck me as a curious bit of the boy's make-up that this tragic music had become part of his mental endowment. He had heard it but once, played by a German

musician. Barring glimpses of the world of music, the boy's life had been such as to exclude him from all the finer associations of life.

He had written me, in his second letter, that he was "coloured"; and he had given this information as if he were confessing a crime more serious even than murder. He really felt that he might be uncovering an impassable chasm between us. Race prejudices are against my principles, but I was taken aback when the writer of those interesting letters was materialized in the person of the blackest little negro I ever saw. "Black as the ace of spades," was my first thought. He had no father at that time but was devoted to his mother, who was an illiterate colored woman. As a growing boy he had gone to a horse-race and, fired with the ambition to become a horse-jockey, had hung around the racing-stables until his aptitude for the business attracted the horsemen. Harry was agile and fearless and of light weight, and when at last his ambition was attained he told me it was the proudest day of his life; and he felt that he had achieved glory enough to satisfy any one when the horse he rode as jockey won the race.

The associations of the race-track formed the school of those plastic years; and the thorn in the flesh was the nickname of "the little runt" by which he was known among the men. The consciousness of his stunted body and his black skin seemed seared upon his very heart, a living horror from which there was no escape. This, far more than his fate as a life prisoner, was the tragedy of his existence. Freedom he could hope for; but only death could release him from his black body. He did not despise the colored race; rather was he loyal to it; it was his individual destiny, the fact that his life was incased in that stunted black form that kept alive the sense of outrage. He hated to be known as "the little runt." He hated his coal-black skin.

Doubtless when free to mingle with colored people on the outside his other faculties came into play, for he had the darky love of fun and sense of humor; but the prison life cut him off from all that, and, the surface of his nature being stifled, what dormant strains of white ancestry might not have been aroused to activity? His skin was black, indeed; but his features told the story of the blending with another race. I could but feel that it was the mind of the white man that suffered so in the body of the black—that in this prisoner the aristocrat was chained to the slave. The love of literature, the thirst for the higher things of life, had no connection with "Little Runt," the

ignorant horse-jockey. Was the man dying of homesickness for the lost plane of life?

The theosophist would tell us that Harry Hastings might have been a reincarnation of some cruel slave-trader, merciless of the suffering he inflicted upon his innocent victims; and possibilities of the stirring of latent inherited memories are also suggested. Be that as it may, we cannot solve the problem of that life in which two streams of being were so clearly defined, where the blue blood was never merged in the black.

Harry's handwriting was firm, clear-cut, and uniform. I lent to a friend the most striking and characteristic of his letters, and I can give no direct quotations from them, as they were not returned; but writing was his most cherished resource, and he tells me that when answering my letters he almost forgot that he was a prisoner.

The terrible ordeal of life was mercifully short to Harry Hastings. When I saw him last, in the prison hospital, a wasted bit of humanity fast drifting toward the shores of the unknown, with dying breath he still asserted his innocence; but he felt himself utterly vanquished by the decree of an adverse fate. To the mystery of death was left the clearing of the mystery of life.

It was Hiram Johnson who taught me what a smothering, ghastly thing prison life in America may be. One of the guards had said to me, "Hiram Johnson is a life man who has been here for years. No one ever comes to see him, and I think a visit would do him lots of good." The man who appeared in answer to the summons was a short, thick-set fellow of thirty-five or more, with eyes reddened and disabled by marble-dust from the shop in which he had worked for years. He smiled when I greeted him, but had absolutely nothing to say. I found that visit hard work; the man utterly unresponsive; answering in the fewest words my commonplace inquiries as to his health, the shop he worked in, and how long he had been there. Six months after I saw him again with exactly the same experience. He had nothing to say and suggested nothing for me to say. I knew only that he expected to see me when I came to the prison, and after making his acquaintance I could never disappoint one of those desolate creatures whose

one point of contact with the world was the half-hour spent with me twice a year.

When I had seen the man some half-dozen times, at the close of an interview I said, in half-apology for my futile attempts to keep up conversation: "I'm sorry that I haven't been more interesting to-day; I wanted to give you something pleasant to think of."

"It has meant a great deal to me," he answered. "You can't know what it means to a man just to know that some one remembers he is alive. That gives me something pleasant to think about when I get back to my cell."

We had begun correspondence at the opening of our acquaintance, but rarely was there a line in his earlier letters to which I could make reply or comment. Mainly made up of quotations from the Old Testament, scriptural imprecations upon enemies seemed to be his chief mental resource. The man considered himself "religious," and had read very little outside his Bible, which was little more intelligible to him than the original Greek would have been; excepting where it dealt with denunciations.

In my replies to these letters I simply aimed to give the prisoner glimpses of something outside, sometimes incidents of our own family life, and always the assurance that I counted him among my prison friends, that "there was some one who remembered that he was alive." It was five or six years before I succeeded in extracting the short story of his life, knowing only that he had killed some one. The moral fibre of a man, and the sequence of events which resulted in the commission of a crime have always interested me more than the one criminal act. One day, in an unusually communicative mood, Johnson told me that as a child he had lost both parents, that he grew up in western Missouri without even learning to read, serving as chore-boy and farm-hand until he was sixteen, when he joined the Southern forces in 1863, drifting into the guerilla warfare. It was not through conviction but merely by chance that he was fighting for rather than against the South; it was merely the best job that offered itself and the killing of men was only a matter of business. Afterward he thought a good deal about this guerilla warfare as it related itself to his own fate, and he said to me:

"I was paid for killing men, for shooting on sight men who had never done me any harm. The more men I killed the better soldier they called me.

When the war was over I killed one more man. I had reason this time, good reason. The man was my enemy and had threatened to kill me, and that's why I shot him. But then they called me a murderer, and shut me up for the rest of my life. I was just eighteen years old."

Such was the brief story of Johnson's life; such the teaching of war. In prison the man was taught to read; in chapel he was taught that prison was not the worst fate for the murderer; that an avenging God had prepared endless confinement in hell-fire for sinners like him unless they repented and propitiated the wrath of the Ruler of the Universe. And so, against the logic of his own mind, while religion apparently justified war, he tried to discriminate between war and murder and to repent of taking the one life which he really felt justified in taking; he found a certain outlet for his warlike spirit or his elemental human desire to fight, in arraying himself on God's side and against the enemies of the Almighty. And no doubt he found a certain kind of consolation in denouncing in scriptural language the enemies of the Lord.

But all this while in the depths of Johnson's nature something else was working; a living heart was beating and the sluggish mind was seeking an outlet. A gradual change took place in his letters; the handwriting grew more legible, now and again gleams of the buried life broke through the surface, revealing unexpected tenderness toward nature, the birds, and the flowers. Genuine poetic feeling was expressed in his efforts to respond to my friendship, as where he writes:

"How happy would I be could I plant some thotte in the harte of my friend that would give her pleasure for many a long day." And when referring to some evidence of my remembrance of my prisoners, he said: "We always love those littel for-gett-me-nottes that bloom in the harte of our friends all the year round. Remember that we can love that which is lovely."

Dwelling on the loneliness of prison life and the value of even an occasional letter, he writes: "The kind word cheares my lonely hours with the feelings that some one thinks of me. *Human nature seems to have been made that way.* There are many who would soon brake down and die without this simpathy."

Always was there the same incongruity between the spelling and a certain dignity of diction, which I attributed to his familiarity with the Psalms. His affinity with the more denunciatory Psalms is still occasionally evident, as when he closes one letter with these sentences: "One more of my enemies is dead. The hande of God is over them all. May he gather them all to that country where the climate is warm and the worm dieth not!"

To me this was but the echo of fragments of Old Testament teaching. At last came one letter in which the prisoner voiced his fate in sentences firm and clear as a piece of sculpture. This is the letter exactly as it was written:

"MY DEAR FRIEND:

"I hope this may find you well. It has bin some time since I heard from you and I feel that I should not trespass on you too offten. You know that whether I write or not I shall in my thottes wander to you and shall think I heare you saying some sweet chearing word to incourage me, and it is such a pleasant thing, too. But you know theas stripes are like bands of steel to keep one's mouth shut, and the eye may not tell what the heart would say were the bondes broken that keep the lippes shut. If one could hope and believe that what the harte desired was true, then to think would be a pleasure beyond anything else the world could give. But to be contented here the soul in us must die. We must become stone images.

"Yourse truly,
"HIRAM JOHNSON."

Not for himself alone did this man speak. "To be contented here the soul in us must die." "We must become stone images." From the deepest depths of his own experience it was given to this unlettered convict to say for all time the final word as to the fate of the "life man," up to the present day.

After this single outburst, if anything so restrained can be called an outburst, Hiram Johnson subsided into much of his former immobility. Like all "life men" he had begun his term in prison with the feeling that it *must* come to an end sometime. What little money he had was given to a lawyer who drew up an application for shortening of the sentence, the petition had been sent to the governor, and the papers, duly filed, had long lain

undisturbed in the governor's office. When I first met Johnson he still cherished expectations that "something would be done" in his case, but as years rolled by and nothing was done the tides of hope ran low. Other men sentenced during the sixties received pardons or commutations or had died, until at last "old Hiram Johnson" arrived at the distinction of being the only man in that prison who had served a fifty-year sentence.

Now, a fifty-year sentence does not mean fifty years of actual time. In different States the "good time" allowed a convict differs, this good time meaning that by good behavior the length of imprisonment is reduced. In the prison of which I am writing long sentences could be shortened by nearly one-half: thus by twenty-nine years of good conduct Johnson had served a legal sentence of fifty years. No other convict in that prison had lived and kept his reason for twenty-nine years. Johnson had become a figure familiar to every one in and about the place. Other convicts came and went, but he remained; plodding along, never complaining, never giving trouble, doing his full duty within its circumscribed limits. Altogether he had a good record and the authorities were friendly to him.

Hitherto I had never asked executive clemency except in cases where it was clear that the sentence had been unjust; and I had been careful to keep my own record high in this respect, knowing that if I had the reputation of being ready to intercede for any one who touched my sympathies, I should lower my standing with the governors. But it seemed to me that Johnson, by more than half his lifetime of good conduct in prison had established a claim upon mercy, and earned the right to be given another chance in freedom.

I found the governor in a favorable state of mind, as in one of his late visits to the penitentiary Johnson had been pointed out to him as the only man who had ever served a fifty-year sentence. After looking over the petition for pardon then on file and ascertaining that Johnson had relatives to whom he could go, the governor decided to grant his release. But as an unlooked-for pardon was likely to prove too much of a shock to the prisoner the sentence was commuted to a period which would release him in six weeks, and to me was intrusted the breaking of the news to Johnson and the papers giving him freedom. We knew that it was necessary for Johnson to be given time to enable his mind to grasp the fact of coming release and to make

very definite plans to be met at the prison-gates by some one on whom he could depend, for the man of forty-seven would find a different world from the one he left when a boy of eighteen. It gives one a thrill to hold in one's hands the papers that are to open the doors of liberty to a man imprisoned for life, and it was with a glad heart that I took the next train for the penitentiary.

My interview with Johnson was undisturbed by any other presence, and he greeted me with no premonition of the meaning of the roll of white paper that I held. Very quietly our visit began; but when Johnson was quite at his ease, I asked: "Has anything been done about your case since I saw you last?" "Oh, no, nothing ever will be done for me! I've given up all hope."

"I had a talk with the governor about you yesterday, and he was willing to help you. He gave me this paper which you and I will look over together." I watched in vain for any look of interest in his face as I said this.

Slowly, aloud, I read the official words, Johnson's eyes following as I read; but his realization of the meaning of the words came with difficulty. When I had read the date of his release we both paused; as the light broke into his mind, he said:

"Then in January I shall be free"; another pause, while he tried to grasp just what this would mean to him; and then, "I shall be free. Now I can work and earn money to send you to help other poor fellows." That was his uppermost thought during the rest of the interview.

In the evening the Catholic chaplain, Father Cyriac, of beloved memory, came to me with the request that I have another interview with Johnson, saying: "The man is so distressed because in his overwhelming surprise he forgot to thank you to-day."

"He thanked me better than he knew," I replied.

But of course I saw Johnson again the next day; and in this, our last interview, he made a final desperate effort to tell me what his prison life had been. "Behind me were stone walls, on each side of me were stone walls, nothing before me but stone walls. And then you came and brought hope into my life, and now you have brought freedom, and *I cannot find words to thank you.*" And dropping his head on his folded arms the man burst into

tears, his whole body shaken with sobs. I hope that I made him realize that there was no need of words, that when deep calleth unto deep the heart understands in silence.

Only yesterday, turning to my writing-desk in search of something else, I chanced across a copy of the letter I wrote to the governor after my interview with Johnson, and as it is still warm with the feelings of that never-to-be-forgotten experience, I insert it here:

"I cannot complete my Thanksgiving Day until I have given you the message of thanks entrusted to me by Hiram Johnson. At first he could not realize that the long years of prison life were actually to be ended. It was too bewildering, like a flood of light breaking upon one who has long been blind. And when he began to grasp the meaning of your gift the first thing he said to me was, 'Now I can work and earn money to send you for some other poor fellow.'

"Not one thought of self, only of the value of liberty as a means, at last, to do something for others. How *hard* he tried to find words to express his gratitude. It made my heart ache for the long, long years of repression that had made direct expression almost impossible; and in that thankfulness, so far too deep for words, I read, too, the measure of how terrible the imprisoned life had been. Thank heaven and a good governor, it will soon be over! Hiram Johnson has a generous heart and true, and he will be a good man. And it is beautiful to know that spiritual life can grow and unfold even under the hardest conditions."

What life meant to Johnson afterward I do not know; but I do know that he found home and protection with relatives on a farm, and the letters that he wrote me indicated that he took his place among them not as an ex-convict so much as a man ready to work for his living and entitled to respect. Being friendly he no doubt found friends; and though he was a man near fifty, perhaps the long-buried spirit of youth came to life again in the light of freedom. At all events, once more the blue skies were above him and he drew again the blessed breath of liberty. Although he never realized his dream of helping me to help others, I never doubted the sincerity of his desire to do so.

CHAPTER IX

Mr. William Ordway Partridge, in "Art for America," says to us: "Let us learn to look upon every child face that comes before us as a possible Shakespeare or Michael Angelo or Beethoven. The artistic world is rejoicing over the discovery in Greece of some beautiful fragments of sculpture hidden far beneath the *débris* of centuries; shall we not rejoice more richly when we are able to dig down beneath the surface of the commonest child that comes to us from our great cities, and discover and develop that faculty in him which is to make him fit to live in usefulness with his fellow men? Seeking for these qualities in the child we shall best conserve, as is done in physical nature, the highest type, until we have raised all human life to a higher level."

I hope that some day Mr. Partridge will write a plea for elementary art classes in our prisons. For in every prison there are gifted men and boys whose special talents might be so trained and developed as to change the channel of their lives. What chances our prisons have with these wards of the state, to discover and develop the individual powers that might make their owners self-respecting and self-supporting men!

We are doing this in our institutions for the feeble-minded and with interesting results, but in our prisons the genius of a Michael Angelo might be stifled—the musical gift of a Chopin doomed to eternal silence.

Mr. Partridge's belief in the latent possibilities in our common children went to my heart, because I had known Anton Zabinski; and yet I can never think of Anton Zabinski as a common child.

The story of his life is brief; but his few years enclosed the circle of childhood, youth, aspiration, hope, horror, tragedy, pain, and death; and all the beautiful possibilities of his outward life were blighted.

Anton's home was in the west side of Chicago, in that region where successive unpronounceable names above doors and across windows assure one that Poland is not lost but scattered.

In back rooms in the third story of the house lived the Zabriski family, the father and mother with Anton and his sister two years younger. The mother was terribly crippled from an accident in childhood, and was practically a prisoner in her home. Anton, her only son, was the idol of her heart.

When scarcely more than a child Anton began work tailoring. He learned rapidly, and when sixteen years old was so skilful a worker that he earned twelve dollars a week. This energy and skill, accuracy of perception and sureness of touch, gave evidence of a fine organization. His was an elastic, joyous nature, but his growth was stunted, his whole physique frail; sensitive and shy, he shrank with nervous timidity from contact with the stronger, rougher, coarser-fibred boys of the neighborhood. Naturally this served only to make Anton a more tempting target for their jokes.

Two of these boys in particular played upon his fears until they became an actual terror in his existence; though the boys doubtless never imagined the torture they were inflicting, nor dreamed that he really believed they intended to injure him. It happened one evening that Anton was going home alone from an entertainment, when these two boys suddenly jumped out from some hiding-place and seized him, probably intending only to frighten him. Frighten him they did, out of all bounds and reason. In his frantic efforts to get away from them Anton opened his pocket-knife and struck out blindly. But in this act of self-defence he mortally wounded one of the boys.

Anton Zabriski did not go back to his mother that night; this gentle, industrious boy, doing the work and earning the wages of a man, had become, in the eye of the law, a murderer. I have written "in the eye of the law"; a more accurate statement would be "in the eye of the court," for under fair construction of the law this could only have been a case of manslaughter; but——

I once asked one of Chicago's most eminent judges why in clear cases of manslaughter so many times men were charged with murder and tried for murder. The judge replied: "Because it is customary in bringing an indictment to make the largest possible net in which to catch the criminal."

Anton Zabriski had struck out with his knife in the mere animal instinct of self-defence. The real moving force of evil in the tragedy was the love of cruel sport actuating the larger boys—a passion leading to innumerable

crimes. Were the moral origin of many of our crimes laid bare we should clearly see that the final act of violence was but a result—the rebound of an evil force set in motion from an opposite direction. It sometimes happens that it is the slayer who is the victim of the slain. But to the dead, who have passed beyond the need of our mercy, we are always merciful.

Had an able lawyer defended Anton he never would have been convicted on the charge of murder; but the family was poor, and, having had no experience with the courts, ignorantly expected fairness and justice. Anton was advised to plead guilty to the charge of murder, and was given to understand that if he did so the sentence would be light. Throwing himself upon "the mercy of the court," the boy pleaded "guilty." He was informed that "the mercy of the court" would inflict the sentence of imprisonment for life. It chanced that in the court-room another judge was present whose sense of justice, as well as of mercy, was outraged by this severity. Moved with compassion for the undefended victim he protested against the impending sentence and induced the presiding judge to reduce it to thirty years. Thirty years! A lifetime indeed to the imagination of a boy of seventeen. The crippled mother, with her heart torn asunder, was left in the little back room where she lived, while Anton was taken to Joliet penitentiary.

It did not seem so dreadful when first it came in sight—that great gray-stone building, with its broad, hospitable entrance through the warden house; but when the grated doors closed behind him with relentless metallic clang, in that sound Anton realized the death-knell of freedom and happiness. And later when, for the first night, the boy found himself alone in a silent, "solitary"[\[8\]](#) cell, then came the agonizing homesickness of a loving young heart torn from every natural tie. Actually but two hours distant was home, the little back room transfigured to a heaven through love and the yearning cry of his heart; but the actual two hours had become thirty years of prison in the future. The prison life itself was but a dumb, unshapen dread in his imagination. And the unmeaning mystery and cruelty and horror of his fate! Why, his whole life covered but seventeen years, of which memory could recall not more than twelve; he knew they were years of innocence, and then years of faithful work and honest aims until that one night of horror, when frightened out of his senses he struck wildly for dear life. And then he had become that awful thing, a murderer, and yet without

one thought of murder in his heart. If God knew or cared, how could he have let it all happen? And now he must repent or he never could be forgiven. And yet how could he repent, when he had meant to do no wrong; when his own quivering agony was surging through heart and mind and soul; when he was overwhelmed with the black irrevocableness of it all, and the sense of the dark, untrodden future? One night like that, it holds the sufferings of an ordinary lifetime.

We who have reached our meridian know that life means trial and disappointment, but to youth the bubble glows with prismatic color; and to Anton it had all been blotted into blackness through one moment of deadly fear.

When young convicts are received at Joliet penitentiary it is customary for the warden to give them some chance for life and for development physically and mentally. They are usually given light work, either as runners for the shops or helpers in the kitchens or dining-rooms, where they have exercise, fresh air, and some variety in employment. Anton came to the prison when there was a temporary change of wardens, and it happened when he was taken from the "solitary" cell where he passed the first night that he was put to work in the marble-shop, a hard place for a full-grown man. He was given also a companion in his cell when working-hours were over.

As he became fully adjusted to prison life he learned a curious thing: on the outside crime had been the exception, a criminal was looked upon as one apart from the community; but in this strange, unnatural prison world it was crime which formed the common basis of equality, the tie of brotherhood.

And again, the tragedy of his own fate, which had seemed to him to fill the universe, lost its horrible immensity in his imagination as he came to realize that every man wearing that convict suit bore in his heart the wound or the scar of tragedy or of wrong inflicted or experienced. He had believed that nothing could be so terrible as to be separated from home and loved ones; but learned to wonder if it were not more terrible never to have known loved ones or home.

When his cell-mate estimated the "good time" allowance on a sentence of thirty years, Anton found that by good behavior he could reduce this

sentence to seventeen years. That really meant something to live for. He thought he should be almost an old man if he lived to be thirty-three—something like poor old Peter Zowar who had been in prison twenty-five years; but no prisoner had ever lived there thirty years; and this reduction to seventeen years meant to Anton the difference between life and death. Even the seventeen years' distance from home began to be bridged when his sister Nina came to see him, bringing him the oranges and bananas indelibly associated with the streets of Chicago, or cakes made by his own mother's hands and baked in the oven at home.

Life in prison became more endurable, too, when he learned that individual skill in every department of work was recognized, and that sincerity and faithfulness counted for something even in a community of criminals. Praise was rare, communication in words was limited to the necessities of work; but in some indefinable way character was recognized and a friendly attitude made itself felt and warmed the heart; and the nature so sensitive to harshness was quick to perceive and to respond to kindness.

It is hard to be in prison when a boy, but the older convicts regard these boys with compassion, touched by something in them akin to their own lost youth, or perhaps to children of their own. Little Anton looked no older and was no larger than the average boy of fourteen; and to the older men he seemed a child.

Human nature is human nature, and youth is youth in spite of bolts and bars. The springtime of life was repressed in Anton, but it was working silently within him, and silently there was unfolding a power not given to all of us. His work in the marble-shop was readily learned, for the apprenticeship at tailoring had trained his eye and hand, and steadfast application had become habitual. As his ability was recognized ornamental work on marble was assigned him. At first he followed the patterns as did the ordinary workmen; these designs suggested to him others; then he obtained permission to work out the beautiful lines that seemed always waiting to form themselves under his hand, and the patterns were finally set aside altogether. The art impulse within him was astir and finding expression, and as time passed he was frankly recognized as the best workman in the shop.

He was homesick still, always homesick, but fresh interest had come into his existence, for unawares the spirit of beauty had come to be the companion of his working-hours. He did not recognize her. He had never heard of art impulses. But he found solid human pleasure and took simple boyish pride in the individuality and excellence of his work.

The first year and the second year of his imprisonment passed: the days dawning, darkening, and melting away, as like to one another as beads upon a string, each one counted into the past at night as meaning one day less of imprisonment. But toward the end of the second year the hours began to drag interminably, and Anton's interest in his work flagged. He became restless, the marble dust irritated his lungs, and a cough, at first unnoticed, increased until it constantly annoyed him. Then his rest at night was broken by pain in his side, and at last the doctor ordered him to be removed from the marble-shop. It was a frail body at best, and the confinement, the unremitting work, the total lack of air and exercise had done their worst; and all resisting physical power was undermined.

No longer able to work, Anton was relegated to the "idle room." Under the wise rule of recent wardens the idle room has happily become a thing of the past, but for years it was a feature of the institution, owing partly to limited hospital accommodations. By the prisoners generally this idle room, called by them the "dreary room," was looked upon as the half-way station between the shops and the grave. Most cheerless and melancholy was this place where men too far gone in disease to work, men worn out in body and broken in spirit, waited together day after day until their maladies developed sufficiently for them to be considered fit subjects for hospital care. Usually no reading-matter was allowed, and free social intercourse was of course forbidden, although the inmates occasionally indulged in the luxury of comparing diseases. Under the strain of that deadening monotony courage failed, and to many a man indifferent to his own fate the sight of the hopelessness of others was heart-breaking. The influence of the idle room was not quite so depressing when Anton came within its circle, for a light industry had just been introduced there, and some of the inmates were employed.

And at this time Anton was beginning to live in a day-dream. His cell-mate, a young man serving a twenty years' sentence, was confidently expecting a

pardon; pardons became the constant theme of talk between the two when the day was over, and Anton's faith in his own possible release kindled and glowed with the brightening prospects of his friend. Hope, that strange characteristic of tuberculosis, flamed the higher as disease progressed; with the hectic flush there came into his eyes a more brilliant light, and a stronger power to look beyond the prison to dear liberty and home. Even the shadow of the idle room could not dim the light of his imagination. No longer able to carve his fancies on stone, he wove them into beautiful patterns for life in freedom. The hope of a pardon is in the air in every prison. Anton wrote to his family and talked with his sister about it, and though he made no definite beginning every day his faith grew stronger.

It was at this time that I met Anton. I was visiting at the penitentiary, and during a conversation with a young English convict, a semi-protégé of Mary Anderson, the actress, this young man said to me: "I wish you knew my cell-mate." I replied that I already knew too many men in that prison. "But if you would only see little Anton I know *you would be mashed in a minute*," the Englishman confidently asserted. As to that probability I was sceptical, but I was impressed by the earnestness of the young man as he sketched the outline of Anton's story and urged me to see him. I remember that he made a point of this: "The boy is so happy thinking that he will get a pardon sometime, but he will die here if somebody doesn't help him soon." To gratify the Englishman I consented to see the happy boy who was in danger of dying.

An attractive or interesting face is rare among the inmates of our prisons. The striped convict suit, which our so-called Christian civilization so long inflicted upon fellow men, in itself gave an air of degradation,[\[9\]](#) and the repression of all animation tends to produce an expression of almost uniform dulness. Notwithstanding his cell-mate's enthusiasm I was thrilled with surprise, and something deeper than surprise, when I saw Anton Zabinski. The beauty of that young Polish prisoner shone like a star above the degrading convict suit. It was the face of a Raphael, with the broad brow and the large, luminous, far-apart eyes of darkest blue, suggesting in their depths all the beautiful repressed possibilities—eyes radiant with hope and with childlike innocence and trust. My heart was instantly vibrant with sympathy, and we were friends with the first hand-clasp. The artistic

temperament was as evident in the slender, highly developed hands as in his face.

At a glance I saw that his fate was sealed; but his spirit of hope was irresistible and carried me on in its own current for the hour. Anton was like a happy child, frankly and joyfully opening his heart to a friend whom he seemed always to have known. That bright hour was unclouded by any dark forebodings in regard to illness or an obdurate governor. We talked of pardon and freedom and home and happiness. I did not speak to him of repentance or preparation for death. I felt that when the summons came to that guileless spirit it could only be a summons to a fuller life.

During our interview the son of the new warden came in, and I called his attention to Anton. It was charming to see the cordial, friendly fashion in which this young man^[10] talked to the prisoner, asking where he could be found and promising to do what he could for him, while Anton felt that at last he was touching the hand of Providence. The new authorities had not been there long enough to know many of the convicts individually, but at dinner that day the warden's son interested his father in Anton by recounting their conversation that morning. The warden's always ready sympathy was touched. "Take the boy out of that idle room," he said, "take him around the yard with you to see the dogs and horses." This may not have been discipline, but it was delightfully human—and humanizing.

When I left the prison I was assured that I could depend upon the warden's influence in furthering my purpose of realizing Anton's dream, his faith and hope of pardon. The following Sunday in Chicago I found the Zabriski family, father, mother, and the young sister, in their third-story back rooms. On the wall hung a framed photograph of Anton as a little child. The mother did not speak very clear English, but she managed to repeat, over and over again: "Anton was so good; always he was such a good boy." The young sister, a tailoress, very trim in her dark-blue Sunday gown, discussed intelligently ways and means of obtaining her brother's release.

Our plans worked smoothly, and a few weeks later, when all Chicago was given over to the World's Fair, the desire of Anton's heart came true and he was restored to home and freedom. Or, as the newspapers would have put it: "Our anarchist governor let loose another murderer to prey upon society."

Poor little murderer! In all that great city there was no child more helpless or harmless than he.

The image of little Anton Zabriski, as of the prison itself, grew faint in my heart for the time, under the spell of the long enchanting summer days and magical evenings at the White City.

The interest and the beauty of that fusion of all times and all countries was so absorbing and irresistible that I had stayed on and on until one day in July when I braced myself for the wrench of departure next morning. But the evening mail brought me letters from home and among them one forwarded from Anton, entreating me to come and see him. I had not counted on being remembered by Anton except as a milestone on his path toward freedom—I might have counted on it, however, after my many experiences of the gratitude of prisoners—but his longing to see me was unmistakable; and as I had broken my word so many times about going home that my reputation for unreliability in that direction could not be lowered, I sent a final telegram of delay.—Oh, luxury of having no character to lose!

The next morning I took an early start for the home of the Zabriskis. In a little back yard—a mere patch of bare ground without the possibility of a blade of grass, with no chance of even looking at the sky unless one lay on one's back, with uniform surroundings of back doors and back stairs—what a contrast to that dream of beauty at Jackson Park!—here it was that I found Anton, listlessly sitting on a bench with a little dog as companion. All hope and animation seemed to have died out within him; even the lights in his deep-blue eyes had given way to shadows; strength and courage had ebbed away, and he had yielded at last to weariness and depression. He had left the prison, indeed, but only to face death; he had come back to his home, only to be carried away from it forever. Even his mother's loving care could not stop that racking cough nor free him from pain. And how limited the longed-for freedom proved! It had reached out from his home only to the hospital dispensary. Weakness and poverty formed impassable barriers beyond which he could not go.

As I realized all this I resolved to give him the most lovely vision in the world to think of and to dream of. "Anton," I said, "how would you like to

take a steamer and go on the lake with me to see the World's Fair from the water?"—for him to attempt going on the grounds was not to be thought of.

For a moment he shrank from the effort of getting to the steamer, but after considering it for a while in silence he announced: "When I make up my mind that I will do a thing, I do it; I will go with you." Then we unfolded our plan for adventure to the mother. Rather wild she thought it, but our persuasive eloquence won the day and she consented, insisting only that we should partake of refreshments before starting on our expedition. With the connivance of a neighbor on the next floor Mrs. Zabriski obtained a delicious green-apple pie from a bakery near by and served it for our delectation.

I find that already the noble lines, with their beautiful lights and shadows, in the Court of Honor of the White City are blending into an indistinct memory; but the picture of Anton Zabriski as he leaned back in his chair on the steamer, breathing the delicious pure, fresh air, sweeping his glance across the boundless plain of undulating blue, will be with me forever. Here at last was freedom! And how eagerly the boy's perishing being drank it in!

There was everything going on around us to divert and amuse: crowds of people, of course, and a noisy band of musicians; but it all made no impression upon Anton. We two were practically alone with the infinite sky and the far-stretching water. It was easy then for Anton to tell me of his deeper thoughts, and to speak of the change that he knew was coming soon. Life had been so hard, only fruitless effort and a losing battle, and now he longed only for rest. He had felt the desire to give expression to beautiful form, he had felt the stirring of undeveloped creative power. We spoke of the future not as death but as the coming of new life and as the opportunity for the fair unfolding of all the higher possibilities of his nature—as freedom from all fetters. His faith, simple but serious, rested upon his consciousness of having, in his inmost soul, loved and sought the good. His outward life was hopelessly wrecked; but he was going away from that, and it was his soul, his true inner life, that would appear before God. It was all a mystery and he was helpless, but he was not afraid. *He had forgiven life.*

As we talked together the steamer neared the pier at Jackson Park. "And now, Anton, you must go to the other side of the boat and see the beautiful

White City," I said. It was like alabaster in its clear loveliness that radiant morning, and all alive with the lilting colors of innumerable flags. It was Swedish day, and a most gorgeous procession in national costume thronged the dock as our steamer approached, for we had on board some important delegation. A dozen bands were playing and the grand crash of sound and the brilliant massing of color thrilled me to my fingertips. But Anton only looked at it for a moment with unseeing eyes: it was too limited; it was the stir and sound and crowd of the city. He turned again eagerly to the great sweep of sky and water; "You don't know what this lake and this fresh air are to me," he said quietly, and he looked no more toward the land until we had returned to Van Buren Street.

After we left the steamer Anton threw off the spell of the water. He insisted on my taking a glass of soda with him from one of the fountains on the dock; it was his turn to be entertainer now. I drank the soda and live to tell the tale. By that time we had caught the bohemian spirit of the World's Fair, Anton was revived and excited by the hour on the water, and as we crossed over to Michigan Avenue the brilliant life of the street attracted and charmed him, and I proposed walking slowly down to the Auditorium Hotel. Every step of the way was a delight to Anton, and when we reached the great hotel I waited in the ladies' reception-room while Anton strolled through the entrances and office, looking at the richly blended tones of the marbles and the decoration in white and gold. I knew that it would be one more fresh and lovely memory for him to carry back to the little rooms where the brief remnant of his life was to be spent.

At an adjoining flower-stand we found sweet peas for his mother. I saw him safely on board the car that would take him to his home; then, with a parting wave of his hand and a bright, happy smile of farewell, little Anton Zabriski passed out of my sight.

Through the kindness of a friend I had the very great happiness of sending Anton a pass, "For bearer and one," that gave him, with an escort, the freedom of the World's Fair steamers for the summer—the greatest possible boon to the boy, for even when too weak to go to the steamer he could still cherish the expectation of that delight.

Anton's strength failed rapidly. He wrote me one letter saying: "I can die happy now that I am with my mother. I thank you a thousand times over and over for your kind feeling towards me and the kind words in your letters, and the charming rose you sent. I cannot write a long letter on account of my pains through my whole chest. I can't turn during the night from one side to another. Dear Friend, I don't like to tell my misery and sorrows to persons, but I can't help telling you."

Another letter soon followed, but not from Anton. It was the sister who wrote:

"DEAR FRIEND:

"With deep sorrow I inform you of my dear brother's death. He died at four o'clock in the morning. He had a great desire to see you before he died. We should be glad to see you at the funeral if convenient Wednesday morning.

"Pardon this poor letter
"from your loving friend
"MISS NINA ZABRINSKI."

FOOTNOTES:

[8] These "solitary" cells in which a prisoner passed his first night were in a detached building in which the punishment cells were located. The solitude was absolute and terrible.

[9] The striped convict suit was practically abolished at Joliet the following year.

[10] This young man, Edmund M. Allen, is now warden of this same prison, and has so developed the humanizing methods of his father as to bring Joliet penitentiary into the front rank of progressive prison reform.

CHAPTER X

On a lovely evening some thirty years ago there was a jolly wedding at the home of a young Irish girl in a Western city. Tom Evans, the groom, a big-hearted, jovial fellow, was deeply in love with the girl of his choice. He was earning good wages and he intended to take good care of his wife.

It was midnight, and the streets were flooded with brilliant moonlight when Evans started to take his bride from her home to his, accompanied on the way by Jim Maguire, Larry Flannigan, and Ned Foster, three of the wedding guests. They were not carriage folks and were walking to the street-car when Jim Maguire, who had not been averse to the exhilarating liquids in hospitable circulation at the wedding feast, became unduly hilarious and disported himself with song and dance along the sidewalk—a diversion in which the others took no part. This hilarity was summarily interrupted by a policeman, who attempted to arrest the young man for disorderly conduct, a proceeding vigorously resisted by Maguire.

This was the beginning of an affray in which the policeman was killed, and the whole party were arrested and taken into custody. As the policeman was well known, one of the most popular men on the force, naturally public indignation ran high and the feeling against his slayers was bitter and violent.

Tom Evans and Jim Maguire were held for murder, while Larry Flannigan, a boy of seventeen, and Ned Foster, as participants in the affair, were charged with manslaughter. The men were given fair trials—separate trials, I believe—in different courts, but it was impossible to get at the facts of the case, as there were no actual witnesses outside of those directly affected by the outcome; while each lawyer for the defence did his best to clear his own client from direct responsibility for the death of the policeman, regardless of the deserts of the others under accusation.

And so it came to pass that Jim Maguire and Tom Evans were "sent up" for life, while the bride of an hour returned to her father's house and in the course of time became the bride of another. Larry Flannigan was sentenced

to fourteen years' imprisonment. Ned Foster, having served a shorter sentence, was released previous to my acquaintance with the others.

Some five years later one of the prison officers interested in Jim Maguire asked me to interview the man. Maguire was a tall, muscular fellow, restive under confinement as a hound in leash; nervous, too, and with abounding vitality ready at a moment's notice again to break out in song and dance if only the chance were given. This very overcharge of high animal spirits, excited by the wedding festivities, was the starting-point of all the tragedy. No doubt, too, in his make-up there were corresponding elements of recklessness and defiance.

Our first interview was the beginning of an acquaintance resulting in an interchange of letters; but it was not until a year afterward that in a long conversation Maguire gave me an account of his part in the midnight street encounter. Admitting disorderly conduct and resistance against the officer, he claimed that it was resistance only and not a counter attack; stating that the struggle between the two continued until the officer had the upper hand and then continued beating him into subjection so vigorously that Maguire called for help and was rescued from the hands of the officer by "one of the other boys." He did not say which one nor further implicate any one.

"Ask the other boys," he said. "Larry didn't have anything to do with the killing, but he saw the whole thing. Get Larry to tell the story," he urged.

And so I was introduced to Larry. He was altogether of another type from Maguire. I hardly knew whether he wore the convict stripes or broadcloth when I was looking into that face, so sunny, so kindly, so frank. After all these years I can never think of Larry without a glow in my heart. He alone, of all my prisoners, appeared to have no consciousness of degradation, of being a convict; but met me simply and naturally as if we had been introduced at a picnic.

I told him of my interview with Jim Maguire and his immediate comment was: "Jim ought not to be here; he resisted arrest but he did not kill the officer; he's here for life and it's wrong, it's terrible. I hope you will do something for Jim."

"But what of yourself?" I asked; "you seem to have been outside of the affair altogether. I think I'd better do something for you."

"Oh, no!" he protested, "you can get one man out easier than two. I want to see Jim out, and I don't want to stand in his way. You know I am innocent, and all my friends believe me innocent, and I'm young and well and can stand my sentence; it will be less than ten years with good time off. My record is perfect and I shall get along all right. But Jim is here for life."

I felt as if I were dreaming. I knew it would be a simple matter to obtain release for Larry, who had already been there six years, but no, the boy would not consider that, would not even discuss it. His thought was all for Jim, and he was unconscious of self-sacrifice. He simply set aside what seemed to him the lesser good in order to secure the greater.

"Did you ever make a full statement in court?" I asked.

"No. We were only allowed to answer direct questions in the examinations. None of us were given a chance to tell the straight story."

"So the straight story never came out at any of the trials?"

"No."

Thinking it high time that the facts of a case in which two men were suffering imprisonment for life should be ascertained and put on record somewhere, it then remained for me to interview Evans, and to see how nearly the statements of the three men agreed, each given to me in private six years after the occurrence of the event.

Tom Evans—I see him now clearly as if it were but yesterday—a thick-set, burly figure with an intelligent face of good lines and strong character; a man of force who from his beginning as brakesman might have worked his way up to superintending a railroad, had the plan of his destiny been different.

I told him frankly that I had asked to see him in the interest of the other two, and that what I wanted first of all was to get the facts of the case, for the tragedy was still a "case" to me.

"And you want me to tell the story?" I felt the vibration of restrained emotion in the man from the first as he pictured the drama enacted in that midnight moonlight.

"I had just been married and we were going to my home. The streets were light as day. Jim was singing and dancing, when the policeman seized him. I saw there was going to be a fight and I made up my mind to keep out of it; for when I let my temper go it gets away with me. So I stood back with my girl. Jim called for help but I stood back till I really believed Jim might be killed. I couldn't stand by and see a friend beaten to death, or take any chance of that. And so I broke into the fight. I got hold of the policeman's club and began to beat the policeman. I am a strong man and I can strike a powerful blow."

Here Evans paused, and there was silence between us until he said with a change of tone and expression:

"It was Larry who came to the help of the policeman and got the club away from me. It's Larry that ought to be out. Jim made the trouble and I killed the policeman, but Larry is wholly innocent. He is the one I want to see out."

At last we were down to bed-rock; there was no doubt now of the facts which the clumsy machinery of the courts had failed to reach.

I assured Evans that I would gladly do what I could for Larry, and then and there Evans and I joined hands to help "the other boys." I realized something of the sacrifice involved when I asked Evans if he was willing to make a sworn statement in the presence of the warden of the facts he had given me. What a touchstone of the man's nature! But he was following the lead of truth and justice and there was no turning back.

We all felt that it was a serious transaction in the warden's office next day when Evans came in and, after a little quiet conversation with the warden, made and signed a statement to the effect that he, and he only, struck the blows that killed the policeman, and with hand on the Bible made oath to the truth of the statement, which was then signed, as witnesses, by the warden and a notary.

As Evans left the office the warden said to me: "Something ought to be done for that man also when the other boys are out."

I knew that in securing this confession I had committed myself to all the necessary steps involved before the prison doors could be opened to Maguire and Larry. And in my heart I was already pledged to befriend the man who, with unflinching courage, had imperilled his own chances of liberation in favor of the others; for I was now beginning to regard Evans as the central figure in the tragedy.

It is no brief nor simple matter to obtain the release of a man convicted of murder by the court and sentenced to life imprisonment unless one has political influence strong enough to override all obstacles. Almost endless are the delays likely to occur and the details to be worked out before one has in hand all the threads necessary to be woven into the fabric of a petition for executive clemency.

In order to come directly in touch with the families of Larry and Maguire, and with the competent lawyer already enlisted in their service and now in possession of the statement of Evans, I went to the city where the crime was committed. The very saddest face that I had seen in connection with this affair was the face of Maguire's widowed mother. She was such a little woman, with spirit too crushed and broken by poverty and the fate of her son to revive even at the hope of his release. It was only the ghost of a smile with which she greeted me; but when we parted her gratitude called down the blessings of all the saints in the calendar to follow me all my days.

Larry's people I found much the same sort as he, cheerful, generous, bravely meeting their share of the hard luck that had befallen him, apparently cherishing the treasure of his innocence more than resenting the injustice, but most grateful for any assistance toward his liberation. The lawyer who had interviewed Larry and Maguire at the penitentiary expressed amazement at what he called "the unbelievable unselfishness" of Larry. "I did not suppose it possible to find that spirit anywhere, last of all in a prison," he said. Larry had consented to be included on the petition drawn up for Maguire only when convinced that it would not impair Maguire's chances.

When I left the place the lines appeared to be well laid for the smooth running of our plans. I do not now remember what prevented the presentation of the petition for commutation of both sentences to twelve^[11] years; but more than a year passed before the opportune time seemed to be at hand.

During this interval Evans was by no means living always in disinterested plans for the benefit of the others. The burden of his own fate hung heavily over him and no one in the prison was more athirst for freedom than he. In books from the prison library he found some diversion, and when tired of fiction he turned to philosophy, seeking to apply its reasoning to his own hard lot; again, he sought in the poets some expression and interpretation of his own feelings. It was in the ever welcome letters that he found most actual pleasure, but he encountered difficulties in writing replies satisfactory to himself. In a letter now before me he says:

"I only wish that I could write as I feel, then indeed would you receive a gem; but I can't, more's the pity. But I can peruse and cherish your letters, and if I dare I would ask you to write oftener. Just think, the idea strikes me that I am writing to an *authorous*, me that never could spell a little bit. But the *authorous* is my friend, is she not, and will overlook this my defect. I have done the best I could to write a nice letter and I hope it will please you, but, in the words of Byron,

""What is writ is writ:
Would it were worthier. But I am not now
That which I have been, and my visions flit
Less palpably before me, and the glow
Which in my spirit dwelt is fluttering faint and low.'

"With the last line of your letter I close, 'write soon, will you not?'"

Evans's letters to me were infrequent, as he kept in correspondence with his lawyers, who encouraged him to hope that he would not spend all his life behind the bars. Others, too, claimed his letters. He writes me:

"I have a poor old mother who expects and always gets my Christmas letters, but I resolved that you should have my first New Years letter, so here it is, wishing you a happy new year and many of them. No doubt you had many Christmas letters from here telling you of the time we had, and a *jolly good time* it was. It is awfully dark here in the cells to day and I can hardly see the lines to write on. I hope you won't have as much trouble in reading it." The handwriting in Evans's letters is vigorous, clear, and open; a straightforward, manly hand, without frills or flourishes.

Just as I was leaving home for one of my semi-annual visits to the penitentiary, I had information from their lawyer that the petition for Maguire and Larry would be presented to the governor the following month. Very much elated with the good news I was bringing I asked first for an interview with Evans. He came in, evidently in very good spirits, but as I proceeded to relate with enthusiasm what we had accomplished I felt an increasing lack of response on the part of Evans and saw the light fading from his face.

"O Miss Taylor," he said at last, with such a note of pain in his voice, "you know my lawyers have been working for me all this time. Of course I told them of the statement I made in the warden's office, and then left the case in their hands. One of them was here yesterday and has a petition now ready asking that my sentence be reduced to fifteen years. Now if the other petition goes in first——"

There was no need to finish the sentence for the conflict of interests was clear; and Evans was visibly unnerved. We talked together for a long time. While unwilling to influence his decision I realized that, if his petition should have first consideration and be granted, the value of that confession, so important to the others, would be impaired, and the chances of Maguire's release lessened; for the governors are wary in accepting as evidence the confession of a man who has nothing to lose. On the other hand, I had not the heart to quench the hopes that Evans's lawyers had kindled. And in answer to his question, "What shall I do?" I could only say: "That is for you to decide."

At last Evans pulled himself together enough to say: "Well, I'm not going back on the boys now. I didn't realize just how my lawyers' efforts were

going to affect them. I'm going to leave the matter in your hands, for I know you will do what is right." And this he insisted on.

"Whatever course may seem best to take now, Tom, after this I shall never rest till I see you, too, out of prison," was my earnest assurance.

There had been such a spirit of fair play among these men that I next laid the case before Maguire and Larry, and we three held a consultation as to the best line of action. They, too, appreciated the generosity of Evans and realized, far more than I could, what it might cost him. Doubtless each one of the three felt the strong pull of self-interest; but there was no faltering in their unanimous choice of a square deal all around. One thing was clear, the necessity of bringing about an understanding and concerted action between the lawyers whose present intentions so seriously conflicted. The advice and moral support of the warden had been invaluable to me, and he and I both felt, if the lawyers could be induced to meet at the prison and consult not only with each other but with their three clients, if they could only come in direct touch with these convicts and realize that they were men who wanted to do the right thing and the fair thing, that a petition could be drawn placing Evans and Maguire on the same footing, and asking the same reduction of sentence for both; while Larry in justice was entitled to a full pardon. I still believe that if this course had been taken both petitions would have been granted. But lawyers in general seem to have a constitutional aversion to short cuts and simple measures, and Evans's lawyers made no response to any overtures toward co-operation.

At about this time occurred a change in the State administration, with the consequent inevitable delay in the consideration of petitions for executive clemency; as it was considered impolitic for the newly elected governor to begin his career by hasty interference with the decision of the courts, or too lenient an attitude toward convicts.

Then ensued that period of suspense which seems fairly to corrode the heart and nerves of the long-time convict. The spirit alternates between the fever of hope and the chill of despair. Men pray then who never prayed before. The days drag as they never dragged before; and when evening comes the mind cannot occupy itself with books while across the printed page the same questions are ever writing themselves: "Shall I hear to-morrow?"

"Will the governor grant or refuse my petition?" One closes the book only to enter the restless and wearisome night, breathing the dead air of the prison cell, listening to the tread of the guard in the corridor. Small wonder would it be if in those midnight hours Evans cursed the day in which he declared that he alone killed the policeman; but neither in his letters to me nor in his conversation was there ever an indication of regret for that action. The Catholic chaplain of the prison was truly a good shepherd and comforter to his flock, and it was real spiritual help and support that he gave to the men. His advice at the confessional may have been the seed from which sprung Evans's resolve to clear his own conscience and exonerate the others when the opportunity came.

Maguire never fluctuated in his confidence that freedom was on the way, but he was consumed with impatience; Larry alone, who never sought release, bided his time in serene cheerfulness.

And the powers that be accepted Larry's sacrifice; for so long was the delay in the governor's office that Maguire was released on the day on which Larry's sentence expired. The world looked very bright to Jim Maguire and Larry Flannigan as they passed out of the prison doors into liberty together. Maguire took up life again in his old environment, not very successfully, I have reason to think. But Larry made a fresh start in a distant city, unhampered by the fact that he was an ex-convict.

It was then that the deadly blight of prison life began to throw its pall over Evans, and the long nervous strain to undermine his health. He wrote me:

"I am still working at the old job, and I can say with truth that my antipathy to it increases each day. I am sick and tired of writing to lawyers for the last two years, and it amounted to nothing. I will gladly turn the case over to you if you can do anything with it."

The event proved that these lawyers were interested in their case, but politically they were in opposition to the governor and had no influence; nor did I succeed better in making the matter crystallize.

I had always found Evans animated and interested in whatever we were talking about until one interview when he had been in prison about thirteen years, all that time on prison contract work. The change in his appearance

was evident when he came into the room. He seated himself listlessly, and my heart sank, for too well I knew that dull apathy to which the long-time men succumb. Now, knowing with what glad anticipation he had formerly looked forward to our interviews, I was determined that the hour should not pass without leaving some pleasant memory; but it was twenty minutes or more before the cloud in his eyes lifted and the smile with which he had always greeted me appeared. His whole manner changed as he said: "Why, Miss Taylor, I am just waking up, beginning to realize that you are here. My mind is getting so dull that nothing seems to make any impression any more." He was all animation for the rest of the time, eagerly drinking in the joy of sympathetic companionship.—What greater joy does life give?

But I had taken the alarm, for clearly the man was breaking down, and I urged the warden to give him a change of work. The warden said he had tried to arrange that; but Evans was on contract work, one of the best men in the shop, and the contractors were unwilling to give up so profitable a workman—the evils of the contract system have much to answer for. So Evans continued to work on the contract, and the prison blight progressed and the man's vitality was steadily drained. When the next winter came and *la grippe* invaded the prison, the resisting power of Evans was sapped; and when attacked by the disease he was relegated to the prison hospital to recuperate. He did not recuperate; on the contrary, various symptoms of general physical deterioration appeared and it was evident that his working days on the prison contract were over.

A renewed attempt was now made to procure the release of Evans, as his broken health furnished a reason for urgency toward immediate action on the part of the governor, and this last attempt was successful. The good news was sent to Evans that in a month he would be a free man, and I was at the prison soon after the petition was granted. I knew that Evans was in the hospital, but had not been informed of his critical condition until the hospital physician told me that serious heart trouble had developed, intensified by excitement over the certainty of release.

No shadow of death was visible or was felt in this my last visit with Evans, who was dressed and sitting up when I went in to see him. Never, never have I seen any one so happy as was Evans that morning. With heart overflowing with joy and with gratitude, his face was radiant with delight.

All the old animation was kindled again, and the voice, no longer lifeless, was colored and warm with feeling.

"I want to thank everybody," he said, "the governor, my lawyers, the warden, and you. Everybody has been so good to me these last weeks. And I shall be home for next Sunday. My sister is coming to take me to her home, and she and my mother will take care of me until I'm able to work. Sister writes me that mother can't sit still, but walks up and down the room in her impatience to see me."

We two friends, who had clasped hands in the darkness of his fate, were together now when the dawn of his freedom was breaking, neither of us realizing that it was to be the greater freedom of the Life Invisible.

To us both, however, this hour was the beautiful culmination of our years of friendship. I read the man's heart as if it were an open book and it held only good will toward all the world.

Something moved me to speak to him as I had never spoken to one of my prisoners, to try and make him feel my appreciation of his courage, his unselfishness, his faithfulness. I told him that I realized how he had *lived out* the qualities of the most heroic soldier. To give one's life for one's country when the very air is charged with the spirit of patriotism is a fine thing and worthy of the thrill of admiration which it always excites. But liberty is dearer than life, and the prison atmosphere gives little inspiration to knightly deeds. This man had risen above himself into that higher region of moral victory. And so I said what was in my heart, while something deeper than happiness came into Evans's face.

And then we said good-by, smiling into each other's eyes. This happened, I think, on the last day but one of Evans's life.

Afterward it was told in the prison that Evans died of joy at the prospect of release. For him to be carried into the new life on this high tide of happiness seemed to me a gift from heaven. For in the thought of the prisoner freedom includes everything to be desired in life. The joy of that anticipation had blinded Evans to the fact that his health was ruined beyond repair. He was spared the realization that the life of freedom, so fair to his imagination,

could never truly be his; for the prison-house of disease has bolts and bars which no human hand can withdraw.

But that mother! If she could have read only once again the light of his love for her in the eyes of her son! But the sorrows of life fall alike upon the just and the unjust.

FOOTNOTE:

[\[11\]](#) The good time allowed on a twelve years' sentence reduces it to seven years and three months.

CHAPTER XI

The psychological side of convict life is intensely interesting, but in studying brain processes, supposed to be mechanical, one's theories and one's logical conclusions are likely to be baffled by a factor that will not be harnessed to any set of theories; namely, that *something which we call conscience*. We forget that the criminal is only a human being who has committed a crime, and that back of the crime is the same human nature common to us all.

During the first years when I was in touch with prison life I had only occasional glimpses of remorse for crimes committed. The minds of most of the convicts seemed to dwell on the "extenuating circumstances" more than on the criminal act, and the hardships of prison life were almost ever present in their thoughts. I had nearly come to consider the remorse pictured in literature and the drama as an unreal thing, when I made the acquaintance of Ellis Shannon and found it: a monster that gripped the human heart and held it as in a vise. Nemesis never completed a work of retribution more fully than it was completed in the life of Ellis Shannon.

Shannon was born in an Eastern city, was a boy of more than average ability, and there seemed no reason why he should have gone wrong; but he early lost his father, his mother failed to control him, and when about sixteen years of age he fell into bad company and was soon launched in his criminal career. He broke off all connection with his family, went West, and for ten years was successful in his line of business—regular burglary. He was widely known among men of his calling as "The Greek," and his "professional standing" was of the highest. The first I ever heard of him was from one of my other prison friends, who wrote me: "If you want to know about life in —— prison, write to Ellis Shannon, who is there now. You can depend absolutely on what he says—and when one professional says that of another you know it means something." I did not, however, avail myself of this introduction.

Shannon's reputation for cool nerve was undisputed, and it was said that he did not know what fear was. In order to keep a clear head and steady hand he refrained from dissipation; he prided himself upon never endangering the lives of those whose houses he entered, and despised the bunglers who did not know their business well enough to avoid personal encounter in their midnight raids. Unlike most men of his calling he always used a candle on entering a building, and his associates often told him that sometime that candle would get him into trouble.

One night the house of a prominent and popular citizen was entered. While the burglar was pursuing his nefarious work the citizen suddenly seized him by the shoulders, pulling him backward. The burglar managed to fire backward over his own head, the citizen's hold was relaxed, and the burglar fled. The shot proved fatal; the only trace left by the assailant was a candle dropped on the floor.

A reward was offered for the capture and conviction of the murderer. Circumstantial evidence connected with the candle led to the arrest of George Brett, a young man of the same town, not of the criminal class. The verdict in the case turned upon the identification of the piece of candle found in the house with one procured by the accused the previous day; and in the opinion of the court this identification was proven. Brett admitted having obtained a piece of candle from that grocer on that afternoon, but claimed that he had used it in a jack-o'-lantern made for a child in the family.[\[12\]](#) Proof was insufficient to convict the man of the actual crime, but this bit of evidence, with some other less direct, was deemed sufficiently incriminating to warrant sending Brett to prison for a term of years—seventeen, I think; and though the convicted man always asserted his innocence his guilt was taken for granted while six years slipped by.

Ellis Shannon, in the meantime, had been arrested for burglary in another State and had served a sentence in another penitentiary. He seemed to have lost his nerve, and luck had turned against him. On his release still another burglary resulted in a ten years' sentence, this time to the same prison where Brett was paying the penalty of the crime in which the candle had played so important a part.

The two convicts happened to have cells in the same part of the prison, and for the first time Ellis Shannon came face to face with George Brett. A few days later Shannon requested an interview with the warden. In the warden's office he announced that he was the man guilty of the crime for which Brett was suffering, and that Brett had no part in it. He drew a sketch of the house burglarized—not altogether correct—gave a succinct account of the whole affair, and declared his readiness to go into court, plead guilty to murder, and accept the sentence, even to the death penalty. Action on this confession was promptly taken. Shannon was sent into court and on his confession alone was sentenced to imprisonment for life.

Brett was overjoyed by this vindication and the expectation of immediate release. But, no; the prosecuting parties were unconvinced by Shannon's confession, which, in their opinion, did not dispose of the evidence against Brett.

It was a curious state of affairs, and one perhaps never paralleled, that, while a man's unsupported statement was considered sufficient to justify the imposing of a sentence to life imprisonment, this statement counted for nothing as affecting the fate of the other man involved. And there was never a trace of collusion between the two men, either at the time of the crime or afterward.

Shannon's story of the crime I shall give in his own terse language, quoted from his confession published in the newspapers:

"Up to the time of killing Mr. —— I had never even wounded anybody. I had very little regard for the rights of property, but to shoot a man dead at night in his own house was a climax of villainy I had not counted on. A professional thief is not so blood-thirsty a wretch as he is thought to be.... I am setting up no defense for the crime of murder or burglary—it is all horrible enough. It was a miserable combination of circumstances that caused the shooting that night. I was not feeling well and so went into the house with my overcoat on—something I had never done before. It was buttoned to the throat. I had looked at Mr. —— a moment before and he was asleep. I had then turned and taken down his clothes. I had a candle in one hand and the clothes in the other. I would have left in a second of time when suddenly, before I could turn, Mr. —— spoke. As quick as the word

he had his arms thrown around me; the candle went out and we were in the dark.

"Now I could hardly remember afterwards how it all occurred. There was no time to think. I was helpless as a baby in the position in which I was held. There is no time for reflection in a struggle like this. He was holding me and I was struggling to get away. I told him several times to let go or I'd shoot. I was nearly crazy with excitement and it was simply the animal instinct of self-preservation that caused me to fire the shots.

"I was so weak when I got outside that in running I fell down two or three times. That night in Chicago I was in hopes the man was only wounded, and in that case I had determined to quit the business. When I read the account in the papers next morning all I can say is that, although I was in the city and perfectly safe, with as little chance of being discovered as if I were in another planet, I would have taken my chances—whether it would have been five or twenty years for the burglary—if it were only in my power to do the thing over again. I did not much care what I did after this. I thought I could be no worse than I was.

"In a few months I was arrested and got five years for a burglary in ——. I read what I could of the trial from what papers I could get; and for the first time I saw what a deadly web circumstances and the conceit of human shrewdness can weave around an innocent man.

"The trial went on. I did not open my mouth. I knew that if I said a word and went into court fresh from the penitentiary I would certainly be hanged, and I had not reached a point when I was ready to sacrifice my life for a stranger.

"In the feverish life I led in the short time out of prison I forgot all about this, until I found myself here for ten years and then I thought: there is a man in this prison doing hard work, eating coarse food, deprived of everything that makes life worth having, and suffering for a crime of which he knows as little as the dust that is yet to be created to fill these miserable cells. I thought what a hell the place must be to him.

"No one has worked this confession out of me. I wish to implicate no one, but myself. If you will not believe what I say now, and ——— stays in prison,

it is likely the truth will never be known. But if in the future the man who was with me that night will come to the front, whether I am alive or dead, you will find that what I have told you is as true as the law of gravitation. I was never in the town of —— before that time or since. I did not know whom I had killed until I read of it. I do not know —— (Brett) or any of his friends. But I do know that he is perfectly innocent of the crime he is in prison for. I know it better than any one in the world because I committed the crime myself."

The position of Brett was not affected in the least by this confession, though his family were doing all in their power to secure his release. The case was considered most difficult of solution. The theory of delusion on Shannon's part was advanced and was accepted by those who believed Brett guilty, but received no credence among the convicts who knew Shannon and the burglar associated with him at the time the crime was committed.

I had never sought the acquaintance of a "noted criminal" before, but this case interested me and I asked to see Shannon. For the first time I felt myself at a disadvantage in an interview with a convict. A sort of aloofness seemed to form the very atmosphere of his personality, and though he sat near me it was with face averted and downcast eyes; the face seemed cut in marble, it was so pale and cold, with clear-cut, regular features, suggesting a singular appropriateness in his being known as "The Greek."

I opened conversation with some reference to the newspaper reports; Shannon listened courteously but with face averted and eyes downcast, and then in low, level tones, but with a certain incisiveness, he entered upon the motive which led to his confession, revealing to me also his own point of view of the situation. Six years had passed since the crime was committed, and all that time, he said, he had believed that, if he could bring himself to confess, Brett would be cleared—that during these six years the murder had become a thing of the past, partially extenuated in his mind, on the ground of self-defence; but when he found himself in the same prison with Brett, here was a result of his crime, living, suffering; and in the depths of Shannon's own conscience pleading for vindication and liberty. As a burden on his own soul the murder might have been borne in silence between himself and his Creator, but as a living curse on another it demanded

confession. And the desire to right that wrong swept through his being with overmastering force.

"I had always believed," he said, "that 'truth crushed to earth would rise again,' and I was willing to give my life for truth; but I learned that the word of a convict is nothing—truth in a convict counts for nothing."

The man had scarcely moved when he told me all this, and he sat like a statue of despair when he relapsed into silence—still with downcast eyes; I was absolutely convinced of the truth of what he had told me, of the central truth of the whole affair, his guilt and his consciousness of the innocence of the other man. That his impressions of some of the details of the case might not square with known facts was of secondary importance; to me the *internal evidence* was convincing. Isn't there something in the Bible to the effect that "spirit beareth witness unto spirit"? At all events, *sometimes a woman knows*.

I told Shannon that I believed in his truth, and I offered to send him magazines and letters if he wished. Then he gave me one swift glance of scrutiny, with eyes accustomed to reading people, thanked me, and added as we parted: "If there were more people like you in this world there wouldn't be so many like me."

My belief in the truth of Shannon's statement was purely intuitive, but in order to make it clear to my understanding as well I studied every objection to its acceptance by those who believed Shannon to be the victim of a delusion. His sincerity no one doubted. It was claimed that Shannon had manifested no interest in the case previous to his arrival in the prison where Brett was. On the way to this prison Shannon, in attempting to escape from the sheriff, had received a blow on the back of his head, which it was assumed might have affected his mind. Among my convict acquaintances was a man who had worked in the shop beside Shannon in another prison, at the time of Brett's trial for the crime, and this man could have had no possible motive for incriminating Shannon. He told me that during all the time of the trial, five years previous to the blow on his head, Shannon was greatly disturbed, impatient to get hold of newspapers which he had to borrow, and apparently absorbed in studying the evidence against Brett, but saying always, "They can't convict him." This convict went on to tell me

that after the case was decided against Brett Shannon seemed to lose his nerve and all interest in life. This account tallies exactly with Shannon's printed confession, in which he says: "I read what I could of the trial in what papers I could get. I had not yet reached the point where I was willing to sacrifice my life for a stranger."

In his confession Shannon had spoken of his accomplice in that terrible night's work as one who could come forward and substantiate his statements. Four different convicts of my acquaintance knew who this man was, but not one of them was able to put me in communication with him. The man had utterly disappeared. But this bit of evidence as to his knowledge of the crime I did collect—his whereabouts was known to at least one other of my convict acquaintances till the day after Shannon's confession was made public. That day my acquaintance received from Shannon's accomplice *a paper with the confession marked* and from that day had lost all trace of him. The convict made this comment in defence of the silence of the accomplice:

"He wouldn't be such a fool as to come forward and incriminate himself after Shannon's experience."

Convicts in several States were aware of Shannon's fruitless effort to right a wrong, and knew of the punishment brought upon himself by his attempt. The outcome of the occurrence must have been regarded as a warning to other convicts who might be prompted to honest confession in behalf of another.

At that time I had never seen George Brett, and not until later was I in communication with his lawyers. But I was convinced that only from convicts could evidence verifying Shannon's confession be gleaned.

As far as I know, nothing more connected with that crime has ever come to light. And even to-day there is doubtless a division of opinion among those best informed. Finding there was nothing I could do in the matter, my interest became centred in the study of the man Shannon. He was an interesting study from the purely psychological side, still more so in the gradual revelation of his real inner life.

It is difficult to reconcile Shannon's life of action with his life of thought, for he was a man of intellect, a student and a thinker. His use of English was always correct. The range of his reading was wide, including the best fiction, philosophy, science, and, more unusual, the English essayists—Addison, Steele, and other contributors to *The Spectator*. The true philosopher is shown in the following extract from one of his letters to me:

"I beg you not to think that I consider myself a martyr to the cause of truth. That my statement was rejected takes nothing from the naked fact, but simply proves the failure of conditions by which it was to be established as such. It did not come within the rules of acceptance in these things, consequently it was not accepted. This is a world of method. Things should be in their place. People do not go to a fish-monger for diamonds, nor to a prison for truth. I recognize the incongruity of my position and submit to the inevitable."

In explanation of his reception of my first call he writes:

"I don't think that at first I quite understood the nature of your call—it was so unexpected. If my meaning in what I said was obscure it was because in thinking and brooding too much one becomes unable to talk and gradually falls into a state where words seem unnatural. *And these prison thoughts are terrible*. In their uselessness they are like spiders building cobwebs in the brain, clouding it and clogging it beyond repair. I try to use imagination as a drug to fill my mind with a fanciful contentment that I can know in no other way. When I was a child I used to dream and speculate in anticipation of the world that was coming. Now I do the same, but for a different reason—to make me forget the detestable period of fact that has intervened.

"So when I am not reading or sleeping, and when my work may be performed mechanically and with least mental exertion, I live away from myself and surroundings as much as possible. I was in a condition something like this at the time of your call. A dreamer dislikes at best to be awakened and in a situation like mine it is especially trying. While talking in this way I must beg pardon, for I did really appreciate your visit and felt more human after it. I would not have you infer from this that the slightest imagination entered into my story of that unfortunate affair. I would it were so; but if it is a fact that I exist, all that I related is just as true."

His choice of Schopenhauer as a friend illustrates the homœopathic principle of like curing like.

"Schopenhauer is an old friend and favorite of mine. Very often when I am getting wretchedly blue and when everything as seen through my eyes is wearing a most rascally tinge, I derive an immense amount of comfort and consolation by thinking how much worse they have appeared to Schopenhauer." In other words, the great pessimist served to produce a healthy reaction.

But this reaction was but for the hour. All through Shannon's letters there runs a vein of the bitterest pessimism. He distrusted all forms of religion and arraigns the prison chaplains in these words:

"I have never met a class of men who appear to know less of the spiritual nature or the wants of their flocks. It is strange to me that men, who might so easily gather material for the finest practical lessons, surrounded as they are by real life experiences and illustrations by which they might well teach that *crime does not pay* either in coin or happiness, that they will ignore all this and rack their brains to produce elaborate theological discourses founded upon some sentence of a fisherman who existed two thousand years ago, to paralyze and mystify a lot of poor plain horse thieves and burglars. What prisoners are in need of is a man able to preach natural, every-day common sense, with occasionally a little humor or an agreeable story or incident to illustrate a moral. It seems to me if I were to turn preacher I would try and study the simple character of the great master as it is handed down to us."

It strikes me that prison chaplains would do well to heed this convict point of view of their preaching.

I do not recall that Shannon ever made a criticism upon the administration of the prison of which he was then an inmate, but he gives free expression to his opinion of our general system of imprisonment. He had been studying the reports of a prison congress recently in session where various "reformatory measures" had been discussed, or, to use his expression, "expatiated upon," and writes:

"I wish to make a few remarks from personal observation upon this subject of prison reform. I will admit, to begin with, that upon the ground of protection to society, the next best thing to hanging a criminal is to put him in prison, providing you keep him there; but if you seek his reformation it is the worst thing you can do with him. Convicts generally are not philosophers, neither are they men of pure thought or deep religious feelings. They are not all sufficient to themselves, and for this reason confinement never did, never can and never will have a good effect upon them.

"I have known hundreds of men, young and old, who have served time in prison. I have known many of them to grow crafty in prison and upon release to employ their peculiar talents in some other line of business, safer but not less degrading to themselves; but I never knew one to have been made a better man by *prison discipline*;—those who reformed did so through other influences.

"It may be a good prison or a bad one, with discipline lax or rigorous, but the effect, though different, is never good: it never can be. Crime is older than prisons. According to best accounts it began in the Garden of Eden, but God—who knew human nature—instead of shutting up Adam and Eve separately, drove them out into the world where they could exercise their minds hustling for themselves. Since then there has been but one system that reformed a man without killing him, namely, transportation.

"This system, instead of leaving a bad man in prison, *to saturate himself with his own poison*, sent him to a distant country, where under new conditions, and with something to work and hope for, he could harmlessly dissipate that poison among the wilds of nature. It may be no other system is possible; that the world is getting too densely populated to admit of transportation; or that society owes nothing to one who has broken her laws. I write this, not as 'an Echo from a Living Tomb,' but as plain common sense."[\[13\]](#)

Personal pride, one of the very elements of the man's nature, kept him from ever uttering a complaint of individual hardships; but the mere fact of confinement, the lack of air, space, freedom of movement and action, oppressed him as if the iron bars were actually pressing against his spirit.

His one aim was to find some Lethe in which he could drown memory and consciousness of self. In all the years of his manhood there seemed to have been no sunny spot in which memory could find a resting-place.

From first to last his misdirection of life had been such a frightful blunder; even in its own line such a dismal failure. His boasted "fine art" of burglary had landed him in the ranks of murderers. He had despised cowardice and yet at the critical hour in the destiny of another he had proven himself a coward. And when by complete self-sacrifice he had sought to right the wrong the sacrifice had been in vain.

Understanding something of the world in which he lived, I suggested the study of a new language as a mental occupation requiring concentration on a line entirely disconnected from his past. He gladly adopted my suggestion and began the study of German; but it was all in vain—he could not escape from himself.

He had managed to keep so brave a front in his letters that I was unaware that the man was completely breaking down until the spring morning when we had our last interview.

There was in his face the unmistakable look of the man who is doomed—so many of my prisoners died. His remorse was like a living thing that had eaten into his life—a very wolf within his breast. He was no longer impassive, but fairly writhing in mental agony. He did not seem to know that he was dying; he certainly did not care. His one thought was for Brett and the far-reaching, irreparable wrong that Brett had suffered through him. When I said that I thought the fate of the innocent man in prison was not so dreadful as that of the guilty man Shannon exclaimed: "You are mistaken. I don't see how it is possible for a man unjustly imprisoned to believe in any justice, human or divine, or in any God above," and he continued with an impassioned appeal on behalf of innocent prisoners which left a deep impression with me. In his own being he seemed to be actually experiencing at once the fate of the innocent victim of injustice and of the guilty man suffering just punishment. He spoke of his intense spiritual loneliness, which human sympathy was powerless to reach, and of how thankful he should be if he could find light or hope in any religion; but he

could not believe in any God of truth or justice while Brett was left in prison. A soul more completely desolate it is impossible to imagine.

My next letter from Shannon was written from the hospital, and expresses the expectation of being "all right again in a few days"; farther on in the letter come these words:

"I do believe in a future life. Without this hope and its consoling influence life would scarcely be worth living. I believe that all the men who have ever died, Atheists or whatever they professed to be, did so with the hope more or less sustaining them, of awakening to a future life. This hope is implanted by nature universally in the human breast and it is not unlikely to suppose that it has some meaning."

A few weeks later I received a line from the warden telling me of the death of Ellis Shannon, and from the prison hospital was sent me a little volume of translations from Socrates which had been Shannon's companion in his last days. A slip of paper between the leaves marked Socrates's reflections on death and immortality. The report of one of the hospital nurses to me was:

"Shannon had consumption, but he died of grief." It is not often that one dies of a broken heart outside the pages of fiction and romance, but medical authority assures us that it sometimes happens.

Up to this time I had never seen George Brett, but after the death of Shannon we had one long interview. What first struck me was the remarkable similarity between the voices of Brett and Shannon, as supposed identification of the voice of Brett with that of the burglar had been accepted as evidence at the trial. My general impression of the man was wholly favorable. He was depressed and discouraged, but responsive, frank, and unstudied in all that he said. When he mentioned the man shot in the burglary I watched him closely; his whole manner brightened as he said:

"Why, he was one of the best men in the world, a man that little children loved. He was good to every one."

"And you could never speak of that man as you are speaking now if you had taken his life," was my inward comment.

Brett's attitude toward Shannon was free from any shade of resentment, but what most impressed me was that Shannon's belief that the unjust conviction of Brett and his own fruitless effort to right the wrong must make it impossible for Brett ever to believe in a just God—in other words, that the most cruel injury to Brett was the spiritual injury. This belief proved to be without foundation. George Brett had not been a religious man, but in Shannon he saw that truth and honor were more than life, stronger than the instinct of self-preservation; and he could hardly escape from the belief that divine justice itself was the impelling power back of the impulse prompting Shannon to confession. In the strange action and interaction of one life upon another, in the final summing up of the relation of these two men, it seemed to have been given to Shannon to touch the deeper springs of spiritual life in Brett, to reveal to him something of the eternal verities of existence.

And truth crushed to earth did rise again; for not long after the death of Shannon, in the eighth year of his imprisonment, George Brett was pardoned, with the public statement that he had been convicted on doubtful evidence and that the confession of Shannon had been accepted in proof of his innocence.

No adequate compensation can ever be made to one who has suffered unjust imprisonment, but there are already indications of the dawn of a to-morrow when the state, in common honesty, will feel bound to make at least financial restitution to those who have been the victims of such injustice.

FOOTNOTES:

[12] The crime was committed after the midnight of Hallowe'en.

[13] This letter was written twenty-five years ago. The logic of Shannon's argument is unquestionably sound. The futility of imprisonment as a reformatory agent is now widely recognized. But better than transportation is the system of conditional liberation of men after conviction now receiving favorable consideration—even tentative adoption—in many States.

CHAPTER XII

There is another chapter to my experience with prisoners; it is the story of what they have done for me, for they have kept the balance of give and take very even between us. I have an odd collection of souvenirs and keepsakes, but, incongruous as the different articles are, one thread connects them all; from the coarse, stubby pair of little mittens suggesting the hand of a six-year-old country boy to the flask of rare Venetian glass in the dull Oriental tones dear to the æsthetic soul; from the hammock that swings under the maple-trees to the diminutive heart in delicately veined onyx, designed to be worn as a pendant.

The mittens came from Jackson Currant, a friendly soul who unravelled the one pair of mittens allowed him for the winter, contrived to possess himself of a piece of wire from which he fashioned a hook, and evenings in his cell crocheted for me a pair of mittens. Funny little things they were, but a real gift, for this prisoner took from himself and gave to me the one thing he had to give.

Another gift which touched me came from an old Rocky Mountain trapper—then a prisoner for life. His one most cherished possession was a copy of "A Day in Athens with Socrates," sent him by the translator. After keeping the precious book for three years and learning its contents by heart, he sent it to me as a birthday gift and I found it among other birthday presents one February morning. Then there is the cherry box that holds my stationery, with E. A.'s initials carved in the cover; E. A., who is reclaiming his future from all shadow of his past. It was E. A. who introduced me to my Welsh boy, Alfred Allen, and it was Alfred who opened my heart to all the street waifs in the universe.

In many ways my life has been enriched by my prisoners. Most delightful social affiliations, most stimulating intellectual influences, and some of the warmest friendships of my life, by odd chains of circumstances have developed from my prison interests.

Almost any friend can give us material gifts—the gift of things—the friend who widens our social relations or broadens our interests does us far better service; but it is the rare friend who opens our spiritual perception to whom we are most indebted. For through the ages has been pursued the quest of some proof that man is a spiritual being, some evidence that what we call the soul has its origin beyond the realm of the material; the learning of all time has failed to satisfy this quest; and the wealth of the world cannot purchase one fragment of such proof.

And yet it is to one of my prisoners that I owe the gift of an hour in which the spirit of man seemed the one vital fact of his existence, the one thing beyond the reach of death; and time has given priceless value to that hour.

I met James Wilson in the first years of my prison acquaintance, and it was long before it occurred to me that under later legislation he would have been classed as an habitual criminal. I have often wondered at the power of his personality; it must have been purely the result of innate qualities. He was brave, he was generous, he was loyalty itself; and his sympathies were responsive as those of a woman. He would have been an intrepid soldier, a venturesome explorer, a chivalrous knight; but in the confusion of human life the boy was shoved to the wrong track and having the momentum of youth and strong vitality he rushed recklessly onward into the course of a Robin Hood; living in an age when those who come into collision with the social forces of law and order are called criminals, his career in that direction fortunately was of short duration.

Had Wilson not been arrested in his downward course he might never have come into possession of the self whom I knew so well, that true self at last so clearly victorious over adverse circumstances. In this sketch I have not used Wilson's letters; they were so purely personal, so wholly of his inner life, that to give them to the public seemed desecration.

I can give but one glimpse of his childhood. When he was a very little boy he sat on his father's knee and looked up into kind and loving gray eyes. The father died, and the son remembered him always as kind and loving.

The loss of his father changed the course of Wilson's life. The mother formed other ties; the boy was one too many, and left home altogether as soon as he was old enough to shift for himself. He went honestly to work,

where so many boys along the Mississippi Valley are morally ruined—on a river-boat.

After a time things began to go wrong with him. I don't know whether the injury was real or fancied, but the boy believed himself maliciously injured; and in the blind passion following he left the river, taking with him money that belonged to the man who had angered him. Wilson had meant to square the score, to balance wrong with wrong; but his revenge recoiled upon himself and at sixteen he was a thief and a fugitive. Before the impetus of that moral movement was exhausted he was in the penitentiary—"one of the most vigorous and fine-looking men in the prison, tall and splendidly built," so said another prisoner who knew him at that time.

At the expiration of his three years' sentence Wilson began work in a Saint Louis printing-office, opening, so he believed, a new chapter in life. He was then twenty years of age.

During that year all through the West—if the Mississippi region can still be called West—there were serious labor troubles. Men were discharged from every branch of employment where they could be spared; and the day came when all the "new hands" in the printing-office where Wilson worked were turned off.

Wilson had saved something from his earnings, and while his money lasted he lived honestly, seeking employment, but the money was gone before he found employment. Outside the cities the country was overrun with tramps; temptations to lawlessness were multiplied; starvation, stealing, or begging seemed the only pathway open to many. None starved; there was little choice between the other alternatives. Jails and prisons were crowded with inmates, some of whom felt themselves fortunate in being provided with food and shelter even at the cost of liberty. "I have gone hungry so many days and slept on the ground so many nights that the thought of a prison seems something like home," was a remark made to me. "The world owes me a living" was a thought that came in the form of temptation to many a man who could get no honest work.

After Wilson had been out of employment for two or three months there occurred a great commotion near a small town within fifty miles of Saint Louis. Stores had been broken into and property carried off, and a desperate

attempt was made to capture the burglars, who were supposed to be in that vicinity. A man who had gone to a stream of water was arrested and identified as belonging to the gang. He was ordered to betray his accomplices; he refused absolutely. The reckless courage in his nature once aroused, the "honor" observed among thieves was his inevitable course. A rope was brought, and Wilson was taken to a tree where the story of his life would doubtless have ended had not a shout from others, who were still searching, proclaimed the discovery of the retreat of his companions. Wilson and Davis, the two leaders, were sentenced each to four years in the penitentiary.

Defeated, dishonored, penniless, and friendless, Wilson found himself again in prison; this time under the more than double disgrace of being a "second-term" man, with consciousness of having deliberately made a choice of crime. He was an avowed infidel, and his impetuous, unsubdued nature was at war with life and the world. For two years he lived on in this way; then his health began to fail under the strain of work and confinement.

With the loss of strength his heart grew harder and more desperate. One day his old recklessness broke out in open revolt against prison authority. He was punished by being sent to the "solitary," where the temperature in summer is much lower than that of the shops where the men work; he took cold, a hemorrhage of the lungs resulted, and he was sent to the prison hospital.

There, on a Sunday morning two months later, I first met Wilson. I think it was the glance of the dark-gray eyes under long, sweeping black lashes that first attracted me. But it was the expression of the face, the quiet, dignified courtesy of manner, and the candid statement of his history that made the deeper impression. Simply and briefly he gave me the outlines of his past; and he spoke with deep, concentrated bitterness of the crushing, terrible life in prison. His unspoken loneliness—he had lost all trace of his mother—and his illness, almost ignored but evident, appealed to my sympathy and prompted me to offer to write to him. He thought it would be a pleasure to receive letters, but assured me that he could write nothing worth reading in return.

Long afterward I asked what induced him to reply to my questions so frankly and sincerely. His answer was: "Because I knew if I lied to you, it would make it harder for you to believe the next man you talked with, who might tell you the truth." During all that Sunday afternoon and evening Wilson remained in my thoughts, and the next afternoon—Hallowe'en, as it happened—found me again at the hospital. I stopped for a few moments at the bedside of a young prisoner who was flushed with hectic fever and wildly rebellious over the thought of dying in prison—he lived to die an honest man in freedom, in the dress of a civilized being and not in the barbarous, zebra-like suit then worn in the prison. I remained for a longer time beside the bed of a man who was serving a sentence of imprisonment for life for a crime of which he was innocent. After twelve years his innocence was proved; he was released a crippled invalid, with no means of support except by hands robbed of their power to work. The State makes no reparation for an unspeakable wrong like this, far more cruel than death.

When I turned to look for Wilson he was sitting apart from the other men, with a vacant chair beside him. Joining him beside that west window, flooded with the golden light of an autumn sunset, I took the vacant seat intended for me; and the hour that followed so influenced Wilson's future that he adopted that day—Hallowe'en—as his birthday. He knew the year but not the month in which he was born.

I have not the slightest recollection of what I said while we sat beside the window. But even now I can see Wilson's face as he listened with silent attention, not meeting my eyes. I think I spoke of his personal responsibility for the life he had lived. I am certain that I said nothing about swearing and that I asked no promises.

But thoughts not in my mind were suggested to him. For when I ceased speaking he raised his eyes, and looking at me intently he said: "I can't promise to be a Christian; my life has been too bad for that; but I want to promise you that I will give up swearing and try to have pure thoughts. I can promise you that, because these things lie in my own power; but there's too much wickedness between me and God for me ever to be a Christian."

His only possession was the kingdom of his thoughts; without reservation it was offered to his friend, and with the sure understanding that she would

value it.

It was a surprise when I received Wilson's first letter to see the unformed writing and the uncertain spelling; but the spirit of the man could be traced, even through the inadequate medium. In earnestness and simplicity he was seeking to fulfil his promise, finding, as he inevitably must, that he had committed himself to more than his promise. It was not long before he wrote that he had begun a new life altogether "for your sake and for my own." His "thoughts" gave him great trouble, for the old channels were still open, and his cell-mate's mind was steeped in wickedness. But he made the best of the situation, and instead of seeking to ward off evil he took the higher course of sharing his own better thoughts with his cell-mate, over whom he acquired a strong influence. Steadfastly he sought to overcome evil with good. Very slowly grew his confidence in himself; and his great anxiety seemed to be lest I should think him better than he was.

Like all persons with tuberculosis Wilson was sanguine of recovery; and as he went back to work in one of the shops the day after I left, and always wrote hopefully, I took it for granted that his health was improving.

Six months only passed before we met again, and I was wholly unprepared for the startling change in Wilson's appearance. His cough and the shortness of his breath were distressing. But the poor fellow was so delighted to see me that he tried to set his own condition entirely aside.

We had a long talk in the twilight of that lovely May evening, and again we were seated beside a window, through which the light and sounds of spring came in. I learned then how hard life was for that dying man. He was still subject to the strict discipline of the most strictly disciplined prison in the country: compelled to rise at five in the morning and go through the hurried but exact preparations for the day required of well men. He was kept on the coarse prison fare, forced to march breathlessly in the rapid lock-step of the gang of strong men with whom he worked, and kept at work in the shop all through the long days. The strain on nerve and will and physical strength was never relaxed.

These things he told me, and they were all true; but he told me also better things, not so hard for me to know. He gave me the history of his moral struggles and victories. He told me of the "comfort" my letters had been to

him; his whole heart was opened to me in the faith that I would understand and believe him. It was then that he told me he was trying to live by some verses he had learned; and in answer to my request, hesitatingly, and with breath shortened still more by embarrassment, he repeated the lines:

"I stand upon the Mount of God,
With gladness in my soul,
I hear the storms in vale beneath—
I hear the thunder roll.

"But I am calm with Thee, my God,
Beneath these glorious skies,
And to the height on which I stand
No storm nor cloud can rise."

He was wholly unconscious that there was anything unusual in his reaching up from the depths of sin, misery, and degradation to the spiritual heights of eternal light. He rather reproached himself for having left the valley of repentance, seeming to feel that he had escaped mental suffering that was deserved; although he admitted: "The night after you left me in October, when I went back to my cell, the tears were just running down my face—if that could be called repentance."

At the close of our interview, as Wilson was going out, he passed another prisoner on the way in to see me.

"Do you know Wilson?" was Newton's greeting as he approached me.

"Do *you* know Wilson?" was my question in reply.

Newton had taken offence at something in one of my letters and it was to make peace with him that I had planned the interview, but all misunderstanding evaporated completely in our common regret and anxiety about Wilson; for my feeling was fully shared by this man who—well, he *was* pretty thoroughly hardened on all other subjects. But here the chord of tenderness was touched; and all his hardness and resentment melted in the relief of finding some one who felt as he did on the subject nearest his heart.

"I have worked beside Wilson in the shop for two years, and I have never loved any man as I have grown to love him," he said. "And it has been so terrible to see him dying by inches, and kept at work when he could scarcely stand." The man spoke with strong emotion; the very depths of his nature were stirred. He told me all about this friendship, which had developed notwithstanding the fact that conversation between convicts was supposed to be confined to necessary communication in relation to work. Side by side they had worked in the shop, and as Wilson's strength failed Newton managed to help him. Newton's praise and affection really counted for something, as he was an embittered man with small faith in human nature. He said that in all his life nothing had been so hard as to see his friend sinking under his fate, while *he* was powerless to interfere. Newton and I had one comfort, however, in the fact that Wilson's sentence was near the end. In justice to the authorities of the prison where these men were confined I wish to state that dying prisoners were usually sent to the hospital. Wilson's was an exceptional case of hardship.

Early in July Wilson was released from prison. When he reached Chicago his evident weakness arrested the attention of a passer-by, who hired a boy to carry his bundle and see him to his destination. He had determined to try to support himself, believing that freedom would bring increased strength; but he was too ill to work. The doctor whom he consulted spoke encouragingly, but urged the necessity of rest and Minnesota air. I therefore sent him a pass to Minneapolis, and the route was by way of my own home.

Life was hard on Wilson, but it gave him one day of happiness apart from poverty or crime, when he felt himself a welcome guest in the home of a friend. When his train arrived from Chicago I was at the station to meet him, and before driving home we called on my physician that I might know what to anticipate. The doctor commended the plan for the climate of Minnesota, and spoke encouragingly to Wilson, but to me privately he gave the fiat, "No hope."

Wilson spent the rest of that day in the library of my home, and all the afternoon he was smiling. My face reflected his smiles, but I could not forget the shadow of death in the background. We talked of many things that afternoon; the breadth and fairness of his opinions on prison matters,

the impersonal way in which he was able to consider the subject, surprised me, for his individual experience had been exceptionally severe.

When weariness came into his eyes and his voice I suggested a little music. The gayer music did not so much appeal to him, but I shall never forget the man's delight in the sweet and restful cadences of Mendelssohn. After a simple tea served Wilson in the library we took a drive into the country, where the invalid enjoyed the lovely view of hills and valleys wrapped in the glow of the summer sunset; and then I left him for the night at a comfortable hotel.

The next morning Wilson was radiantly happy, notwithstanding "a hard night"; and it happened to be one of the days when summer does her best to keep us in love with life. All the forenoon we spent under a great maple-tree, with birds in the branches and blue sky overhead, Wilson abandoning himself to the simple joy of living and resting. Wilson was a fine-looking man in citizen's dress, his regular features refined and spiritualized by illness.

There were preparations to be made for Minnesota and the suit-case to be repacked, and what value Wilson placed upon the various articles I contributed! I think it was the cake of scented soap—clearly a luxury—that pleased him most, but he was interested in every single thing, and his heart was warmed by the cordial friendliness of my mother, who added her own contribution to his future comfort. His one regret was that he had nothing to give us in return.

But time was on the wing, and the morning slipped by all too rapidly, as the hours of red-letter days always do, and the afternoon brought the parting at the train for Minneapolis. Wilson lingered beside me while there was time, then looking gravely into my eyes, he said: "Good-by; I hope that we shall meet again—*on this side*." A moment later the moving train carried him away toward the north, which to him meant the hope of health.

Exhausted by the journey to Minneapolis, he at once applied for admission to a Catholic hospital, and here I will let him speak for himself, through the first letter that I received after he left me.

"DEAR FRIEND:

"I am now in the hospital, and I am so sleepy when I try to write that I asked one of the sisters to write for me.

"I felt quite weak when I first came here, but now I take beef-tea, and I feel so much stronger, I think I will be very much better by the end of this month.

"The Mother Superior is most kind and calls me her boy and thinks she will soon have me quite well again. I have a fine room to myself, and I feel most happy as I enjoy the beautiful fresh air from the Mississippi River, which runs quite near me.

"Dear friend, I wish you were here to enjoy a few days and see how happy I am."

And scrawled below, in a feeble but familiar handwriting, were the words:

"I tried to write, but failed."

Under the influence of the sisters Wilson was led back to the church into which he had been baptized, and although he did not accept its limitations he found great comfort in the sense of protection that it gave him. Rest and nursing and the magical air of Minnesota effected such an improvement in his health that before many weeks Wilson was discharged from the hospital.

After a short period of outdoor work, in which he tested his strength, he went into a printing-office, where, for a month, he felt himself a man among men. But it was an overambitious and unwise step—confinement and close air of the office were more than he could endure, and with great regret he gave up the situation.

Winter was setting in and he found no work that he could do, and yet thought himself too well to again seek admission to a hospital. The outlook of life darkened, for there seemed to be no place for him anywhere. He did not write to me during that time of uncertainty, and one day, after having spent three nights in a railroad station, as a last resort he asked to be sent to the county home and was received there; after that he could not easily obtain admission to a hospital.

Western county homes were at that time hard places; in some respects existence there was harder than in the prison, where restraint and discipline are in a measure a protection, securing a man undisturbed possession of his inner life and thoughts, during working hours at least. The ceaselessly intrusive life of the home, with the lack of discipline and the unrestrained intercourse of inmates, with the idleness and the dirt, is far more demoralizing; crime itself does not sap self-respect like being an idle pauper among paupers. All this could be read between the lines of Wilson's letters.

And now a new dread was taking hold of him. All his hope and ambition had centred in the desire to be good for this life. He had persistently shut out the thought of death as the one thing that would prevent his realizing this desire. Nature and youth clung passionately to life, and all the strength of his will was nerved to resist the advance of disease. But day by day the realization that life was slipping from him forced itself deeper into his consciousness; even for the time discouraging him morally. His high resolves seemed of no avail. It was all of no use. He must die a pauper with no chance to regain his lost manhood; life seemed indeed a hopeless failure. I had supplied Wilson with paper and envelopes, stamped and addressed, that I might never fail of hearing from him directly or through others; but there came an interval of several weeks when I heard nothing, although writing regularly. Perplexed, as well as anxious, in my determination to break the silence at all hazards, I wrote a somewhat peremptory letter. The answer came by return mail, but it was the keeper of the county home who wrote that Wilson had written regularly and that he was very unhappy over my last letter, adding:

"He says that if this room was filled with money it would not tempt him to neglect his best friend; and when I told him that this room was pretty big and would hold a lot of money he said that didn't make any difference."

I could not be reconciled to Wilson's dying in that place, and when the spring days came he was sent to Chicago, where his entrance to a hospital had been arranged. It was an April afternoon when I found him in one of the main wards of the hospital, a large room flooded with sunshine and fresh air. Young women, charming in their nurses' uniform, with skilled and gentle hands, were the ministering spirits there; the presiding genius a beautiful Philadelphian whose gracious tranquillity was in itself a heavenly

benediction to the sick and suffering among whom she lived. On a table beside Wilson's bed trailing arbutus was filling the air with fragrance and telling the story of spring.

Wilson was greatly altered; but his face was radiant in the gladness of our meeting. For weeks previous he had not been able to write me of his thoughts or feelings, and I do not know when the change came. But it was clearly evident that, as death approached, he had turned to meet it; and had found, as so many others have found, that death no longer seemed an enemy and the end of all things, but a friend who was leading the way to fuller life; he assumed that I understood all this; he would have found it difficult to express it in words; but he had much to tell me of all those around him, and wished to share with me the friendships he had formed in the hospital; and I was interested in the way the *quality of the man's nature* had made itself felt among nurses and patients alike.

One of the patients who had just been discharged came to the bedside to bid him good-by; Wilson grasped his hand and in a few earnest words reminded him of promises given in a previous conversation. With broken voice the man renewed his promises, and left with his eyes full of tears. He was unable to utter the good-by he had come to give.

At the close of my visit Wilson insisted upon giving me the loveliest cluster of his arbutus; while Miss Alden, the Philadelphian, sanctioned with a smile his sharing of her gift with another.

As Miss Alden went with me to the door she told me of her deep interest in Wilson, and of the respect and affection he had won from all who had come in contact with him. "The nurses consider it a pleasure to do anything for one who asks so little and is so grateful," she said. Though knowing that he had been in prison, Miss Alden was surprised to learn that Wilson was not a man of education. His use of English, the general tone of his thoughts and conversation, had classed him as a man familiar with good literature and refined associations. She, too, had felt in him a certain spiritual strength, and was touched by his loyalty to me, which seemed never obscured by his gratitude to others. She believed that only the strength of his desire to see me once again had kept him in this world for the previous week.

The next morning Wilson was visibly weaker; the animation caused by the excitement of seeing me the day before was gone; but the spiritual peace and strength which had come to him were the more evident.

At his dictation I wrote a last message to Newton, and directions as to the disposal of his clothing, to be given to patients whose needs he had discovered. He expressed a wish to leave some little remembrances for each of the nurses; there were six to whom he felt particularly indebted. There was Miss Stevens, "who has been so very kind at night"; every one had her special claim, and I promised that each should receive some token of his gratitude.

Afterward he spoke of the new life before him as naturally and easily as he spoke of the hospital. He seemed already to have crossed the border of the new life. His heart had found its home in God; there he could give himself without reserve. Life and eternity were gladly offered to the One in whom he had perfect trust.

"Tell me," I said, "what is your thought of heaven, now that it is so near? What do you expect?"

How full of courage and trust and honesty was his answer! "I do not expect happiness; at least not at once. God is too just for that, after the life I have lived." Imprisonment, sickness, poverty, all the evils that we most dread, had been endured for years, but counted for nothing to him when weighed against his ruined life. But the thought of suffering brought no fear. The justice of God was dearer to him than personal happiness. I left that feeling undisturbed. He was nearer than I to the light of the perfect day, and I could see that, unconsciously, he had ceased to look to any one "on this side" for light.

Wilson was sleeping when I saw him again, but the rapid change which had taken place was apparent at a glance. When he opened his eyes and saw me standing beside him he looked at me silently for a moment. With an effort he gathered strength for what he evidently wished to say; and all the gratitude and affection that he had never before attempted to express to me directly were revealed in a few simple words. He would have no good-by; the loss of the supreme friendship of his life formed no part of his idea of death. Then he spoke of the larger life of humanity for which he had learned

to feel so deeply, and his final words to me were: "Be to others what you have been to me. We are all brothers and sisters." The last thought between us was not to be of an exclusive, individual friendship, but of that universal tie which binds each to all.

Before midnight the earthly life had ended, peacefully and without fear. The stem of Easter lilies that I carried to the hospital next day was placed in the hands folded in the last sleep, and Wilson clasped in death the symbol of new life and heavenly purity.

Wilson was one of the men behind the bars; but it is as man among men that I think of him; and his last words to me, "We are all brothers and sisters," sum up the truth that inspires every effort the round world over to answer the call of those who are desolate or oppressed—whether the cry comes from little children in the mine, the workshop, or the tenement, or from those who are in slavery, in hospital, or in prison.

CHAPTER XIII

It was during the eighties and the nineties of the last century that I was most closely in touch with prison life; and it was at that time that the men whose stories I have told and from whose letters I have quoted were behind the bars. For forty years or more there was no radical change in methods of discipline in this prison, but material conditions were somewhat improved, the stripes and the lock-step were abandoned, and sanitation was bettered.

This institution stood as one of the best in the country, and doubtless it was above the average in most respects. While the convicts were under rigid repressive regulations, the guards were under rules scarcely less strict, no favoritism was allowed, no bribery tolerated, and the successive administrations were thoroughly honorable. While the different wardens conformed to accepted standards of discipline there were many instances of individual kindness from members of the administration, and no favor that I asked for a prisoner was ever refused.

But the twentieth century has brought a complete revolution in methods of dealing with convicts. This radical revolution is overthrowing century-old customs, and theories both ancient and modern. It has been sprung upon us so suddenly that we have not yet grasped its full meaning, but the causes leading up to it have been silently working these many years.

For ages the individuality of the human being has been merged in the term criminal; the criminal had practically ceased to be a man, and was classified only according to his offence; as murderer, thief, forger, pickpocket, etc. During the nineteenth century there was a gradual mitigation of the fate of the convict: laws became more flexible, efforts were made to secure more uniformity in the length of sentence imposed, many States discarded the lock-step and the striped clothing, and the contract system was giving place to other employment of convicts. While the older prisons were growing unspeakably worse through decaying walls and increasing vermin, as new penitentiaries were built more light, better ventilation, larger cells, and altogether better sanitation were adopted. However, the Lombroso theory of

a distinct criminal type, stamped with pronounced physical characteristics, was taught in all our universities and so generally accepted by the public that the criminal was believed to be *a different kind of man*.

The courts did a thriving business collecting all their fees and keeping our prisons well filled, while the discipline of the convicts was left to the prison officials, with practically no interference. Prison congresses were held and there was much talk around and about the criminal, but he was not regarded as a man with human feelings and human rights; methods of management were discussed, but the inhuman punishments sanctioned by some of these very wardens were never mentioned in these discussions. "We are in charge; all's right in the convict world," was the impression given the outsider who listened to their addresses.

Unquestionably many of these prison wardens were at heart humanitarians, and gave to their prisons a distinctive atmosphere as the result of their personal characteristics, but they were all the victims of tradition as to dealing with convicts—tradition and precedent, the established order of prison management. The inexperienced warden taking charge naturally followed the beaten tracks; he studied the situation from the point of view of his predecessor, and the position at best was a difficult one; radical innovations could be made only with the sanction of the prison commissioners, who seemed to be mainly interested in the prison as a paying proposition; and pay it did under the abominable contract system.

And so the years went on with the main lines of prison discipline—the daily lives of the convicts—practically unchanged. The convict was merely a human machine to be worked a certain number of hours with no incentive to good work beyond the fear of punishment. No thought was given to fitting him for future citizenship. Every prison had its punishment cells, some of them underground, most of them dark, where men were confined for days on bread and water, usually shackled standing to the iron door of the cell during working hours, and at night sleeping on the stone floor unless a board was provided—the food a scant allowance of bread and water. Punishment of this kind was inflicted for even slight infractions of rules, while floggings, "water cures," and other devilish methods were sometimes resorted to. In prisons of the better grade the most rigidly

repressive measures were enforced and all natural human impulses were repressed. This was considered "excellent discipline."

Now, as to the results of those severe punishments and rigid repressive methods: were the criminals reformed? Was society protected? What were the fruits of our prisons and reformatories? I have before me reliable, up-to-date statistics from a neighboring State as to the number of men convicted of a second offence after serving one term in prison. The general average shows that forty, out of every hundred men sent to prison for the first time, on being released commit a second crime. This percentage represents a fair average of the results of non-progressive prison methods to-day. But while our prisons were practically at a standstill and crime was on the increase the world was moving, new ideas were in the very air, destined to be of no less importance in human development than the mastery of electricity is proving in the material world.

There is an old proverb that all work and no play makes Jack a dull boy. Some fifteen years ago the vital truth contained in this old saying suddenly crystallized into the playground movement. More chance for recreation, more variety in mental occupation, more fresh air and sunshine, were strenuously demanded. Not only have playgrounds broken out even in the midst of our crowded cities, but open-air schools have sprung into existence in Europe and are gaining in favor in this country where climate permits. Athletics in all forms have steadily gained in popularity. Freedom for the body, exercise for every muscle, is not only advocated by physicians but has become the fashion, until golf is now the great American pastime, and the benefit of physical recreation is no longer questioned.

Even more far-reaching in eventual influence is the modern recognition of the rights and claims of the individual. This awakening is so widespread that it cannot be centralized in any personal leadership. It is like the dawning of a great light upon the life of the twentieth century in all civilized countries, and already it is affecting existence in countless directions.

In the army the common soldier is no longer regarded as merely a shooting-machine, he is drilled and trained and schooled into development as a man as well as a soldier. In the treatment of the insane, physical restraint is

gradually being relegated to the past; the patient is regarded first of all as a human being, not merely as a case. More and more the individual needs are studied and individual talents brought into activity. In schools for the mentally defective the very foundation of the methods and aims is to promote the development of the individual, to draw out to the utmost whatever rudiments of ability the child may possess and to keep the light turned steadily on the normal rather than the abnormal in his nature. Physicians, psychologists, and educators alike are realizing the importance of adapting methods to the needs of the individual.

Child-study—unfortunately, in many cases the study of text-books rather than of the living child in the family, but child-study in some form—prevails among the mothers of to-day. The gifted Madame Montessori, from both the scientific and the humanitarian standpoint, is emphasizing the importance of giving the child freedom for self-expression. In the suffrage movement we have another evidence of the same impulse toward recognition of individual rights. It comes to us from every direction, even from the battle-field where the Red Cross nurse sees neither friend nor foe, only a suffering man needing her care.

Here we have two great forces: nature's imperative demand for more freedom for the body, more of God's sunshine and fresh air; and the still more imperative demand from the spirit in man for recognition and release. The two forces unite in the one demand, *Pro sanitate totius hominis*—for the health of the whole man.

Some thirty years ago Richard Dugdale, a large-hearted, large-brained student of sociology, had the courage to state that the great blunder of society in dealing with criminals began with shutting up so many of them within our prisons, practically enslaving them to the state, depriving them of all rewards for their labor and often throwing their families upon public taxation for support; even in many cases making the punishment fall more heavily upon innocent relatives than upon the offenders themselves. He believed, however, that there would be a residue of practically irreclaimable criminals whose permanent removal from society was necessary, but that life for this class should be made as nearly normal as possible. Richard Dugdale was a man of prophetic insight, with a clear vision of the whole question of social economics—social duties as well. Unfortunately, his

death soon followed the publication of his articles. But time is making his dreams come true, and vindicating the soundness of his theories. Even during the lifetime of this man spasmodic efforts were made in placing men on probation after a first offence instead of sending them to prison.

With the introduction of the juvenile courts early in the present century this idea assumed practical form; and Judge Lindsey, of Denver, gave such impetus to the movement to save young offenders from the demoralizing influence of jails and miscalled reformatories that this example has been followed in all directions, and thousands of boys have been rescued from criminal life. "Save the boys and girls" appealed directly to the masses, and this ounce of prevention was indorsed with little opposition.

But when the extension of the probation privilege to include adult offenders—still further to reduce the prison population—was advocated the public held back, fearing danger to society in allowing these older lawbreakers to escape the legal penalties of their offences. However, the current of progress was not to be stemmed, and adult probation has been legalized in many States. The results have been satisfactory beyond expectation, showing an average of less than five per cent of men released on probation reverting to crime, against forty per cent of reversions after a term in a non-progressive penitentiary.

This adult probation law confers upon the judge not mandatory but discretionary power, and the character of the judge plays a part not less important than the character of the offender; the application of the law is primarily a relation of man to man; the unjust judge will be unjust still, the timid judge will avoid taking risks; in the very human side in which lies the strength of this course lie also its limitations.

Now the very foundation of the probation idea is the recognition of the individual character of the offender and the circumstances leading to the crime. But no sooner was the adult probation law in force than the claim of the individual from another direction began to be recognized. Curiously enough, in legal proceedings against criminals the injured party had been entirely ignored—according to the old English precedent. It was not the crime of man against man but the crime of man against the state, the violation of a state law, that was punished. To the mind of the criminal a

crime against the state was but a vague and indefinite abstraction, except in case of murder unlikely to cause remorse, or any feeling of responsibility toward the person injured. If the injured party were revengeful he had the satisfaction of knowing that the criminal was punished; but the sending of the delinquent to prison deprived him of all opportunity for reparation.

An interesting thing begins to happen when the judge is given power to put a man on probation. At last the injury to the individual is taken into consideration. Here is an actual instance in point.

"Five thousand dollars was embezzled from a Los Angeles theatre and dissipated in high living by a man twenty-one years old. He confessed and received this sentence from the judge:

"You shall stay at home nights. You shall remain within the limits of this county. You shall not play billiards or pool, frequent cafés or drink intoxicating liquors, and you shall go immediately to work and keep at it till you pay back every dollar that you stole. Violate these terms and you go to prison."[\[14\]](#)

This practice of making restitution one of the conditions of probation is spreading rapidly. Here we have a method hitherto unapproached of securing all-round, common-sense justice, directly in line also with sound social economics. Mr. Morrison Swift has well said of a term in prison that "it breaks the current between the man and life, so that when he emerges it is hard to form connections again. He has lost his job, and too often health, nerve, and self-respect are impaired. These obstacles to reformation are swept away when a man retains his connection with the community by working in it like anybody else."

Another factor in the scheme of probation is that it brings the delinquent directly in touch with a friendly, guiding, and helping hand, placing him at once under good influences; for it is the duty of the probation officer to secure for his charge environment calculated to foster reformation: he becomes indeed his brother's keeper.

While modern ideas have thus been applied in the rescue of the individual before he has become identified with criminal life, even more marked has

been the invasion of recent movements into the very stronghold of the penitentiary itself.

The twentieth century marks the beginning of the crusade against tuberculosis. Physicians, philanthropists, and legislators combined against the fearful ravages of this enemy to the very life of the people. Generous appropriations were given by the state for the cure of the disease and every effort was made to trace the sources of the evil. And then it transpired that, while the state with her left hand was establishing out-of-door colonies for the treatment of tuberculosis, with her right hand she was maintaining laboratories for the culture of the fatal germs, and industriously scattering the seeds in localities where they would be most fruitful. In other words, the very walls of our prisons had become beds of infection. Doctor J. B. Ransome, of New York State, finds that from forty to sixty per cent of the deaths in all prisons are from tuberculosis; at times the mortality has run as high as eighty per cent. He tells us also that in the United States to-day there are twenty thousand tubercular prisoners, most of whom will return to the congested districts and stuffy tenements where the disease is most rapidly and virulently spread.[\[15\]](#)

He urges as of the utmost importance *that infected prisons be destroyed*, and that convicts be given work in the open air when possible; and that light, air, exercise, more nourishing food, and more healthful conditions generally be substituted for the disease-breeding conditions under which prisons have always existed. Thus, apart from all humanitarian considerations, public health demands radical changes in prisons and in the lives of the prisoners.

The automobile, the autocrat of the present day, has little of the missionary spirit; but it has made its imperious demand for good roads all over the country, and legislation now authorizing convict labor on State roads is not only responding to this demand but is partly solving the vexed problem of the employment of convicts.

How far the men responsible for the revolution in the management of prisoners have studied these trends of the times I do not know. Most of these men have doubtless builded better than they knew. All the winds of progress, moving from every direction, seem to be concentrating in one

blast destined to crumble the walls of our prisons as the walls of Jericho are said to have crumbled under the blast of the trumpets of the hosts of the Lord. It may even be that the hosts of the Lord are back of these winds of progress.

The introduction of this reform movement required men of exceptional force and ability, and in answer to this demand just such men are coming to the front. The United States has already developed a remarkable line of captains of industry, but not less remarkable men are taking this humanitarian field to-day.

The pioneer in revolutionizing prison-management was neither penologist nor philanthropist. The first step was taken for purely practical ends. It happened, when the twentieth century had just begun, that Mr. John Clegghorne, a newly appointed warden of a Colorado penitentiary, found that the State had provided neither cells nor workshops within the prison for the number of convicts sentenced to hard labor. To meet this exigency this warden decided to put a number of men to work outside the walls, organizing a camp and putting the men, then in striped clothing, on their honor not to escape. The experiment was altogether successful; but so quietly carried on that it received little attention outside the borders of its own State until the appointment of the next warden, Thomas J. Tynan, who recognized the beginning of true reform in the treatment of convicts and openly advocated the changes from humanitarian motives.

While to Colorado is given the precedence in this movement, a notable feature is the nearly simultaneous expression of feeling and ideas practically the same in widely separated localities, from the Pacific coast to the Atlantic, and even on the shores of Panama. Naturally the movement started in the West, in newer States less trammelled by precedent than the older States, where traditions of prison discipline had been handed down for two centuries; but the time was ripe for the change and it has been brought about through men, some of them trained penologists, others practical men of affairs, but all united in faith in human nature and in the one aim of fitting the men under their jurisdiction for self-supporting, law-abiding citizenship.

Sceptics as to the effect on the prisoner of this liberalizing tendency are silenced by the amazing response on the part of the convicts in every prison where the honor system has been applied. This response is unquestionable: a spirit of mutual confidence is displacing one of suspicion and discouragement, and in supplanting the old antagonism to prison authorities by a hearty sense of co-operation with them an inestimable point in prison discipline is gained. We hear much these days of the power of suggestion, and the suggestion, conscious and unconscious, permeating the very atmosphere of these progressive prisons is hopeful and helpful.

Never before in the tragic history of prisons has a spiritual force been applied to the control of prisoners; and yet with one consent the first step taken by these progressive wardens is to place convicts on their honor: not chains and shackles, not bolts and bars, no form of physical restraint; but a force indefinable, impalpable, invisible, applied to the spirit of these men. In bringing this force to bear on their charges these wardens have indeed "hitched their wagon to a star."

FOOTNOTES:

[14] Morrison I. Swift, *Atlantic Monthly*, August, 1911.

[15] *Atlantic Monthly*, August, 1911.

CHAPTER XIV

And the time came, in 1913, when the wave of revolution in prison methods struck the penitentiary which formed the background of the lives pictured within these pages. Back of all my friendships with these men had loomed the prison under the old methods, casting its dark shadow across their lives. Many of them died within the walls; others came out only to die in charity hospitals, or to take up the battle of life with enfeebled health and enfeebled powers of resistance and endurance. Almost as one man they had protected me from the realization of what they endured in the punishment cells—from what the physical conditions of prison life really were; but I knew far more than they thought I did—as much as I could endure to know—and in our interviews we understood that it was useless to discuss evils which I was powerless to help; and then, too, I always tried to make those interviews oases in the desert of their lives. But across my own heart also the shadow of the prison lay all those years. Into the bright melody of a June morning the sudden thought of the prison would crash with cruel discord; at times everything most bright and beautiful would but the more sharply accent the tragedy of prison life. Deep below the surface of my thought there was always the consciousness of the prison; but, on the other hand, this abiding consciousness made the ordinary trials and annoyances inseparable from human life seem of little moment, passing clouds across the sunlight of a more fortunate existence; and I was thankful that from my own happy hours I could glean some ray of brightness to pour into lives utterly desolate. So absolutely did I enter into the prison life that even to-day it forms one of the most vivid chapters of my personal experience. Accordingly, my point of view of the change in the prison situation cannot be altogether that of the outsider. *I know* what this change means to the men within the walls; for in feeling, I too have been a prisoner.

A little paper lies before me, the first number of a new monthly publication from behind the bars of the prison I know so well. In its pages is mirrored a new dispensation—the new dispensation sweeping with irresistible force from State to State. Too deep for words was the thankfulness that filled my heart as I tried to realize that at last the day had come when *prisoners were*

recognized as men, and that this blessed change had come to my own State. I knew it was on the way; I knew that things were working in the right direction; I had even talked with the new warden about some of these very changes; but here it was in black and white, over the signatures of the warden, his deputy, two chaplains, the prison doctor, and several representatives of the prisoners themselves: all bearing witness to the new order of things; to the facts already accomplished and to plans for the betterment of existing conditions. Of the fifteen hundred convicts fifty have been for several months employed on State roads under the supervision of two unarmed guards. The fifty men were honor men and none have broken faith. Two hundred more honor men will be sent out in the same way during the summer of 1914. Another three hundred will work on the prison farm of one thousand acres, erecting farm buildings and raising garden and farm products for the prison and the stock, and gaining health for themselves in a life practically free during working hours.

To the men inside the prison walls the routine of daily life is wholly altered. No longer do they eat in silence with downcast eyes; the table is a meeting-place of human beings where talk flows naturally. No longer is life one dull round from prison cell to shop, where talk and movements of relaxation are forbidden; and back in silent march to prison cell, with never a breath of fresh air except on the march to and from the shops. This monotony is now broken by a recreation hour in the open air every day, given in turn to companies of the men taken from the workshops in which exchange of remarks is now allowed. In pleasant weather this recreation is taken in games or other diversions involving exercise. "Everything goes but fighting" is the liberal permission, and recreation in cold weather takes the form of marching.

From October to May, for five hours in the day, six days in the week, school is in session in four separate rooms, the highest classes covering the eighth grade of our public schools. Any prisoner may absent himself from work one hour a day if desiring to attend the school, and can pursue his studies in his cell evenings. Competent teachers are found among the prisoners, and no guard is present during instruction hours. Arrangements are now on foot for educational correspondence connected with the State university.

The time given to recreation and to education has not lessened the output of the shops; on the contrary, the new spirit pervading the prison has so energized the men, so awakened their ambition, that more and better work is done in the shops than before. The grade of "industrial efficiency" recently introduced serves as a further incentive to skill and industry and will secure special recommendation for efficiency when the men are free to take their own places in the world.

Nor is this all; for each prisoner as far as is practicable is assigned work for which he is individually fitted. Men educated as physicians are transferred from the shops to the staff of hospital assistants; honor men qualified for positions where paid attendants have hitherto been employed are transferred to these positions, thus reducing expenses. Honor men having mechanical faculty are permitted during the evenings in their cells to make articles, the sale of which gives them a little money independently earned. Also in some of the prison shops the workers are allowed a share in the profits. It is the warden's aim to utilize as far as possible individual talent among his wards, to give every man every possible chance to earn an honest living on his release; to make the prison, as he puts it, "a school of citizenship." To every cell is furnished a copy of the Constitution of the United States and of the State in which the prison is located, with the laws affecting criminals. Further instructions relating to American citizenship are given, and are especially valuable to foreigners.

But helpful as are all these changes in method, the real heart of the change, the vital transforming quality is in the personal relation of the warden to his wards. In conferences held in the prison chapel the warden makes known his views and aims, speaking freely of prison matters, endeavoring to inspire the men with high ideals of conduct and to secure their intelligent and hearty co-operation for their present and their future. Here it is also that the men are free to make known their prison troubles, sure of the warden's sympathetic consideration of means of adjustment. Heart and soul the warden is devoted to his work, never losing sight of his ultimate aim of restoring to society law-abiding citizens, but also feeling the daily need of these prisoners for encouragement and for warm human sympathy.

Mr. Fielding-Hall, after many years of practical experience with criminals, reached the conclusion that humanity and compassion are essential

requisites in all attempts "to cure the disease of crime," and the curative power of sympathy is old as the hills; it began with the mother who first kissed the place to make it well; and from that day to this the limit to the power of sympathy has never been compassed, when sympathy is not allowed to evaporate as an emotion, but, hardened into a motive, becomes a lever to raise the fallen.

It is largely owing to the sympathy of the present warden that light and air have come into the moral and mental atmosphere of this prison. In the natures of the men qualities hitherto dormant and undiscovered have come to the surface and are in the ascendant, aroused by the warden's appeal to their manhood; and the warden's enthusiasm is the spark that has touched the spirit of the subordinate officials and has fused into unison the whole administration. And the warden is fortunate in the combination of men working with him. His deputy, the disciplinarian of the place, served for twenty-five years on the police force of Chicago, a position directly antagonized to crime and yet affording exceptional opportunity for the study of criminals. True to his colors as a protector of society, he now feels that society is best protected through the reclamation of those who have broken its laws; he believes that the true disciplinarian is not the one who punishes most severely but the one who trains his charges to join hands with him in the maintenance of law and order within their little community; and he has already reduced the punishment record for violation of rules to scarcely more than one-tenth of former averages; and the shackling of men in the punishment cells is abolished.

The prison physician is an up-to-date man, fully in accord with the views of the warden, and with admirable hospital equipment where excellent surgical work is done when required. The two chaplains have a missionary field of the highest opportunities, where a sympathetic friendship for the prisoner during six days in the week becomes the highway to their hearts on the seventh.

The faces of the prisoners bear witness to the life-giving influences at work among them; the downcast apathy has given place to an expression of cheerful interest, and the prison pallor to a healthful color. And the old prison buildings—the living tomb of hundreds of men—are themselves now doomed. On the adjacent farm the prisoners will eventually build new

quarters, either one modern prison into which God's sunlight and the free air of heaven will have access, or, better still, a prison village, a community in detached buildings, after the plan which has proven so satisfactory in other State institutions.

And what of the women sent to prison in this State? For fifteen years and more they have been housed in a separate institution. This has never been a place of degradation. Every inmate has a light, well-ventilated, outside room, supplied with simple furnishings and toilet conveniences; white spreads cover the beds, and the home touch is evident in the photographs and fancy-work so dear to the heart of woman. The prisoners in their dress of blue-and-white check are neat and trim in appearance as maids from Holland. They number but sixty-five, and conversation is allowed.

The women have a recreation playground for open-air exercise and an assembly-room for evening entertainments. They are given industrial training and elementary education; and though the discipline is firm the life is kept normal as possible; and wilful violation of rules seldom occurs. The present superintendent is a woman of exceptional qualifications for the position—a woman of quick, responsive sympathies, and wide experience, with fine executive ability. A *thorough* course in domestic science is fitting the women for domestic service or future home-making, and some of them are skilled in fine needle-work and embroidery.

The lines in the old picture of prison life so deeply etched into my consciousness are already fading; for while I know that in too many States the awakening has not come, and the fate of the prisoner is still a blot on our civilization, *the light has broken and the way is clear*. Not only in my own State but to every State in the Union the death-knell of the old penitentiary, with its noisome cells and dark dungeons, has struck. The bloodless revolution of the reform movement is irresistible simply because it is in line with human progress.

Not until the present generation of criminals has passed away can adequate results of the widespreading change in prison management be expected; for a large percentage of our convicts to-day are the product of crime-breeding jails, reformatories, and prisons. The "incurables" are all men who have been subjected to demoralizing and brutalizing influences. In the blood-

curdling outbreaks of gunmen and train-holdups society is but reaping the harvest of evils it has allowed. Not until police stations, jails, workhouses, reformatories, and prisons *are all radically changed* can any fair estimate be made of the value of the recent humane methods.

CHAPTER XV

The basic principle of reform in those who prey upon society is the changing of energies destructive into energies constructive. It is the opening of fresh channels for human forces. Change of environment, the breaking of every association connected with criminal pursuits, life in the open in contrast with the tainted atmosphere of crowded tenements and dance halls—all this has a healthful, liberating influence on the mind; abnormal obsessions are relaxed, different brain-cells become active, and the moral fibre of the man as well as his physical being absorbs vital elements. That the laborer is entitled to a share in the fruits of his labor is true the world over, and industry and efficiency are stimulated by recognition of the relation of achievement to reward.

Strict repressive discipline applied to organized enslavement of labor is in direct violation of all these principles. The penal colony seems a rational method of dealing with those whose permanent removal from our midst is deemed necessary. Time and again have penal colonies given satisfactory solution to the criminal problem. Virginia and Maryland absorbed the human exports from English courts, and their descendants joined in the building of a great nation; while the penal colony in Australia resulted in a civilization of the first rank. While the deportation of our criminals to-day may be neither practicable nor desirable, the establishment of industrial penal communities in every State, on a profit-sharing basis, is both practicable and desirable, and would unquestionably result in the permanent reform of many who are now a menace to public safety.

Notwithstanding that progressive wardens are accomplishing all-important changes in their domains, permanent reform work for convicts demands a number of concessions in legislation. Until the contract system is wholly and finally abolished in favor of the state-use system the power of even the best warden will be limited. With the state-use system and the prison farm the prisoners have a variety in opportunity of industrial training almost as great as that offered on the outside.

That the earnings of prisoners, beyond the cost of their maintenance, should either be credited to the man himself or sent to the family dependent upon him is but fair to the prisoner, and would relieve the county from which he is sent from taxation toward the support of the man's family. This is so obvious that it is now widely advocated for both economic and humanitarian reasons, and in several States has already been adopted.

Another concession is of still greater importance, since its neglect has been in direct violation not only of every principle of justice but of common every-day honesty. This concession is the recognition of the duty of the state to make what reparation is possible to the man who has suffered imprisonment for a crime of which he was innocent.

Years ago, during one of my visits to our penitentiary, a lawyer of wide experience made the remark: "From what I know of court proceedings I suppose twenty per cent of these convicts are innocent of the charge for which they are here." I did not credit that statement, and afterward repeated it to another lawyer, who said: "I should estimate the percentage even higher." I did not believe that estimate either; nor do I now believe it. But having worked up the cases and secured the pardons of two innocent men, and having personally known two other men imprisoned for crimes in which they took no part, I *know* that innocent men are sent to prison. Lawyers are prone to dispose of such instances with the offhand remark, "Well, they might not have been guilty of that particular act, but no doubt they had committed crimes for which they escaped punishment." I have positive knowledge of only those four cases, but in none of them was the convicted man from the criminal class. Another remark which I have met is this: "Doubtless there are innocent men in prison, but there are more guilty ones who escape," which reminds one of Charles Lamb's admission: "Yes, I am often late to business in the morning, but then I always go home early in the afternoon." Plausible as the excuse sounds, it but aggravates the admission.

It happened some years ago in my own State that a working man was convicted of killing another. Henry Briggs asserted his innocence, but a network of plausible evidence was drawn about him and he was sent to prison for life. His widowed mother had faith in his innocence and paid two thousand dollars to lawyers, who promised to secure her son's pardon but

accomplished nothing in that direction. Briggs had been in prison some ten years when he told his story to me and I believed that he told the truth. His home town was across the State from me, but I wrote the ex-sheriff, who was supposed to know all about the case, that the prisoner's mother would give another thousand dollars to him if he could secure evidence of Henry's innocence and obtain his pardon. A long and interesting correspondence followed, and at the end of two years evidence of the man's innocence was secured and Henry Briggs was a free man. In his last letter the sheriff wrote me: "To think that all these twelve years that convicted man had been telling the absolute truth *and it never occurred to any one to believe him* until you heard his story." But that ex-sheriff, who had collected his sheriff's fees and mileage for taking an innocent man to prison—he was really indebted to the prisoner for a neat little sum paid by the county—yet that sheriff had no scruples in taking the thousand dollars from Mrs. Briggs for righting a wrong which, he frankly admitted to me, he had taken part in perpetrating. Now, in common honesty, in dollars and cents, the county from which Henry was sent owed the Briggs mother and son at least ten thousand dollars; instead of which the mother was left an impoverished widow, while the son, with youth and health gone, had to begin life over again.

When men are maimed for life in a railroad accident the owners of the road are obliged to pay a good round sum in compensation. The employer is liable for damages when an employee is injured by defective machinery; but to the victims of our penal machinery no compensation is made by the state, at whose hands the outrage was committed. It is true that the injured party is at liberty to bring suit against the individual who charged him with the crime, but as the burned child dreads the fire so the innocent man convicted of a crime dreads the courts.

But we are waking up to a sense of this most cruel robbery; the robbery of a man's liberty, his earnings, his reputation, and too often his health; and we are coming to see that compensation from the state, on receiving convincing evidence of the man's innocence, is only the man's just due—is even far less than fair play.

To Wisconsin belongs the honor of taking the lead in this most important reform, since in 1913 Wisconsin passed a law insuring compensation in

money from the State in every case where proof could be furnished that one was not guilty of the crime for which he had suffered imprisonment. A more just and righteous law was never passed. Money alone can never compensate for unjust imprisonment, but the only atonement possible is financial compensation and public vindication.

The measures so far considered are all remedial; but while we have recently made rapid progress in measures applied after men have been sent to prison we have thought little of preventive measures. And just here we face again the spirit of the times.

All along the latter half of the nineteenth century men of science—chemists, biologists, physicians—were studying preventive measures to stem the tide of evil in the form of disease. Previously medical science had been directed chiefly to battling with diseased conditions already developed; but under the leadership of Pasteur and Lord Lister the medical world was aroused to the fact that it was possible to avert the terrible ravages of many of the diseases which fifty years earlier had been accepted as visitations from Providence. Henceforth "preventive measures" became watchwords among men devoting themselves to the physical welfare of the race; and "preventive measures" have also a most important relation to the moral welfare of the community, and the way is opening for their application.

For instance, the imprisonment of innocent men would be largely prevented by the abolition of all fees in connection with arrests and convictions. The system of rewards for arrests and convictions is absolutely demoralizing to justice; for as long as the whole battalion of men employed to protect the public have a direct financial interest in the increase of crime it is unreasonable to expect decrease in the number of men confined in our jails and prisons. An official inspector of jails and police stations in my own State reports that she has frequently had police officers admit to her that it was a great temptation to arrest some poor devil, since the city paid fees for such arrests; and she further states that in Chicago the entire basis of the city penal administration is fees, and she adds: "What better inducement could be offered to officials to penalize some unoffending stranger looking for work?" All the evils arising from this abominable and indefensible arrangement would be in a measure decreased by the simple process of

abolishing fees and increasing salaries. This has already been done in some localities; and doubtless the coming generation will wonder how the feeing system could ever have been adopted or tolerated.

The most impregnable stronghold of inhumanity in dealing with persons suspected of connection with crime is our police stations; especially is this so in our larger cities. The police station and the feeing system are the parent of one most barbarous custom; an evil most elusive, its roots, like the roots of the vicious bindweed, so far underground, with such complicated entanglement of relationships, as to be almost ineradicable, involving in some instances State attorneys of good standing, detectives, policemen, sheriffs—in fact, more or less involving the whole force of agents supposed to be protectors of the public. This abuse is called *the third degree*, or *the sweat-box*.

A man is arrested, accused of a crime or of knowledge of a crime. Before he is given any trial in any court unscrupulous means are resorted to in order to extort an admission of crime or complicity in crime—or even of knowledge connected with a crime.

A physician who knew all the circumstances recently called my attention to the case of a woman supposed to have some knowledge that might implicate her husband in a burglary. The woman was an invalid. After being kept for forty-eight hours without food or water, forced to walk when she seemed likely to fall asleep from exhaustion, she was told that her husband had deserted her, taken her child, and gone off with another woman. She was by this time in a frantic condition, and when told that her torture would cease with her admission of her husband's guilt, too distracted to question his desertion of her, she gave false evidence against her husband and was set free.

The husband was in no way implicated in the crime, but the consequences of the affair were disastrous to his business. He had never thought of deserting his wife, but it was part of the scheme of the *third degree* to keep the husband and the lawyer whom he had engaged from seeing the woman until the end sought was accomplished.

A young lawyer told me of a most revolting *third degree* scene witnessed by him, and he told me the story as an instance of the cleverness which devised

a terrible nervous shock in order to throw a supposedly guilty woman off her guard; the shock was enough to have driven the woman raving insane.

Whenever I have spoken of this subject to those familiar with *sweat-box* methods, the evil has been frankly admitted and unhesitatingly condemned, but I hear always the same thing: "Yes, we know that it is a terrible abuse, but we have not been able to prevent it." It is simply a public crime that such a system should be tolerated for one day. Mr. W. D. Howells has well said: "The law and order which defy justice and humanity are merely organized anarchy."

I have not hesitated to brand my own State with this *third-degree* evil, but I understand it is practised also in other States on the pretext that the end justifies the means—but what if the end is the life imprisonment of an innocent man? I have in mind a young man who was subjected to four days of *sweat-box* torture. At the end of that time, when even death by hanging offered at least a respite from his tormentors, he signed a statement, drawn up by those tormentors, to the effect that he was guilty of murder. The boy was only eighteen, but was sent to prison for life, though it now seems likely that he had nothing to do with the crime. However, it is difficult to secure pardon for a man sent to prison on his own confession; and there is just where the injustice is blackest: it cuts from under a man's feet all substance in a subsequent declaration of innocence, *for it stands on the records of the case that he confessed his guilt.*

There are of course many cases where the *third degree* is not resorted to; indeed, its use seems to be mainly confined to the cities where police stations are a ring within a ring. In smaller towns after the arrest is made the case usually comes to trial with no previous unauthorized attempt to induce the prisoner to convict himself, and, if the accused is a man of means who can employ an able lawyer, the trial becomes a game between the opposing lawyers, and both sides have at least a fair chance. Not so when the court appoints a lawyer for the poor man. The prosecution then plays the game with loaded dice; for it is the custom for the court to appoint the least experienced fledgling in the profession. Los Angeles, Cal., has recently introduced an admirable measure to secure a nearer approach to justice in the courts for the poor man, by the appointment of a regular district attorney for the defence of accused persons who are unable to pay for a competent

lawyer. This appointment of a public defender has been made solely with the aim of securing justice for the poor and for the ignorant foreigner; it is a most encouraging step in the right direction, and seems a hopeful means of exterminating the *sweat-box* system.

We cannot hope to accomplish much with preventive measures until we frankly face the causes of the evils we would reduce. That the saloon is a prolific source of crime the records of all the courts unquestionably prove; it is also one of the causes of the poverty which in its turn becomes a cause of crime. The saloon is wholly in the hands of the public, to be modified, controlled, or abolished according to the dictates of the majority. This is not so easy as it sounds, but when we realize that while the saloon-keeper reaps all the profits of his business it is the taxpayer who is obliged to pay the expense of the crimes resulting from that business, the question becomes one of public economy as well as of public morals. The force which makes for social evolution is bound to win in the long run, and the gradual elimination of the saloon as it stands to-day is inevitable; and certain it is that with the control of the saloon evil there will be a marked reduction in the number of crimes committed.

The criminal ranks receive annual reinforcement from a number of sources now tolerated by a long-suffering public. We still have our army of tramps, caused in part by defective management of county jails where men are supported in enforced idleness at the expense of the working community; the result also of unstable industrial conditions and far greater competition, since women, by cutting wages, have so largely taken possession of industrial fields. Constitutional restlessness and aversion to steady work also cause men and boys to try the easy if precarious tramp life; and in hard-luck times the slip into crime comes almost as a matter of course.

The trail of the banishment of the tramp evil has already been blazed through Belgium, Holland, and Switzerland by the development of the farm colony to which every tramp is rigidly sent. There he is subjected to an industrial training involving recognition of individual ability, and development along the lines to which he is best adapted. These farm colonies are schools of industry where every man is obliged to work for his living while there, and is fitted to earn a living when he leaves. The results of these measures have been altogether satisfactory, and we have but to

adapt their methods to conditions in this country to accomplish similar results. The elimination of the tramp is a necessary safeguard to the community; and to the tramp himself it is rescue from cumulative degradation.

Mr. Fielding-Hall, an Englishman, at one time magistrate, later warden of the largest prison in the world, and the most radical of humanitarians, after years of exhaustive study of the causes of crime, declares that society alone is responsible. He adds: "It is no use saying that criminals are born, not made; they are made and they are made by society." And it is true that in every community where human beings are herded in foul tenements, herded in crowded, unsanitary factories, or live their days underground in mines, we shall continue to breed a class mentally, morally, and physically defective, some of whom will inevitably be subject to criminal outbreaks. Poverty causes ill health, and malnutrition saps the power of self-control.

Medical science is even now telling us that there is probably no form of criminal tendency unrelated to physiological defects: brain-cells poisoned by disease; brain-cells defective either through heredity—as in the offspring of the feeble-minded—or enfeebled through malnutrition in childhood, the offspring of want; brains slightly out of balance; and, more rarely, the criminal impulse developed as the result of direct injury to the brain caused by a blow. Crimes are also committed under temporary abnormal conditions such as "dual personality" or double consciousness. In this diagnosis of crime we find ourselves next door to a hospital; and this class of criminals does closely parallel what alienists call "borderland cases," while the unscientific penologist has carelessly classified them as "degenerates." Physicians tell us that when Lombroso was studying "types," if he had invaded the charity hospitals of large cities he would have found the same stunted, undernourished, physically defective specimens of humanity that he stigmatized as the "criminal type."

Of two prisoners whom I knew well one was subject to slight attacks of catalepsy, the other to epilepsy; each of these men had committed a murder, and each said to me the same thing: "I had no reason to kill that person and *I don't know why I did it.*" Both these men were religious and extremely conscientious; but when the "spells" came on them they were irresponsible as a leaf blown by the wind; and while passionately regretting their deeds of

horror they seemed always to regard the act as *something outside themselves*.

None of us yet understand the interaction between the mental and physical in the nature of man, but the fact of this interdependence is clear; and while progressive prison wardens are sifting the human material thrown into their hands, giving comparative freedom to "honor men," and industrial training and elementary education to those within the walls, they do not ignore the fact that there is a residue—they are in all our prisons—a residue of men who cannot stand alone morally; handicapped by causes for which they may not be responsible they cannot hope to be "honor men" for they are moral invalids—often mental invalids as well. That they should be kept under restraint goes without saying. They need the control of a firm yet flexible hand, and they should be under direct medical supervision; for back of their crimes may be causes other than bad blood.[\[16\]](#)

Improved factory laws, better housing of the poor, the enforcement of regulations for public hygiene, the application of some of the saner theories of eugenics, the work of district nurses, all these are on the way to reduce the number of diseased or abnormal individuals who fall so readily into crime. Already we have several recorded instances when a blow on the head had caused uncontrollable criminal impulses, where skilful brain surgery removed the pressure, and with the restoration of the normal brain the nature of the individual recovered its moral balance. Every large city should have its psychopathic detention hospital in connection with its courts, to be resorted to in all cases where there is doubt of the responsibility of any person accused of crime, and every large penitentiary should have its psychopathic department for men sent to prison from smaller towns.

But when all is said and done, when the main sources of crime are recognized and controlled, when sound sociology unites with Christianity as the basis of management in every prison, when the "criminal type" of Lombroso has been finally consigned to the limbo of exploded theories, crime will still be with us, simply because human nature is human nature; and whatever else human nature may be it *is* a violent explosive, whether we agree with Saint Paul as to "the old Adam" or believe with the evolutionist that we are slowly emerging from the brute and that the beast of prey still sleeps within us—not sleeping but rampant in men and women

allied in white-slave traffic and in those responsible for the wholesale slaughter of mankind and the destruction of property caused by war. Nothing short of the complete regeneration of human nature can banish crime; and after we who call ourselves "society" have done our best human nature will continue to break out in lawless acts. As long as we have poverty in our midst desperate want will revolt in desperate deeds, and poverty we shall have until the race has reached a higher average of thrift and efficiency, and industrial conditions are developed on a basis of fairness to all; and where there is a weak link in the moral nature of a man undue pressure of temptation, brought to bear on that link, will cause it to break, even while in his heart the man may be hungering and thirsting for righteousness. When the science of eugenics has given its helping hand it will still be baffled by the appearance of the proverbial black sheep in folds where heredity and environment logically should have produced snowy fleece; and who among us dare assert that no infusion of bad blood discolours his own tangled ancestry?

All the evils of poverty, vice, and crime are but expressions of imperfection of the human nature common to us all. The warp of the fabric is the same, various as are the colors and tones, and the strength of the threads of which the individual lives are woven. Whether or not we realize it, all our efforts toward social reform indicate a growing consciousness of the oneness of humanity.

With all our imperfections, is not human nature sound at heart? Do we not love that which seems to us good and hate the apparent evil? We do not realize the insidious working of evil in ourselves; but when it is revealed to us objectively, when it is thrown into relief by an outbreak of evil deeds in others, our healthy instinctive impulse is to crush it. Surely back of the religious and the legal persecutions has been the desire to exterminate apparent evil; that desire is still with us but we are learning better methods of handling it than to unleash the bloodhounds of cruelty. We are beginning to understand that evil can be conquered only by good.

As the words of the Founder of Christianity first led me into my prison experience, after all these years of study of the subject I find myself coming out at the same door wherein I went, and believing that every theory of social reform, including all the 'ologies, resolves itself in the last analysis to

a wise conformity to the Golden Rule. On the fly-leaf of a little note-book which I carried when visiting the penitentiary were pencilled these words: "The Christian religion is the ministry of love and common sense," and I have lived to see the teaching of Christianity forming the basis of prison reform, and science clasping the hand of religion in this relation of man to man. Henceforth I shall believe that *nothing is too good to be true*, not even the coming of universal peace.

FOOTNOTE:

[16] The relation of the criminal to the defective and the insane had been clear to me for many years, and I could not understand the disregard of the courts to any fact so obvious to the student of the three classes. But most valuable work in this line is now being done by Dr. J. M. Hickson, of the psychological laboratory operated in connection with the Chicago municipal court, and the results of his tests of the mentality of young criminals are now commanding attention. Dr. Hickson unhesitatingly declares the need of reform in our laws and our courts. The existence of this psychopathic laboratory is largely due to Judge Olson, of Chicago, a man of most advanced views on penology, and a practical humanitarian.

*** END OF THE PROJECT GUTENBERG EBOOK THE MAN
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